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Loudoun County Board of Supervisors, Business Meeting, Tuesday, September 15, 2026

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[00:13:07] Well, good evening, supervisors, good evening, staff, and good evening, Loudoun. I'd like to call to order the September 15, 2026 Loudoun County Board of Supervisors Business Meeting. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well.

[00:13:25] Please see the clerk to request one. Would everybody please join me in the Pledge of Allegiance? I pledge allegiance to the flag of the United States of America and to the republic for which it stands.

[00:13:41] one nation, under God, indivisible, with liberty and justice for all. Colleagues, I have one deferral for tonight's agenda. That item is item 14K.

[00:13:58] Item 14K, let me just go find it, was the LEGIE 2025-0020, Tuscarora Crossing, Land Bay, Special Exception, Land Bay 4, Textual Exception 2025-0036, and it's in the Leesburg District. We are deferring this item at the request of the community.

[00:14:17] They want to speak on the item. And because there were just no more speaking slots left because it's a very full meeting, they feel like they didn't get to talk to, they haven't talked to many board members. They've talked to Ms. Umstead. They've talked to myself.

[00:14:33] So when they made the request, I checked with Ms. Umstead. I checked with Mr. Hemstreet. And there were no issues with that. And I looked, we do not have any speakers on this item. And so we would not take this item up at all tonight. We would defer the whole item into the October 6th meeting.

[00:14:49] At the October 6th meeting, it would be one of the first things we will do after public comment on that day. So that item is deferred. It's a really long consent agenda, so please bear with me as I read the whole consent agenda. Item 7A, proclamation to recognize September 14th through 20th, 2026 as Diaper Need Awareness Week.

[00:15:12] That's for approval and presentation. That is my proclamation. How about all the, I was going to say how about all the ladies join me down front, but how about this? How about all the men join me down front for the Diaper Need Awareness Proclamation?

[00:15:30] Everybody can change a diaper. 7B, proclamation to recognize September 14th through 18th, 2026 is Disability Voting Rights Week. Ms. Glass will join me down front for that. Item 7C, proclamation to recognize September 15th through October 15th is Hispanic Latino Heritage Month.

[00:15:48] That's for approval and presentation. That is from Chair Randall's office, Vice Chair Turner, Supervisor Glass, Supervisor Sainz. I do want to pause just for a second and say that the legislative assistance in those four offices worked really hard on this proclamation and they're going to join us down front when we read it as well. Item 7D, proclamation to recognize September 17th through 23rd as Constitution Week. Chair Randall, I mean Supervisor Kirsten will join me down front. Proclamation to recognize September 2026 as recovery month. That is for approval only. That will be read at the

[00:16:26] recovery fair that I will attend and I'll let you all know in case you want to join me. Proclamation to recognize September 2026 as Childhood Cancer Awareness Month. That's for approval and presentation. Mr. LaTurner will join me down front for that. Resolution to commemorate the 35th anniversary of the Loudoun Symphony Orchestra. That is for approval only. It will be presented at the Loudoun Symphony on September 19th. 7-H. Resolution to recognize Captain Ernest Brown

[00:16:59] retirement from the U.S. Coast Guard, Coast Guard Reserve. Status for approval only. It would be, he would be recognized in an event for Colonel, I mean, Captain Brown. 11A, contract renewal for vehicles and motorcycles. 11B, contract renewal, task order, roadway, and transportation design services for federal projects. 11C, contract renewal, clients, servers, storage, and peripherals.

[00:17:25] 11D, contract renewal off-the-lot new and used vehicles through Class VII. 11E, contract renewal site, civil, and park design services. 11F, contract renewal architectural services. I'm not even halfway done yet.

[00:17:42] 11G, contract award for the public safety surveillance. 11H, contract award public safety software. 11J, contract construction engineering inspection services for Dulles West Boulevard, North Star Boulevard, to Arcola Boulevard.

[00:18:01] 11L, attainable housing loan application for Silver District West Apartments. 11M, proposed amendments to the county's home accessibility and repair program. 11N, consolidated annual

performance and evaluation report for federal fiscal year 2025 through 2026.

[00:18:19] 11.O, Amendment to Chapter 873 of the Codified Ordinance of Loudoun County, Personal Property Tax Relief for Elderly or Disabled. 11.P, Art Advisory Committee Annual Report, End of Term Combined Report 2024-2025.

[00:18:36] 11.Q, Art Advisory Committee Bylaws Amendments. 11.R, Communications Commission's Annual Report. 12.A, Facility Standards Manual, Public Review Committee, Fiscal Year 2026 Annual Report. 12B, Advisory Plans, Examiners, Board, Fiscal Year 2026, Annual Report.

[00:18:56] 12C, Route 50 Safety and Operations Study. 14A, Appointments and Confirmations. 14C, the AIR Report for September 5th, 2026. I'm sorry, for September 15th, 2026. 14D, Incentive for the Retention and Expansion of Guidescape and Endeavorant America, GND America.

[00:19:19] 14E, resolution approving the public use and necessity of accepting, I'm sorry, of acquiring certain real property interests and authorizing by the acquisition of an eminent domain from a road to Smith-Switch Road to Ashburn Road project. 14G, proposed traffic calming measures in the Sugar Land Run community.

[00:19:40] 14H, cut through traffic study in Beacon Hill. Thank you, Mr. Kirshen, for letting that go on consent. And 14I, Department of Planning and Zoning Land Development Application Fee Refunds, that is the consent agenda. I will make a motion for approval. Is there a second on the motion?

[00:19:56] Motion seconded by Vice Chair Turner. Discussion on the motion for the consent agenda. Ms. Glass. Madam Chair, for the additions and deletions, 14E, Farmall Road, eminent domain, to be deferred to October 6th.

[00:20:19] Right. So I just read that on consent. I hear what you are saying. You are correct. Mr. Rogers, that's what we talked about. Let's move that off the consent agenda and put that on the deferral to the October 6th meeting. Absolutely. Thank you for that. Thank you, Madam Chair.

[00:20:36] Ms. DeCrony. Thank you, Chair Randall. I just wanted to speak about the Route 50 safety and operational study being approved tonight. I'd like to thank staff and the consultant for all their work and for really listening to the constituents, particularly in the Middleburg area.

[00:20:57] I had a town hall there, and they had lots of input to give the consultant, and the consultant really listened and made changes. This corridor is known for its scenic beauty, and these improvements seek to protect a nationally recognized rural traffic calming plan that spans 20 miles from, you know, from in Loudon to Fauquier County.

[00:21:20] A few of the intersections will be worked into our intersection improvement program, and I look forward to seeing the results of the Fleetwood Road safety improvement this fall. Thank you. Thank you. Anybody else? Madam Chair.

[00:21:36] Yes, Mr. Hempstreet. We did not record 11-I. The Contract Award for Communications, Equipment, and Services is being read. I just wanted to confirm. I think I did read it, but if I haven't, yes. 11-I is read, yeah. Thank you. Anybody else?

[00:21:52] Seeing none on paper, please see aye. Aye. Any opposed? That motion will pass 8-0-1. Mr. Sainz should be on the dais very soon. Supervisors, I'm forgoing a voice for a cause today because the agenda is

incredibly long. And I will ask all of you as we go through this meeting to remember that the agenda is incredibly long.

[00:22:11] There are some things, and I did pare down my chair's comments, but there's a couple things I did want to report. Mr. Hemstreet, if you remember, and colleagues, if you remember, during the DMV moves process, one of the things that I came back and reported to you all is that DMV moves was putting forward the information or the request for funds for Metro.

[00:22:37] But if you remember, I also said we will come back to DMV Moves later on and talk about a combined bus service in Northern Virginia for Prince William, Loudon, Arlington, Fairfax, and Alexandria. So that legislation was put forward by Mr. Suravell, Senator Suravell, Loudon and Prince William were dropped from the legislation.

[00:23:02] I called Mr. Survelle. He said that he either did not realize he did or he didn't mean to drop them from the legislation. This is for the bus consolidation for a single bus service down what we're calling the main spines of the four major counties in one city versus every single bus having their own separate service, their own separate fee structure, their own separate schedule.

[00:23:37] So DRPD is supposed to report back at the end of December. Mr. Servo said he will ask for an extension so that Loudon and Prince William can be added to that, which means it probably will not come out of the General Assembly this year.

[00:23:57] It probably will wait until next year. But it is really important that whether they decided to do it or not, that Loudon and Prince William are not left out of that conversation. So I just want to kind of circle back around, because I reported that once and kind of closed that loop. I also did a discussion of the National Association of Counties mid-sized caucus meetings, of which I am a vice chair of that.

[00:24:20] And there were seven things that we decided we would take into the lead session for us to then go tell Congress that we want to work on. Those seven things are balancing the need of attainable housing while still protecting rural lands and farms, data centers, workforce development, heated or polarized meetings.

[00:24:45] When they said heated or polarized meeting, I ask, did they mean heated meetings from people in the audience talking to a board, or did they mean heated meeting on the dais? They said both. Something called a Dignity Index and a Leadership Forum.

[00:25:04] The Dignity Index and the Leadership Forum goes together. It came out of Duke University. It is the effort to get one Republican and one Democrat on every board, if there is one Republican and one Democrat on every board, to have a forum in their community about the importance of not agreeing, but trying to have disagreements in the most agreeable, respectful way possible.

[00:25:33] And so that will be discussed, that will be discussed. And then by the time we get to the Ledge Conference, there will also be an election debriefing, 'cause it will be after the midterm election. There was a comment that was made that there was questions about elections.

[00:25:52] And I said, were there questions about elections or is there any evidence that widespread election tampering or election interference is happening? Because those are two different things. And so those are the things that we will discuss from the Midsides County Caucus of the National Association of Counties.

[00:26:14] And finally, supervisors, if you were going to the ribbon cutting for the Crisis Receiving Center on Saturday at 10 o'clock, I have a ribbon for you. I have bought dozens and dozens and dozens of these little green ribbons because green is the color of mental health awareness.

[00:26:35] I did not say my office bought them. I said I bought them. And if you're going to the crisis receiving center, or even if you're not open house, I mean, ribbon cutting, and you want a ribbon for your lapel, I have one. I would say, you know, we worked on getting this crisis receiving center for such a long time.

[00:26:53] When someone's having a mental health crisis, they do not belong in jail, and they do not belong handcuffed to a gurney. Mental health is health, and just like there's an emergency room for physical health, this is kind of like an emergency room for a mental health crisis. And if as many of us can attend the lip and cutting as possible, that would be really, really great.

[00:27:15] Okay, that's all I have. Mr. Hempstreet, do you have any comments for today? Thank you, Madam Chair. I've got three comments for today. The first is that I'm pleased to announce that Loudoun has been recognized for excellence in financial reporting by the Government Finance Officers Association. The county received the Certificate of Achievement for Excellence Award for the Annual Comprehensive Financial Report for fiscal year 2025.

[00:27:35] The Certificate of Achievement is the highest form of recognition in the area of governmental accounting and financial reporting. More information about this award and other recognition the county has received is online at [loudon.gov slash awards](http://loudon.gov/slash/awards). Second, the Clerk of the Circuit Court is in the process of mailing thousands of jury questionnaire notices to Loudoun County residents to determine who is qualified for jury duty in 2027, notices direct recipients to an online portal to complete the jury questionnaire.

[00:28:03] More information about the juror questionnaires and jury duty may be found at [loudon.gov slash jury](http://loudon.gov/slash/jury). And then finally, the deadline to apply for the county's new arts and culture grant program is September 22nd. As outlined in the board's comprehensive arts plan, the grants are intended to help strengthen the county's arts and culture community by providing programming and operational funds to qualifying organizations.

[00:28:26] Nonprofit organizations based in Loudoun that are involved in the performing, literary, or visual arts are encouraged to apply. Details are online at [loudon.gov slash arts and culture grants](http://loudon.gov/slash/arts%20and%20culture%20grants). That's my comments for today, Madam Chair. Thank you, Mr. Hume Street. I'm going to take a point of personal privilege and say that the room, if you could take a picture of the room from the back, you will see the room is filled with a lot of lime-colored green shirts.

[00:28:52] IBEW, the International Brotherhood of Electrical Workers, have joined us this evening in the room. I'm not sure how many of them will be able to stay until we get to some of the items that they've come for, but I did want to say that they're here, that they are either a residence of Loudoun County or they work in Loudoun County, and we welcome you to the room.

[00:29:11] Thank you for being here. All right, supervisors, we're going to – I changed the agenda up some today because I'm trying to get through as many action items as we possibly can tonight and kind of just get things moving because it's such a long agenda. So we are going to do our one information item, and then we're going to do two back-to-back action items before we take our first two closed sessions.

[00:29:33] So the first action item is 14F. I did not want this item on consent because I want to ask the staff about looking and studying a possible different configuration. So will staff come first for the information item followed by 14F, the Cascades Library and Senior Center?

[00:29:58] Good evening. Good evening, Chair Randall and the Board of Supervisors.

[00:30:16] Um, to make this, I'm going to hand this off immediately to Brian Reagan, assistant director of the housing community development and Bonner group is here, our consultants, um, so they can walk you through the PowerPoint and then have any questions after that. Okay. Good afternoon.

[00:30:35] Uh, we are here tonight to discuss the results of the redevelopment and housing authority feasibility study that was completed at the request of the board. Uh, as a quick information, this is an information item. We are not asking for any board action after the presentation is completed. This item was a result of the request by the board to look at a comparison of the county partnering with an existing redevelopment and housing authority, as opposed to the county standing up and establishing and activating its own housing authority. Just as a quick kind of FYI,

[00:31:10] for all intents and purposes, we will be using the term RHA, or Redevelopment and Housing Authority. This is the legal term that is used in the Code of Virginia. You may also hear the term public housing authority or public housing agency. That is typically a federal term, so RHA, Redevelopment and Housing Authority, will be the term that is used.

[00:31:31] Again, it's information only and does not provide recommendations specifically for the board. Quick background. In February of 2025, TLUC requested the study. In April of 2025, the board as a whole also approved that study.

[00:31:46] And then in October of 2025, the county procured Bronner Group LLC to complete that study. As introduction, Bronner is a national public sector consulting firm founded in 1987 that specializes in strategy, transformation, and accountability services for government and public sector organizations.

[00:32:05] Bronner has extensive experience serving public housing authorities, housing commissions, and affordable housing agencies across the country, including strategic planning, organizational assessments, governance reviews, and operational improvement. The firm has worked with more than 50 housing agencies across the country, including in New York City, Chicago, Atlanta, Milwaukee, and Philadelphia.

[00:32:26] At this time, it is my pleasure to introduce members of the Bronner Group team, including Mr. Ben Greller, who is Senior Consultant for Government Services, as well as Mr. Mark Plummer, who serves as the Government Services Executive. And at this time, I will hand the floor over to Bronner.

[00:32:44] Good afternoon. First of all, I just wanted to say it's a pleasure to be here and to share with you this report. We're going to start with what we can say is the current state in terms of the county's capabilities, what you can currently do.

[00:33:05] Right now, you administer the Housing Choice Voucher Program. You lend directly through the Attainable Housing Loan Program and Community Development Block Grant CDBG funding. You also have the ability to acquire land, coordinating lift developers to build to county specifications, and you target productions through the zoning ordinance and general plan.

[00:33:29] You also have the capability of issuing tax-exempt revenue bonds via the Economic Development Authority. Now, these are some things that you cannot currently do. You cannot own and operate housing as a public landlord, nor can you acquire property for redevelopment under Title 36 of the Code of Virginia.

[00:33:54] Now, the report that we are going to provide you, we look through it through three options. That is, to maintain the status quo, which is the county and EDA continue as they operate today with no board action required.

[00:34:12] Option two is to partner with an existing Virginia RHA. Now, this will require a public hearing and board resolution. And the third and final option is that Loudoun County activates its own RHA.

[00:34:28] This will require a voter-approved referendum. My colleague, Mr. Ben Grello, will now go through the advantages, disadvantages, and risks associated with each of the three options. Thank you. Great. Thank you, Mark.

[00:34:46] First up, we'll talk about the status quo and the advantages that lay with that. Just to get off the bat, there would be no cost added, no delay in operations, and no political risks. There would be direct board accountability for all housing activity.

[00:35:01] You would retain substantial existing capabilities like lending, land acquisition, coordinating for development, geographic targeting, and voucher administration. There's already conduit bond capacity through the EDA. Through an interview with Arlington County staff, we saw a good example of this exercise being used throughout their capabilities.

[00:35:25] To bring up some cost figures for you guys to talk about so we understand what's at stake. Through a cost study estimate, we found that a one-time fee of about \$2.2 to \$3 million would be needed for initial setup of a housing authority. This includes legal setup, bylaws, policies and procedures creation, HUD systems, and downloading HUD softwares as well, as well as new commissioner onboarding.

[00:35:50] Also, it's worth to note that annual costs of \$1.7 to \$2.5 million would be associated with this as well. Moving on to other advantages, there would be no landlord obligations and no exposure to the operating and capital funding risks attached to owning housing.

[00:36:07] We're going to talk more later about landlord obligations. And just to bring up an example of capital funding risk, your capital fund from HUD goes to a lot of the large repairs for public housing. The current HUD capital budget is \$3.2 billion, and it's estimated that there's \$169 billion of backlogged items with that.

[00:36:28] So just kind of an example of the funding risks at hand. Some disadvantages of your current status quo. There's no public ownership of housing. Production depends on private and non-profit partners and on terms the county negotiates. Title 36 says there would be no authority to acquire property for redevelopment.

[00:36:50] Value capture from developments is contractual rather than proprietary and depends on negotiating position. And through interviews with DHCD staff, we found that existing capacity, including EDA powers, is underutilized relative to its current authority.

[00:37:05] Now moving on to partnering with an existing RHA. and the advantages of the lie at hand with that. There would be no referendum required. This is a good opportunity to talk about the referendum at

hand. With a new formulation of an RHA in Virginia, it requires a referendum.

[00:37:26] We've seen recent examples of this, most recently in 2008 in Arlington. It failed from a two-to-one vote, mostly because they brought up the fact that there would be no new funding from HUD, and they felt that they had already provided adequate services through their county offices and some other advantages that come with partnering with an RHA access to established development asset management and HUD compliance capability obviously there would be lower startup costs that come with that staffing demands would be lesser because somebody would be coming into Loudoun County and providing services the landlord obligations that

[00:38:04] we're going to talk about the compliance risk and the federal funding exposure we've already talked about would lay on the neighboring county that's coming in and I wanted to talk about the reverse reversible negotiated terms basically meaning that this would be just a contract and it could end if things don't go well whereas with a public housing authority you would be tied to that forever partnering with the existing RHA disadvantages this does not answer a need to find by county ownership capability is borrowed not acquired delivery governed by another

[00:38:40] jurisdiction's appointed board with priorities that may diverge. It also requires a willing and available partner. We interviewed multiple neighboring jurisdictions and they all reiterated Arlington County's thoughts that they're prohibited from spending funds outside their jurisdictional boundaries. Just to continue on, continuity risk at contract expiration or partner policy change. So basically when you're partnered with somebody, they're providing services, they're coming in, they end that contract, there's Latin County

[00:39:18] civilians that are depending on the services they're providing and that contract's all of a sudden gone and you might not have the capability to provide those services that they were receiving. Public accountability is also diffused. Residents may not distinguish from the county from the operating authority. So if there's a bad mold problem and there's something that comes about with that and press that's going to go on to Loudoun County rather than probably falling on the jurisdiction that's actually doing the work. And then option three, lastly, activating a Loudoun County RHI.

[00:39:52] This is the only option that gives Loudoun its own operating capacity and ability to operate housing. It's permanent institutional capability rather than a contractual agreement subject to a partner's priorities. Loudoun would be able to hold its own assets and control decisions a refinancing time. I also wanted to highlight that under Title 36, the money that the housing authority creates would go directly to the housing authority. It would not come back to the county as it's a separate political subdivision. Continue on with some advantages. This would enable preservation, acquisition, and permanent holding of affordable properties whose restrictions are

[00:40:31] expiring, which no current Loudoun County entity can do. There would be a dedicated housing governance and housing dedicated balance sheet without a second local bond issuer and staffing design is a choice. So DHCD could staff the redevelopment housing authority. We've seen examples of that in Fairfax where their county actually staffs the entire housing authority rather than having two separate workforces. And then some disadvantages, we've gone over the referendum, requires voter approval and failure of this referendum bars the question

[00:41:06] for coming about for five years. We've also talked about this would yield no new material HUD funding, and Loudoun would also assume new roles of landlord obligations in full. So tenant relations,

habitability, grievances, evictions, resident counsel, and staffing, just to name a couple. And we've already talked about the exposure to operating and capital fund shortfalls we've seen nationwide. That would also be a disadvantage here. Operating decisions move to an appointed board under Title 36 as well, five to nine commissioners that this

[00:41:42] board would appoint, but it would reduce direct board control. And then you would be bound by federal rules and funding conditions that a county department is not. So for example, procurement guidelines, maybe there's procurement limits could change as well that you would not see under your current operations. This would also be the longest path to effectiveness with everything that would have to take place.

[00:42:06] The start-up cuts are not yet final or established. They're just estimates that you can find in our report as well. So to sum up all of that, the central trade-off, the decision is whether the county moves from financing and facilitating housing produced by others to owning and operating housing directly.

[00:42:22] Activation places that function with a separate body governed by an appointed board and requires voter approval. An activated RHA is a separate political subdivision, and this board would appoint its commissioners. To provide you with some context, we did take a look at some of your peer jurisdictions and here's some of the information.

[00:42:44] In Fairfax County, Fairfax County RHA is a unique dual entity model in which Mr. Grella was just speaking of in which county personnel carry out its functions under a cooperation staffing agreement. The RHA has a separate RHA board that the county staff work.

[00:43:03] In Arlington County, no RHA with several failed referendum attempts, as mentioned again by Mr. Greller. Various aspects are delivered via several county departments right now. In the city of Alexandria, Alexandria RHA administers its Housing Choice Voucher Program, public housing, and the redevelopment portfolio.

[00:43:26] Current redevelopment of existing public housing is occurring through private partnerships. And in Prince William County, there is no RHA. Housing programs are delivered through its Office of Housing and Community Development, similar to how Loudon currently operates.

[00:43:44] The attached grid here, housing capabilities matrix, outlines the functions by category in terms of what actions you currently perform versus what actions you would need to perform if you were to move forward in terms of developing a new RHA.

[00:44:09] To summarize this, there are 109 total functions, of which 94 of those functions are being provided currently by Loudon County. That's 86%. So, in essence, most of the functionality that is needed, you're already providing.

[00:44:33] Are there any questions? So many questions. Okay. Supervisors, if you have questions, turn your lights on. No? Mr. Letourneau got there first. So is it kind of telling that the most recent housing authority established was 15 years ago and that at that time, since that time, and really even since we've started this discussion, there are just way more options and entities that can serve as partners as there were back

[00:45:11] when housing authorities were kind of in vogue and being adopted? Yes, I think that kind of speaks to a trend we've seen nationally moving away from public housing. In 2002, there was almost 1.3

million units of public housing.

[00:45:27] Today, there's about 900,000. And the faircloth limit that was set at that time sets a limit for public housing. President Trump proposed that that number be redrawn down to the \$900,000 or \$900,000 limit that we currently see to cap public housing even further.

[00:45:47] So a move away from Section 9 to Section 8 is definitely something that's happening. And because of the capabilities matrix and the things that county departments are able to provide, I think it is definitely fair to say that there is a reason that there hasn't been a referendum in 15 years.

[00:46:04] Right. Yeah, it seems to me that there's little benefit of going through this expense and process for very little pay when we have a lot more partners and abilities to kind of do things that we didn't always want. And of note, in 2008 for Arlington, both Democrats and Republicans denied the motion to create an RJA, so.

[00:46:25] Yeah, okay, thank you. Thank you, Mr. Crony. Thank you, Chair Randall, and thank you for the presentation. So I think my motivation for wanting this study, And I appreciate, you know, all the work you put into it was to develop more affordable housing and more workforce housing.

[00:46:46] But I think a referendum, I don't know that that would get approved by the voters. So I appreciate that you looked into that. I had no idea you needed a referendum to do an RHA. So what was interesting that I found in your presentation was that the EDA.

[00:47:06] I'm wondering how we could use the EDA to create more affordable housing. It sounds like we really haven't leveraged it. I know I asked you this question, but I think that might be an opportunity because Arlington County certainly has experience using an EDA.

[00:47:24] So thank you for the question. And a perfect example was this morning we had a groundbreaking, And the EDA issued an \$18.5 million bond for TM and Kunst to build affordable without having to go through the Virginia housing bond process.

[00:47:41] So we do it right here in Loudoun. We have examples of how we can utilize the EDA as part of our process to issue bonds in order to create affordable, attainable housing. So they do have an interest in doing this then?

[00:47:56] Absolutely. You have examples. Okay. Yes. Good. And they have the staffing that you think is required to do more of this? Again, we have the staff here in the housing department that works hand-in-hand with them. And as we're analyzing our products, we can work with their team at the same time.

[00:48:17] And the county attorney's office is also staffed to them. And the same attorney components that work for our office work for them. So we have synergy there. Okay. Thank you very much. Thank you, Ms. Brixman. Thank you. Well, thank you so much for the presentation and for digging into this.

[00:48:34] I really appreciate it. What would the likelihood be that we could actually find a partner that would allow us to use their authority? So I will say Fairfax would be possibly interested, but there would be a way for them to generate revenue off of Loudoun County.

[00:48:55] Because they would be issuing bonds and pieces. So that would be the component where they would possibly have an interest. versus us and the EDA being able to generate that revenue. So there would be possibly interest. You know, there has been Harrisonburg Public Housing Authority has done a lot of bond issuance over the years for places that don't have EDAs or have the ability to do it.

[00:49:22] So there is a model within the state for those housing authorities to do that type of bond authority if there isn't an IDA or an EDA within a jurisdiction, which we already have, so we don't have any need. So the major tool is just the bond-issuing authority, really?

[00:49:40] That's the largest tool because there is no public housing funds coming from the federal government at this point. Okay, that's a whole other conversation. So when we were floating this idea around last term and early this term, Part of my concern was preservation and the fact that we didn't have folks coming and taking advantage of our HAP fund.

[00:50:06] And I think that from our meeting the other day that we have worked on ways to resolve that. Could you talk to that a little bit? Because that kind of alleviated the pressure for me to do this. Sure. So as we're continuing to work on our attainable loan program and we consolidated that function of preservation within that loan program, and we will be coming back to the board with more initiatives that will make that even more effective in the very new future.

[00:50:35] We don't have any projects that are right there like tomorrow that we need to fund to get done, but we are in constant conversations with the projects that are expiring so that we as a county will hopefully be involved. or they will decide on their own through work with Virginia Housing to maybe reissue tax credits and extend the affordability.

[00:50:55] And it sounds like the communication has increased so that we have more of an understanding when things will be coming, when developments or apartment buildings and these sorts of things will be coming out of their affordability phase. Yes, and that's one of the pieces that we presented to the board was the inventory, and that includes the expiration of those.

[00:51:16] So we've got a very good handle. Staff has done a great job of creating that information. Fantastic. Thank you. Ms. Glass. Thank you, Madam Chair. And thank you for the presentation and thank you for speaking with me the other day.

[00:51:32] I think we had a discussion at our joint school board and board of supervisors committee meeting about attainable housing and using properties that possibly that the school board or the LCPS has, is that something that I'm trying to think, is this similar to what we're talking about?

[00:52:04] Like, I know we've had a discussion that maybe partnering with them or maybe the schools partnering with another entity to have more attainable housing?

[00:52:22] Yes, I think that's part of the discussion is what would be the outcome and what would be the reason for doing a housing authority? That could be possibly, but we have plenty of good partners that are already here. I think Brian looked at recently that we've had like eight partners that are currently working on projects here that are both for-profit and non-profit entities.

[00:52:45] So we've created that bench strength here in Loudoun. When we did the RFP for the park and ride, my understanding is we had 15 to 17 organizations that put in bids on that, put in requests. And we're all constantly part of, I hope the reason why you brought me here was to bring in other people to the county to work.

[00:53:09] And I'm constantly having those conversations to see who else that's doing work in the D.C. area is willing to come here not only to build but to hopefully fund projects also thank you so i'm going to use terms i know because that's so i am by profession a mental health therapist when you are getting the

license as a mental health therapist you work under your supervisor um your supervisor um you can you can do a lot of things but only if your supervisor signs off on what you just did because you're working under you're kind of working under their license until

[00:53:44] you get your own license. So, if Loudoun County partnered with another county who had existing RHA, does that mean that anything we did, say it's Fairfax, we'd have to have Fairfax sign off on or be a part of? Or how does that work? Because that would be not great to have to have Fairfax sign off on or whomever else. So, how does it work when you're working under or you're partnering with somebody who has an RHA already. That's my first question. My second question is,

[00:54:16] um, so it actually, you actually said that, that, let me find it, it's page six, that we could not acquire property for redevelopment under Title 36 of the Code of Virginia. This isn't information to me. So if we wanted to do a, if we wanted to do a, um, redevelopment of any type or if say we have an office building that is no longer being used and we wanted to be and we wanted to redevelop it and do something different and make it attainable apartments instead of having

[00:54:53] just an empty office building sitting there we want to do what's called adaptive reuse. We couldn't do that unless we had an RHA or under somebody else who has an RHA. We wouldn't be able to do it under that legal component.

[00:55:09] There are other pieces. Section 36 is the public housing part for the state, the redevelopment authority. There are other ways that we could purchase and own. It just wouldn't be under that specific section of the state. Okay, so there would be ways to do adaptive reuse for something like that, for that type of a...

[00:55:28] Right. Yeah, okay. And then my first question? If we partnered, would we have to get sign-off from... Yes, basically, and that would be part of the agreement that Ben mentioned that would be outlined, but the appointed board would be appointed not by the county here, it's appointed by the other county.

[00:55:51] So that would be the component to that. I did not, yeah, this is not the news I was hoping for today. Okay, well, it is the news that I received, though. So this was really helpful. I may have some follow-up questions later on.

[00:56:06] know how to get you. And by the way, we did not bring you here for you can do it all by yourself. That is for sure. Although you are doing a really, really great job. Thank you so much. I appreciate you all being here. Supervisors, we're going to go to the first information, I'm sorry, action item. I actually did not want this action item on consent because I want to ask the staff to look at a different possible different configuration. So it's 14F.

[00:56:34] I think, having asked the staff, five or six of us saw the full presentation. Does anyone need the presentation again? Ms. Bricksman, this is your district. Would you like the presentation? Oh, no, Madam Chair. We've been working on this for a while. Thank you.

[00:56:49] Okay, so can we just, okay. So if no one needs the presentation, can we go to, can you go, can you just, because we can do this really quickly. Can you show me the actual layout so I can ask the questions? Because I'd like you to consider a different configuration. Let me find, you need the number? Is it slide five? I don't know.

[00:57:22] Yeah, that looks good. Yes, that is it. First of all, before I ask my questions, does anyone else have any questions on this item? Ms. Bricksman? No, I think I can make the motion and just talk in the motion. Okay, that's fine. Make the motion.

[00:57:39] Oh, okay. You want to do that before you ask your questions? Yeah, I can talk in the motion. Okay, great. I move that the Board of Supervisors amend the scope of the Cascades Library and Senior Center complex project to include a boundary line adjustment to reconfigure the properties for the purpose of pursuing attainable housing on the balance of the property that is not developed for the Cascades Library and Senior Center complex project. I further move that the Board of Supervisors direct staff to present options and receive direction on how the property should be configured at

[00:58:15] a future Board of Supervisors business meeting. I further move that the Board of Supervisors direct staff to initiate plans to develop attainable housing on the balance of the property. Second. Discussion on the motion, Ms. Bricksman. Thank you. The ongoing development of Cascades Marketplace has been one of our biggest successes in Algonquian District since I took office with Shake Shack recently opening and a construction for a bunch of new housing actually underway. The first project is complete and the second housing project now that's actually in the formal Cascades marketplace is really chugging along. The board approved my request to allocate one million in funding for our fiscal year

[00:58:54] 2024 fund balance to accelerate the planning and another eight million was allocated in FY27 to begin work on this updating of the Cascades Library and Senior Center. The buildings were constructed in the 1990s and while they remain highly populated or popular and well loved, they are definitely in need of updates, including the HVAC system, the roofing, support for modern technology, additional square footage so that they come in line with current capital

[00:59:27] facility standards. We started holding community meetings about how to redesign and redevelop and build the new facilities. And at one of those meetings, I heard from several of our seniors who really were concerned about being able to age in place and that they really would love to live near their senior center.

[00:59:49] And not all of the seniors are from the district. They were from all over the county at the time. And so I really took that feedback to heart because they want to downsize. They would love to live near their senior center. And one of them actually pointed over to the new construction in Cascades Marketplace.

[01:00:05] And she was like, are any of those one level? I'm like, oh, no, they're not. So I appreciate Mr. Torpy's patience when we came up with the idea of using some of this extra acreage for attainable housing and potentially senior housing. And so we've been working for many months now to come up with this design.

[01:00:26] The configuration is at the request of staff. They would love to have the facilities on the road. Also, we brought the buildings closer together so that we could promote cross-generational pollination, for lack of a better word.

[01:00:42] And both facilities and the managers of the facilities were really, really supportive of that. And so that's why the buildings are closer together. And the senior center and the library are really going to have all the amenities that the community deserves and that we see. And we're going to keep the drive-through book drop because I know that Ms. Chang does not want to give up her drive-through book drop.

[01:01:06] We're going to have indoor pickleball, a dog park, and a number of other things. We're going to have a shelter for the market, farmer's market folks. So that's just a brief overview. And the configuration of the housing might change as we get proposals from some housing developers because this is just sort of an idea sketch right now as far as the configuration of the housing.

[01:01:29] Thank you. So this is all our land, correct? This is all county land? Yes, correct. Okay, so I would like you all to consider doing this. So you have two separate surface parking for the senior center and for the library. I would like us to price out and consider doing a parking deck.

[01:01:48] And so instead of having two separate parking areas, do a parking deck. If you did a parking deck right here, it would still be close to the senior center, so it's not so far to walk. You can then use this area and have, one, it would be less asphalt, which is better for the environment, so less, more permeable space.

[01:02:08] You could make this actually a much larger park. You could put more fields here. You might be able to put maybe more pickleball, a dog park. This could be just be a much better used area if you could consider doing a, if we could price it out and when you do the configuration, make this a parking garage.

[01:02:33] So at those 136 spaces or maybe even 150 more spaces over here, instead of having two surface parking lots, have one parking garage, have much more green space, permeable space, and park space over here.

[01:02:48] I'd like you to consider that. Can you do that when you come back to us? Yes, we definitely will consider that as an option. And just for the record, I want to just state that this is a very high level sketch and we'll have multiple options coming forward. But I went on the record that I'd like to see as little asphalt as possible, as much park space as possible, as much space.

[01:03:13] I mean, I never know how big a baseball field is. I think that whole space would probably be a cricket field probably use that whole space, to be honest. But I do think if we use that entire park, that surface parking right there, we could do a lot more with that space where that surface parking is.

[01:03:32] And so I'd like to consider a parking garage. And as I said, that's still really close to the senior center. And so seniors won't have that far to walk. And because the buildings are very close together, even the library, people wouldn't have that far to walk.

[01:03:48] and you have that much more space to do something else with. And since it's all of our property anyway, why not try it? Thank you. Anybody else? Is your light on for this, Ms. Umstead? I didn't see your light before. Normally, I miss your light. I'm sorry. I missed your light before.

[01:04:04] Thank you, ma'am. Just two questions. One, I think we've heard from Parks and Rec Community Services that they are in support. I want to make sure the Library Board of Trustees is in support of this approach.

[01:04:20] And then the second question, I think the chair's suggestion for a parking garage is a very good one from the standpoint of reducing the amount of asphalt. But I know that a number of senior citizens are very nervous about parking and parking garages.

[01:04:41] So as part of staffs looking into that issue, if you could also think about what an older population may or may not be comfortable with, that would be, I think, useful information as well. But Chang Liu is the library board in support of this.

[01:05:00] We have not had any formal discussion about this yet, just because this is such a preliminary project at this point. But I want to point out the current Cascade Library, as Supervisor Briskman said, is one of the oldest Loudoun County Public Library buildings, heavily used.

[01:05:23] A lot of systems are out of date, and also it's only about 33,000 square feet, where our current capital facility standard is 40,000 square feet. So we are hopeful that the new library would be built according to the new standard.

[01:05:39] So when the time comes, I will be happy with the county approval to bring this to the Library Board of Trustees for their consideration. I don't foresee objections for the Library Board of Trustees. Thank you. Thank you.

[01:05:54] Chuck, a closing, Ms. Brixman, or can we go on a vote? I actually would have a couple of comments and a question for Mr. Hemstreet, if you don't mind, Chair. First of all, to Supervisor Umstead's point, I believe we have a meeting on the calendar for October 28th to take this to the community.

[01:06:18] And there will be probably more than one community meeting regarding this. Go ahead, Mr. Torpy. I believe it's November 2nd. Oh, it's November 2nd now. Okay. Great. Right before election day. Okay. So we have a community meeting coming up where we can take more input. Mr. Hemstreet, would you recommend that we actually forward this to finance for discussion? It's my understanding that the way it's working now, this would not come to finance for a design endorsement? Yes. So right now the project is with the board. So if, you

[01:06:56] Normally, a project like this, once the board has said you're adopting the project, there would be a referral to finance, so finance could work out some of these details prior to coming back. Okay.

[01:07:12] So, Madam Chair, I'm not quite sure how to adjust this motion to basically have everything in the draft motion and have it all sent to finance if there's no objection. I second the motion without objection that we would do all that has been said.

[01:07:27] and send it to finance. Okay. Without objection. All right, thank you, everyone. Fantastic. It's been made to motion. I second. I'll in favor, please say aye. Aye. Any opposed? That motion will pass 801. Can we go to the next item, please? Thank you all. I really appreciate it. So the next item is actually, it is a- Oh, Madam Chair, I'm sorry, point of clarification.

[01:07:46] I just wanted to say I appreciate the idea of the parking garage. I meant to say that in my closing. I apologize, but I do appreciate that idea. We'll have to see where the costs are on it, but I do appreciate the idea. I always love the idea of more green space. Thank you. Excuse me. So the next idea is, the next item is actually a BMI, and so I will quickly explain it and then make a motion on the BMI.

[01:08:10] So I am asking, or we are asking the sheriff, Loudoun County Sheriff, to come and talk to us and explain, or one word, clarify, what activities or what involvement the Loudoun County Sheriff has with the Immigration and Customs Enforcement.

[01:08:32] The sheriff did come to this board, and he said that the only activity that they have, the only involvement with Immigration and Customs Enforcement, was with the 287G program. We have now found out that that's not the only activity that they have, that they do have sheriff deputies.

[01:08:52] In fact, I will read what he said. The LCSO does not participate in ICE immigration enforcement activities in the field. The LCSO continues to follow its longstanding practice of notifying its

respective law enforcement partners should a person of interest by their agency surface doing a routine computer database check.

[01:09:10] However, unless a criminal warrant exists, no detention will be made. So maybe I don't clearly understand when he says in the field, But my question is, if the sheriff is saying that his policies for his department is that a person who is stopped for a routine traffic stop, ICE is called, then that is something outside just the 287G program in the jail.

[01:09:41] If a person calls the sheriff because it's a domestic violence situation and ICE is called, That is something outside of the 287G program in the jail. Since the sheriff came to this room and sat at that table and said there was no ICE involvement outside the 287G program, I would just like some clarification.

[01:10:05] So all I'm actually asking in this motion is for the sheriff to come over here, if he doesn't mind. Now, what the sheriff has said is that he would talk to us individually. Talking to us individually would probably take upwards of nine hours.

[01:10:23] Talking to us as a board would probably take 45 minutes. And so if there's something that I am saying wrong when I talk about field activities, then tell me. If there's something that I misunderstood when he said that there's no activity except the activity in the jail, then tell me.

[01:10:44] But because he came to this board and made that statement, I do not believe it is out of line for me to invite him back so I can clarify. The other thing is we also found out that when these stops, when ICE is called, it's up to the discretion of each deputy at the moment.

[01:11:03] So there is, as far as I can say, no guideline when ICE is called. It is a homonym decision. And so I would just like to understand what I don't understand. And so the request is to have the sheriff come talk to us.

[01:11:19] So the motion is, I move the board of supervisors endorse the letter to the Loudoun County sheriffs provided in attachment one to the September 15, 2026 Board of Supervisors business meeting. If you read that letter, the letter is simply asking him to join us at a meeting.

[01:11:40] That's literally the only part of the question. Second. Motion is made and seconded by Supervisor Brixman. Discussion on the motion, I would just simply say, I think I don't really have anything else to say. When I have read all the things that have been said, it's basically we don't have any involvement with ICE for the 287G program except we have involvement with ICE.

[01:12:03] And again, maybe the misunderstanding are the words in the field because when he says it's in the jail, Anything, if it's a traffic stop, in my head, the sheriff deputies are in the field for a traffic stop. So just clarification, him joining us for clarification is all we're actually asking for.

[01:12:25] And it doesn't come from me. It comes from the board because the statement he made wasn't to me. It was to the board. Lastly, I would say not two hours ago, he put out another statement that said there are no ICE activities in the field.

[01:12:42] So I'm just, I just don't understand, I don't understand the message. I don't understand. So I'd like to have clarity. So that's all this is. It's an invitation for him to come over. Ms. Bricksman? Thank you, and thank you for bringing the letter forward.

[01:12:57] As my colleagues in the community know, I have been uncomfortable with the 287G agreement that the sheriff has with ICE. And I'm very uncomfortable with local taxpayer dollars being

used to support this mass deportation project, which appears to be unconstitutional, illegal, and we know is inhumane.

[01:13:18] So I do appreciate that. I think that having individual supervisors go to speak to the sheriff creates a lack of transparency. And this is a very public issue.

[01:13:35] It is an issue that our public is very, very concerned about, that our constituencies are very, very concerned about. So I am not interested in private conversations about this because the public has a right to know what the sheriff's department and the deputies are doing out on the street, are doing as it relates to the 287G agreements.

[01:13:54] And not only have we learned all of these things recently, but I have learned of several cases where the folks that were brought to our detention center have not been allowed to see their cases through, and they have not been permitted to have their cases completely resolved before they are transferred to ICE.

[01:14:17] So he also, the sheriff also sat here and said to us, as did Lieutenant Colonel Mosier, that anyone that's brought into our jail that has a warrant or a detainer from ICE, they're not warrants, they're detainers, anyone that has a detainer from ICE is not transferred to ICE until their case is complete.

[01:14:36] And that is also not true because I have learned of several cases where people are actually trying to get back to Loudoun County to attend their hearings, attend their court dates, and they're not able to do that because they've already been transferred to ICE and they've already been transferred to a detention center.

[01:14:57] So I have all kinds of issues with what I believe is a disingenuous portrayal of how the sheriff and our sheriff's department is cooperating with ICE.

[01:15:14] I would offer one friendly amendment, Madam Chair, and that is that all supervisors who vote for this to approve this letter would be allowed to sign it. Um, the reason that would be an issue is because a letter from the, from the board is a letter from the board. And, and when, when this happens, you have to have nine names on the letter and then you're going to have blank spaces on that letter. So a letter on behalf of the board, which is why I didn't shoot up a letter to him myself. It's a letter on behalf of the board.

[01:15:48] And I don't want to have blank spaces on the letter on behalf of the board, to be honest. Okay, I appreciate that. I think that blank spaces show who is not supportive of transparency with our community, but thank you.

[01:16:04] Ms. Umstead? Thank you, Madam Chair. The board's misunderstanding, including my own misunderstanding of the nature of LCSO's cooperation with ICE, is perhaps due to the fact that none of us is as knowledgeable as we should be about common law enforcement practices.

[01:16:24] We never knew what questions to ask. We were focused on 287G, and the sheriff may not have known we were this unaware. So I'm going to read the parts of the sheriff's letter that clarify things. LCSO cooperates with all local, state, and federal law enforcement partner agencies.

[01:16:44] LCSO does not conduct field enforcement with or on behalf of ICE. Our 287G collaboration with ICE is solely for persons already in custody at the jail on criminal charges unrelated to their immigration status, and only when those persons are scheduled for release.

[01:17:02] Further else, CSO deputies do not ask about the immigration status of persons during any encounter, nor do we delay or detain a person if we discover that they have an outstanding immigration detainer issued by ICE.

[01:17:18] Deputies routinely conduct computer database checks on people they encounter during any incident. This is a standard practice among law enforcement agencies nationwide. Among databases checked is the FBI's National Crime Information Center.

[01:17:35] NCIC includes entries by law enforcement agencies across the nation. These pertain to terrorist watch lists, persons wanted on criminal charges, persons for whom ICE has issued immigration detainers, and more. Deputies routinely use information in this database to have a better idea of who they are encountering, as well as the potential danger to themselves and the community.

[01:18:00] unless a criminal warrant exists and the respective agency is willing to extradite lcsos does not detain a person based on what is in the ncic database the information answered entered by ice includes persons with a history of violent crime those who have re-entered the u.s. after having been previously deported as well as those for whom there is an immigration violation. When ICE enters names into NCIC, it includes a request for a telephonic notification

[01:18:37] that a person of interest has been encountered by the LCSO or any other law enforcement agency. My personal conclusion is that LCSO honors these requests for notice regardless of the agency requesting it. ICE requests are treated the same as requests from DEA, the Virginia State Police, Fairfax County, or any other law enforcement agency. LCSO does not delay or detain anyone for whom ICE has only an immigration detainer. Thank you. Thank you, Ms. Umstead. Can I? Oh,

[01:19:13] you're out of time. I was going to ask you a question in your time, but I'll just do it in my closing. Mr. Kirshner? Thank you, Madam Chair. Obviously, I'm not going to support this for a couple of reasons. First, I might remind my fellow supervisors, and you know, I think we can get our questions answered one way, but I might remind our fellow supervisors that the sheriff in this county is elected by a population of the people. He doesn't necessarily answer directly to us. It's nice when they come. I do know that he has in the past, but also his ranking members have come and given regular updates about that information, and certainly we could ask them

[01:19:49] when they come here on their quarterly reports there's really i i feel like in some ways this is a little bit of they don't do quarterly we pledge anymore yeah well i guess we haven't done what no six months no they haven't done them for years no it hasn't been years mr hemstreet how long stop stop mr kirschner's time how long since the sheriff stopped doing quarterly reports with us it's at least been during calendar year 26 almost a calendar year okay fair enough so um i guess time flies when you're having fun honestly um but they they have been in front of us on a number of different occasions for different things.

[01:20:22] We all have the phone numbers, we can pick it up, call. I actually called Sheriff Chapman today, as he suggested, all of us. I had a conversation that was 14 minutes and 19 seconds, and some of that was taken up with him ordering a sandwich. So I would imagine that my conversation was about 10 minutes with him. I had all my questions answered on this particular matter.

[01:20:40] I also know that I have, when the Sheriff has been here in the past, certain members of this board, who did not even want to support increases income to our deputies treated him very poorly at various times, and I think that also has a bearing on whether or not he wants to come and talk to us and

allow us to be, allow, you know, 30 minutes, we're just going to talk at you rather than ask questions. I'm not saying that's the chair's motivation whatsoever here, but I do know that that happens on this board, and so, you know, as a constitutional officer, he has the right to come or not come. We certainly have the right to invite him. He's already told us, there's no need to pass this, right? He's already told us no,

[01:21:17] but if you want to talk to me, I'm happy to talk to you. And on top of that, I think he's answered all of our questions as Supervisor Umstead read on the September 15th, 2026 letter. He was pretty clear as to what it is. And I work in the criminal field. I'm very familiar with how the jails work. I'm very familiar with how detainers work. And this is, as far as I know, in my general practice, is almost 100% accurate. There may be a couple things I'm not sure about, but basically, as I understand it. If someone is pulled over, you run their background to see if there's any warrants out there. Sometimes something might pop up that says, hey, there's a detainer

[01:21:54] on this person suspected to be a terrorist or whatever the situation may be. And they share that information with their fellow, whether it's the FBI or, you know, Homeland Security or other law enforcement officers like ICE. And if you notice from his letter something that was left out, there have been literally, he went back over the 4,000, 40,000 233,000 calls of services and contacts, 49,000 traffic stops, only 13 encounters where ICE was notified when there was a notice that there was a detainer outside the jail. So I think these questions have been answered. I think this is a little bit more of a political stunt than it

[01:22:30] needs to be. And honestly, I would oppose this. I don't think we should be bossing our constitutional officers around. Thank you so much, Mr. Kirshner. Mr. Letourneau. Thank you, Madam Chair. So I may have supported the motion prior to today when we received the letter from Sheriff Chapman that effectively responded and answered the letter that we were going to send should the board have voted to send it. And so therefore, it doesn't seem terribly productive to me to invite the sheriff to come speak when he is, A, I do think actually answered the question and B, indicated he's not going to come regardless. So at that point, then it just

[01:23:09] sort of perpetuates a political situation we'll call it between the board and the sheriff that is probably not productive. I am glad that the sheriff's office did provide a written response in their words to what exactly the situation is and their policy is. I understand that I think there are a variety of opinions about what they do and what they should do and shouldn't do and how that may differ from other agencies or is the same.

[01:23:38] One thing I will point out from my own conversations with the sheriff's office is that this is not new. It's not something that started happening in the last, frankly, this presidential administration. It has always been their practice to respond when there is a notation and an NCIS check on somebody, regardless of the agency.

[01:24:00] And so that is not a new practice. It's not something new. not part of 287G at all. I also understand confusion about it because I myself was confused about it and didn't understand the distinction between field enforcement in which a deputy would take an action such as detaining somebody and the notification that is in NCIS. So I think the question of what the board thinks of the policy is an entirely different matter, But a letter asking to explain it when it has now been explained in writing and asking him to appear when he says he is not going to is probably not productive.

[01:24:37] I do find it valuable when the sheriff appears and the sheriff's office appears. I think that generally there should be a good relationship between the board and the sheriff, one that is respectful, one that can have disagreements potentially. And so I think it's healthy for the county when the sheriff is here and talks to us and his outstanding lieutenant.

[01:24:54] So I hope that we can get to a point where that does happen and continue. But I'm not going to vote for a letter when I feel that the question has now been answered and the topic covered in a written piece of information that can be provided, that has been provided to the public.

[01:25:14] Thank you. Thank you. Mr. Crony. Thank you, Chair Randall. So I will support the letter. I don't think the letter is disrespectful or a political stunt. I think we're just asking for the sheriff and some of his staff to come to the board and to, you know, just answer questions.

[01:25:40] I saw the letter, but the public doesn't have the luxury of having the letter. And I have questions. I don't have. Well, they do, but, but it's not, it's not, it's not transparent with the sheriff coming.

[01:25:57] It's in the, the letter's in the package. Oh, okay. So I guess the public can see the letter, but, um, but I do think that, um, answering questions is important and also just being, uh, accountable and transparent. And I appreciate the relationship I have with the sheriff's office.

[01:26:15] I appreciate all the deputies. You know, I don't have a law enforcement background, and I would appreciate him coming to the board more. Like, at least I know that the sheriff used to come to the board quarterly. I know, you know, I would be respectful to the sheriff and his staff, and it would give an opportunity for me to ask questions.

[01:26:38] I know some of the public, you know, has concerns and are scared to go to school and to go to work. And I think this will allow me to alleviate those concerns. And I do think it is a justified request.

[01:26:54] And I hope the sheriff will consider it. I hate to think that he thinks, you know, we're being disrespectful, because I mean no disrespect. I think it's an opportunity to ask questions and to also have concerns, to have people feel that their concerns are being heard.

[01:27:13] Thank you. So I'm going to strongly push back that this is in any way political. Truthfully, if Sheriff Chapman had not come here and said something different, I probably wouldn't be sending this letter. But because he came before the board and said that there were no involvement with ICE outside of the 287G program, he came to us and said that.

[01:27:35] I think it's reasonable to ask him to come to us and say something different. He didn't send us a letter that people have to go read. He came to us, which allowed us to ask follow-up questions, which allowed anyone in the county to see it. And we didn't even ask him to come before us when he did that.

[01:27:53] He chose to come before us and say that there were no activities with ICE outside of the 287G program. Now that we know that's not the facts, he's saying he'll send us a letter. I can't ask follow-up questions to a letter. And I do have follow-up questions.

[01:28:09] The fact that they say that they routinely use this database, but then they say they don't have to ask somebody about their immigration status. Well, of course, they don't have to ask them about their immigration status if it's in a database. So maybe I am, maybe there's something I am misunderstanding.

[01:28:26] I think when we say, when Mr. Kirshner says, we don't know their operations, exactly, I don't know. So when I don't know something, I am more than willing to ask. And there are times when I'll ask

and I want a follow-up question or a follow-up question. I don't think it's anything at all disrespectful about asking someone to come talk to us when that person has come talk to us already and said that.

[01:28:49] I do not believe I have ever treated the sheriff with disrespect, ever. And I do not believe that having him come ask doesn't mean we don't have workable relationships. I think adults can actually ask each other questions and ask each other follow-up and seek to understand without that being called political or without it being said that we don't respect one another. If we can't even talk without someone assuming we're disrespecting one another, then we have a whole lot of other issues. I think it's vitally important that the

[01:29:29] chair of the county and the sheriff have a working and respectful relationship, and I seek to do that. But I also will say that once you come to me and say one thing, and I find out that one thing is not how it was first represented, and then you explain it in the letter, that I cannot question the letter, and that the entire county cannot question the letter.

[01:29:55] I don't think it's, and you stop doing your quarterly reports with us. It's been at least a year before he's done a quarterly report with us. I think it's reasonable to not bossing anybody around, Mr. Kirshner. I think it's reasonable to ask him if he would please come talk with us.

[01:30:14] And so I stand by this request, and I wish he would change his mind. I made the motion. Supervisor Bricksman seconded the motion. I want people to say aye. Aye. Opposed? Aye. That motion, and Mr. Sainz, of course, is not here.

[01:30:30] So I think that would be 5-2-1 with Mr. I'm sorry, that wasn't 5-2-1, what was that? It was 5-3-1 with Mr. Kirsten, Mr. Sains, voting against Mr. Sains, something in the dais.

[01:30:48] When, just point of information, when something like this happens, the letter will now go from the board, Because the board is a collective body, so when something like this happens, the collective body, no matter what that vote was, is now sending the letter.

[01:31:05] That's how that works. Okay, I didn't think we were going to get to 530, and so we did. So we're not going to do the closed sessions because we're at 530. So we're going to go on and do resolutions, and then we're going to do public comments. So we're moving along a little faster than I thought we would, which is great.

[01:31:24] We're not going to leave the dais and go to closed sessions. So we're going to do resolutions. And then if people are here to speak, that's wonderful. We'll do that next. All right. The first proclamation, well, let me do my colleague's proclamation.

[01:31:41] So Ms. Glass, how about you join me down first for Disability Voting Rights Month? And then, Mr. Kirshner, how about you join me down front for Constitution Week? And then, Mr. Turner, Ms. Glass, and I'm trying to give Mr. Sainz some time to get here.

[01:32:01] I'm trying to, like, hopefully, because I know he wants to be part of this proclamation. And then, Mr. Letourne, how about you join me down front for childhood cancer? So, we'll start with Ms. Glass. If you join me down front, please. First. First number, is it?

[01:32:17] Three. Yeah, third. Plenty, sir.

[01:32:52] You are plenty. That's not them, those are mine, I think, I don't think so. That's Constitution Week and this is Diaper Bank, so you want to talk with somebody else first?

[01:33:11] And this is, here you go, here we go, there we go, like to trade places, here you go.

[01:33:35] Anyone here for the Disability Voting Rights Week, this is your time, come on down. - Thank you. - Hi, how y'all doing? - Okay, I'll go ahead and read the proclamation.

[01:33:50] Whereas Title II of the Americans with Disabilities Act, ADA, requires state and local governments and their election officials to ensure that people with disabilities have a full and equal opportunity to participate in all elections, and whereas this requirement applies to federal, state, and local elections, and includes all aspects of the voting process, such as voter registration, polling place selection, and voting on election day during early voting or through absentee voting, and whereas, according to the United States Election Assistance Commission, more than 35 million Americans with disabilities,

[01:34:28] representing approximately one-sixth of the electorate, are eligible to vote in the United States. And whereas, people with disabilities have a vital interest in public policies and government decisions at the local, state, and national levels that directly affect their civil rights independence access and full participation in community life and whereas the disability services board endorses rev up register educate vote use your power the national initiative dedicated to increasing civic engagement and strengthening the voting power of the disability community now

[01:35:05] therefore be it resolved that the Loudoun County Board of Supervisors does hereby proclaim the week of September 14, 2026 to September 18, 2026 as Disability Voting Rights Week in Loudoun County and urges all residents of Loudoun County to support the growing involvement of the disability community in the political process.

[01:35:31] Would you like to say a few words? As we all know, this is a voting month, I mean voting period that we're in right now.

[01:35:46] And so this proclamation assures that the county supports disabled citizens to vote in all processes. I want to thank Supervisor Glass. I want to thank the chair. I want to thank the board for supporting us in this effort.

[01:36:04] Thank you. So one of the things that I'm really proud of is after Bush v. Gore, there was committees put together all over the country in each state called HAVA, the Help America Vote Act. And the HAVA committee in Virginia, I served on the HAVA committee here, and one thing that was put in place is curbside voting.

[01:36:25] And so if you're somebody with a disability, whatever that might be, when you go vote, you have every right to have your ballot brought to your car and have curbside voting. It might be an age, it might be a mental health issue, it might not want to be around crowds.

[01:36:44] Whatever the issue is, HAVA allows you to have curbside voting. So if you ever think that you can't go vote on election day because of this, you can. And they will bring the ballot to you at your car.

[01:36:59] So, I wanna say that. All right, let's take a picture. - Take a picture. - Can I take a picture? - Sure, it is on. - On behalf of RevUp, I wanna thank the board for their support. And I also want to invite everyone to my informational table at Rust Library on September 19th, 11 to 2, to talk about and getting more information on these very topics.

[01:37:27] All right, we're going to take a picture. We're going to scooch over some, though.

[01:37:47] Kersner, can you join me down front, please? Thank you. That's the red one.

[01:38:03] I know. Small. It's back. Oh, Mr. Sainz. Hi. Good to see you. How y'all doing? You did make your cue.

[01:38:21] I'm glad to see both of you. Oh, you are? I'll stand on this side. You want me to read it? I need one to read.

[01:38:37] I don't have it memorized. Sorry. How are you guys? All right. We ready? I brought my glasses because I'm getting old. All right. So this is a proclamation for Constitutional Week. We have two representatives from the DAR. Thank you for coming. Whereas the Constitution of the United States of America is the guardian of our liberties and it embodies the principles of limited government in a republic dedicated to rule by law, and, whereas, it is fitting and proper to accord official recognition to this magnificent

[01:39:09] document on this memorable anniversary, and to the patriotic celebrations which will commemorate it, and, whereas, it is the privilege and duty of the American people to commemorate the 239th anniversary of the drafting of the Constitution of the United States of America with appropriate ceremonies and activities, and whereas, as a county, we reaffirm the ideals of the framers of the Constitution had in 1787 by vigilantly protecting the freedoms guaranteed to us through this guardian of our liberties

[01:39:47] and remembering that lost rights may never be regained. And now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim September 17th through the 23rd as Constitution Week in Loudoun County and encourages all residents to commemorate the history and importance of the U. S. Constitution and learn more about the document that still influences our lives today.

[01:40:13] Thank you so much, Supervisor Kirshner and Chair Randall and the Board of Supervisors. On behalf of the Catoctin Chapter, National Society, Daughters of the American Revolution, we thank you for recognizing September 17th through 23rd as Constitution Week here in Loudoun County.

[01:40:36] 239 years ago, our nation's founders signed the U.S. Constitution, a sacred charter of liberty that has guided our nation through every trial and triumph. It is fitting, therefore, that we do pause to honor our enduring principles that they entrusted to us of faith, duty, freedom, and personal responsibility, and to recommit ourselves to preserving them for the generations who will follow.

[01:41:04] We're grateful, therefore, for your support in helping us share the significance of the Constitution with our community and encouraging Loudoun County citizens to reflect on both the rights and the responsibilities of citizenship. Thank you so much.

[01:41:21] And just a couple, what, I'll make it quick with the K. Yes, we'll do that. So I just, first of all, want to thank the Daughters of American Revolution for continuing this tradition. I firmly believe we are a great nation because we have a great document which we have changed over the years and many of our founders and since our legislators and our presidents there have been amendments and changes made to it because we continue to I think strengthen this nation and make it better but it is something despite whether you're a Republican whether you're a Democrat or

[01:41:56] somewhere in the middle on either extremes I think it cannot be argued that all of us up here We give an oath to the Constitution to defend it, and we do the best that we can to, even though we have

policy difference and whatnot, it is so critical to the liberties that we all enjoy, including the liberty, the freedom of speech, the freedom of association, the freedom of religious worship.

[01:42:20] I love the Third Amendment, soldiers sleep elsewhere, and many of the liberties that we enjoy. So I'm reading a book right now on the revolution and why that Third Amendment, for example, was so important because it was required quartering of the soldiers. So anyway, thank you for continuing to keep this tradition up.

[01:42:37] Chair Randall, would you like to say something? I love the 19th Amendment that gave women the right to vote. That's what I love. And I think that truthfully our founding fathers for all of their faults and issues, and obviously they had many, were also visionaries that the voter constitution has withstood the test of time.

[01:43:02] even when it had to be changed. I think America is great because our people are good, and I think our people, it's what makes America great. So, ready to take a picture.

[01:43:39] Mr. Letourneau is going to join me down front. With everyone who is here for Childhood Cancer Week, please come down.

[01:44:20] Thank you.

[01:44:51] Okay, thank you everybody for coming. We do this every year, and it doesn't get easier any year that we do it, but every year that we do do it, we hear more about the progress being made, and it gives us hope.

[01:45:08] So it's that sort of spirit that I hope everyone takes away from this, as well as remembers. I'll go ahead and read the resolution first. Whereas childhood cancer describes more than 12 types and many more subtypes of cancer affecting children which typically cannot be attributed to environmental or lifestyle factors and whereas many of these cancers are specific to children with some affecting only those under five years of age and there's no early detection model for childhood cancer with the cancer typically spreading to other areas of the body before it is identified and whereas in the united states nearly 16 000 children under the age of 19 are diagnosed with cancer each year making cancer

[01:45:47] the leading cause of illness and death for children in the United States, and whereas there are over 500,000 survivors of childhood cancer in the United States, many of whom suffer from late medical effects from treatment, and whereas local organizations and initiatives such as Ellie's Hats, I Promise 15, Hope Faster, Smashing Walnuts, Team Matias, Sarah's Act of Kindness, Raleigh Foundation Virginia, the Quinn William Gorman Scholarship Fund, and more are working to raise awareness of childhood cancer, support patients and their families, and fundraise for research.

[01:46:22] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim September 2026 as Childhood Cancer Awareness Month in Loudoun County. And we are so fortunate to have some of the representatives from these local groups with us today. I'll start here. We'll move this way down to Chair Randall.

[01:46:48] Well, this actually next month will be 13 years since Gabriella died. It's unbelievable for me to think that i mean this county has been honoring our children for three years longer than our daughter was alive and so um i can't begin to express my gratitude um to our leadership here for continuing to

acknowledge our children and the need that we have to help them thank you thank you and thank you for what everything you've done to truly help drive those changes and the good news

[01:47:25] that we have. Thank you. My name is Roya Giordano. I'm here with Team Matias. This is Linda Giordano. I mean, Linda Long. Sorry. Linda Long. Chris Giordano was supposed to be here. He's not. Anyways, I want to echo what Ellen said. My precious, beautiful, athletic, amazing son was diagnosed at the age of 11 when he graduated fifth grade, and he passed away. He fought fearlessly. He had his leg amputated. He had multiple chemo, radiation, all that stuff, and he

[01:48:00] wanted to live, but sadly his life was cut short. He passed away in 2014, in December of 2014. He would have been 25 years old today, so we're crossing that bridge where he's been gone longer than he's lived here, but his life, light, and legacy is shining through this county because of our leaders so I'd like to thank everyone for allowing us and giving us this platform to mention our kids name and to allow you guys to understand and

[01:48:35] know that kids get cancer too so before you go pink in October go gold for a child with cancer please thank you hi I'm Angie I'm Sarah's mom and we are Sarah's acts of kindness and I brought Sarah with me today she passed away almost eight years ago she had a very treatable form of pediatric brain cancer and when she relapsed that's the treatments are ended up what was what killed her not her cancer and I just really appreciate you guys for always

[01:49:14] honoring our babies because they're still they're still present they're still with us and they still matter and I appreciate you so I appreciate we appreciate you all because with the work you've done will help somebody else's babies and it helps us remember and stay aware and I've said to you all so many times that not only do I am I floored by just who you are but I've also seen all of you share the tough times with your with your children and let people see what that that actually looks like and so and I think that is incredibly hard

[01:49:51] and incredibly brave your children stay alive because of what you do and other children will stay alive because of what you do and I know that's why you do it so thank you Mr. Letourneau has done this every year and always lets me join him down down here and I appreciate that so much so I think that by the way we also watched your other children grow up I mean Jake's in college what right I mean that's also been something I know no it's that's insane that's don't make me

[01:50:27] that's just yeah it's it is unbelievable so thank you for them but but you have not moved up but thank you for letting us I mean all of your children like I'll get all kind of aunties and uncles around here because you've shared them with us so much and so thank you all for doing that all right picture are we in

[01:50:48] the right place good we're good so believe it or not I actually when we do I actually want the men

[01:52:04] down here with me for diaper awareness week I know you have and Caleb has changed lots of diapers or you you probably have come on down I'm not kidding I'm not kidding seven seven Mr. Kirschner has seven kids. He, no, seven. Yes, that's right. Hi. Hi, how are you? Yeah, these, these, they have

[01:52:37] more children. Yeah, Mr. Kirshner and Mr. Laterno, got a lot of kids going on, those two. So, he has two. He has seven. Seven, seven, four, one, and two. Four, seven, four, one, and two. So, I thought the men should join us for, yeah, don't you think so? I always call the women down and, Then they should.

[01:53:01] Mr. Kirshner is keeping them in business. All right. For diaper awareness week, whereas diapers are an essential necessity for infants, toddlers, and individuals with medical conditions and are vital in providing a clean, dry, and healthy environment that promotes dignity, health, and well-being, And whereas, according to the National Diaper Bank, nearly one in two families with young children struggle to afford diapers, one in two families, and one in four parents miss work or school because they cannot provide the diapers required for child care.

[01:53:39] And whereas children use approximately 6,000 to 8,000 diapers during their first two to three years of life, with the average cost of diapering one child being between \$80 to \$100 per month, and whereas insufficient access to diapers can negatively impact the health of infants and toddlers by increasing the risk of diaper rash, infections, and other health concerns, while placing emotional stress on parents and caregivers, and it can negatively impact the seniors or people with disabilities who need diapers as well.

[01:54:17] And whereas the Northern Virginia Diaper Bank partners with several community partners to distribute diapers and essential baby supplies to families throughout Loudoun County, now therefore be it resolved that the Loudoun County Board of Supervisors does hereby proclaim September 14th through 20th, 2026, Diaper Needs Awareness Week in Loudoun County and encourages residents to recognize the importance of diaper access to ensure every baby, toddler, and family has the resources necessary to thrive.

[01:54:52] My name is Dee and Jane and Jana are here with me today. We want to first thank you Chair Phyllis Randall for recognizing Diaper Awareness Week and And the recognition that we are getting and also developing more awareness because many people don't know or think about the fact that there are some families that cannot, many families, one and two in the U.S., that cannot afford enough diapers for their children.

[01:55:28] And also what it does is it affects people being able to go to work or to go to school depending on their circumstances. So our non-profit is very important and the proclamation really is very deeply appreciated and we're very grateful to you.

[01:55:45] Thank you. Jane? I just want to thank to the generosity of our community. The Nova Diaper Bank has now distributed more than 1.8 million diapers and has helped more than 47,000 families with babies with toddlers.

[01:56:02] And so during this week, we ask everybody to join us, donate diapers, make a financial contribution, host a diaper drive, help us ensure that no baby in our community has to go without the diapers that they need. And we thank you, Loudoun County, for standing by our babies, our parents, and our community.

[01:56:21] We are honored and we are inspired. And together, we can change lives one diaper at a time. Do you want to give them the information on how to donate? Yeah, we have a website, we're also on social media, on Facebook.

[01:56:36] This coming weekend, the Benefit Crossroads Music Festival in Leesburg will be there. There's going to be like 30 different performances, and all the proceeds are going to be shared with five other nonprofits, and this year they have chosen the Nova Diaper Bank to support us.

[01:56:54] But we do have a website, novadiaperbank.org, and you can do a financial donation. We have five or six different locations within Loudoun County, Fairfax County as well, that you can drop diapers off. We take full boxes, partial packs.

[01:57:10] We take loose diapers. We even do where we sort diapers. You're all welcome to join us to pack diapers. But we do always look for the support of our community, and we are so grateful. Thank you. Seriously, these numbers one and two, I had no idea it was that high, actually.

[01:57:29] So thank you all for what you do. And then let's try to, with all these gentlemen who have all changed lots of diapers, let's try to take a picture with them. I'm going to actually put them in the middle.

[01:57:44] I'm going to go on the other side of them.

[01:58:22] I will. Are you going to be there this week? Can I sit here? No, this week. Can I sit here? Of course. So, yeah. Thank you. Thank you so much. This is our last proclamation, and we're right on time, because as soon as we finish this one, we'll go to public comments, and then we're going to go right into two items, and so no one has to even wait for us to do the items, so we're going to do them.

[01:58:47] I would first like the four legislative aides who wrote the proclamation to come down first, all four of you. So whenever there is a proclamation that we do, like for any one population for African-American History Month or for Jewish Heritage Month or whatever we do, I always say that the supervisors are not the ones who should lead that effort.

[01:59:13] The effort to write those proclamations should be led by the community. This year, our legislative aides took the bull by the horn and decided that they were going to write the proclamation for Hispanic Heritage Month. And they have been working on this proclamation for a very long time.

[01:59:32] And so I'm going to, before I call everybody else down, I'm going to have them introduce themselves and what office they work for. Mr. Sands, you should be down here with us. Ms. Glass, you should be down here with us, too, with office they work for. And tell them thank you so much, especially you, for doing this proclamation.

[01:59:51] Good evening, everyone. My name is Jason Medjivar, and I serve as the Senior Legislative Aid to Chair Randall. Hi, I'm Melina Hernandez, and I work for Vice Chair Turner, the Ashburn District. Hello, my name is Monica Haar. I am a legislative aide for the Sterling District Office.

[02:00:11] All right, would everyone here for the resolution please come down now. Hello, everyone. Good to see you. You're a kid. Good to see you again.

[02:00:37] Hi, how are you? Where's Sarah? Oh, there she is. Hello, Chief. So, you didn't do this right, so I'm going to mess up some of the things. Okay. Okay. So this is wonderful. Actually, more people can come on this side.

[02:00:55] More people can come on this side. All right. So we're going to read the proclamation. And I never do this because I never do this, but I will say that Jason, who is my aide in my office, the first person in his family to graduate college, he did that very recently, who worked on this for forever.

[02:01:19] I never do this, but I'm going to give this proclamation to Jason for him to read it. Okay. I have a tall task ahead of me, but I think I'll be fairly good. All righty.

[02:01:35] Whereas Hispanic and Latinos have a significant impact throughout Loudoun County, serving as doctors, nurses, firefighters, deputies, entrepreneurs, government employees, farmers, nonprofit leaders, and more. And whereas Blanca Ramirez, a native of Mexico, who has an impressive background in international diplomacy, trade, and commerce.

[02:01:54] Her experience connecting with people of different cultures, backgrounds, and languages serves her today as Executive Director of Loudoun Youth, Incorporated, where she works to empower, invest in, and uplift the future generations of Loudoun County. And whereas Richard Anibal Cabellos exemplifies public service by serving as the Manager of the Sterling Community Center, having served under Governors Mark Warner and Tim Kaine on the Virginia Latino Advisory Board, and is a proud son of Peruvian and Honduran immigrants.

[02:02:22] And whereas Misael Ortega of the Loudoun County Combined Fire and Rescue Station 18 has served as a firefighter at EMT for five years, is a first-generation firefighter and son of Honduran and Salvadoran immigrants, he is the inaugural recipient of the Firefighter Trevor Brown System Excellence Award.

[02:02:43] And whereas Sarah Lombraña has decades of experience in public service and law enforcement, having served in the U.S. Army and as a patrol officer, detective, lieutenant, captain, deputy chief, and now serves as the chief of police for the town of Percival.

[02:03:02] And whereas Abraham Avila, originally from Mexico, demonstrates service and entrepreneurship as a former U.S. Army infantryman and is now the owner of Casa de Avila Tacos in downtown Leesburg, bringing vibrant Hispanic and Latino culture to Loudoun County through his food. Now, I'm sorry, whereas Nancy Cortez of the Sterling Volunteer Fire Company has demonstrated outstanding dedication to public safety as with a firefighter and EMT. Notably, she served on the February 16th, 2024 alongside the courageous first responders at the major house explosion at Silver Ridge Drive in Sterling and has remained unwavering in her commitment

[02:03:42] to Loudoun County residents, earning her well-deserved promotion to the rank of firefighter in December 2025. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim September 15th, 2026 through October 15th, 2026 as Hispanic and Latino Heritage Month in Loudoun County and encourages citizens to celebrate the vibrant Hispanic and Latino culture.

[02:04:18] Um... Does anyone else have anything they want to say? First of all, the three of you, before we go on. Anything? Yes. I just want to say that I'm grateful to work for a county that takes the time to celebrate Hispanic and Latino culture, as I am a proud Latina, and I'm very happy to celebrate my heritage.

[02:04:40] I'll just say a couple words, though. Giving me a mic is always scary because I talk too long. But it continues to be one of my favorite proclamations to write. It actually was the first proclamation I wrote when I started working for the chair. And I genuinely love it. I think one of the things that I decided to do when I started leading this effort was highlight the impact that the culture has in this county. And there's seven people up here in various sectors of this county that have an impact each and every day that's not witnessed by everyone. But it is important to remember that

[02:05:18] that impact is there. It's not always seen, but it is there. And I think, you know, as the county is 14% Hispanic and Latino. For me, it is important for those achievements to be recognized, and everyone

up here has an achievement in their own right. And like the chair said, I was the first to graduate college, and I absolutely loved it, so I've got to give the mic away.

[02:05:48] I think everything has been, if you want to pass these out, been said. I do want to thank the people who wrote it, and I want to thank all of you for being here. Chief, where are you? Listen, I appreciate and respect and thank everybody up here.

[02:06:03] Chief, I think you are one of the most phenomenal women I've ever met in my life. And I'm so glad that you are in our county and in Percival and doing the job that you are doing. And you deserve all the accolades that you get every single day. Thank you so much. Thank you so much. All right.

[02:06:19] Are we good? Mr. Everybody else good? Yes? All right. I don't know how we're going to do this picture.

[02:08:13] Colleagues, we have a very, we're going to have a very long time on this dais, and so if you need to step away to do whatever you may, because we're going to do public comments, but we're not going to take a break before we do the two items, because with this many people in the room, if we went to the back and did two to four closed session items, we could be back there easily for an hour.

[02:08:38] And I'm not going to leave this room full of people waiting to see these items for that long. And so buckle in. I know it's going to be a long time before we step off and take a break. And I'm sorry that it may be a long time, but it's important that we also recognize that people have got to get up at 5 o'clock in the morning and things like that.

[02:08:58] So we're going to do the comments and then do the items. If you are here for public comments, I'm going to, you will have two minutes, when your name is called, please come to the podium closest to you, the podium, the time on the podium tells you how much time you have, although I will say that this podium says three minutes, and this podium says two minutes, and so this one says two on that side, okay, then as long as they can see it on that side, I'll watch these over here, okay, thank you.

[02:09:34] The podium on the time says, I would like you to direct your comments toward the board and not toward the audience, because you have come to speak to the board. When your time is up, just go on and yield the floor to the next speaker. If you are calling in and you cannot see the clock in the room, I'm going to ask that you set your own clock, because when you get to one minute and 30 seconds, I don't want to stop you because it messes your flow, but when you get to two minutes, I will stop you.

[02:10:01] I would try to call your names, about three names in advance, so that you can work your way out the pews and come up. If I in any way mispronounce your name, please, when you come up, correct me, and I apologize in advance for mispronouncing your name.

[02:10:17] It is my practice, and it's always been my practice when we have elected officials in the room, that I will go on and call them first. It is my understanding that the mayor and vice mayor of the town of Levittsville are here, and so they would be our first and second speaker, but do not worry if you've signed up and you're still within that the first set of 90 minute speakers even though we have these two first we will get you all in we will do this for 90 minutes at the end of 90 minutes then speaking is over and we will go on and go to the items at the end of 90 minutes so that's how this is going to roll today

[02:10:57] so let's start with Mayor good evening good to have you here and you are first Sir. Good evening, Chair Randall and distinguished members of the Loudoun County Board of Supervisors. My

name is Mayor Christopher Hornbaker from the fine town of Lovettsville. And I would take this opportunity to invite each of you to our Lovettsville Oktoberfest on October 26th.

[02:11:20] This is not just a shameless plug from a prideful mayor. This is actually your chance to see Lovettsville in action, where we showcase what makes Lovettsville special. It also is going to give you an opportunity to imagine two dozen 185-foot towers that are going to be lining either the north end or directly south of the great fire station that you all provided for us a few years ago.

[02:11:50] This is not what I want the legacy of Lovettsville or Loudoun to be. And that's why I ask, in relation to 14L and because of 14M, that you join the town of Lovettsville, the great folks in Clark County, Virginia, and Frederick County, Virginia, who have taken the steps to speak out against Valley North.

[02:12:14] And on both the capacity as the mayor of Lovettsville and as a member of Colt, we are ready to do anything that you request to help you protect the gaggle that is Loudoun County. Thank you, Mayor. Mayor, is the Vice Mayor here?

[02:12:31] He is. He is. Okay, I did not see you. I'm sorry. So you're going to be followed by Sarah Chin, and then you will be followed by Charles Hansen. Good evening. Good evening, Chair Randall and members of the board. My name is Tom Budner, Vice Mayor of Levittsville, and I'm here tonight to urge you to adopt the resolution opposing Valley North 765 KV transmission lines.

[02:12:53] Levittsville is a tight-knit community known for its rural charm, scenic vistas, agricultural heritage, and historic character. The Valley North project would place 185-foot steel lattice towers on a 200-foot wide, permanently cleared right-of-way through farms, conservation easements, historic cemeteries and churches, active and planned developments, and protected habitats.

[02:13:18] Your draft resolution recognizes that these study segments cut directly through the Levittsville Historic District, Taylorstown, and lands protected by county and federal easements, places Loudoun has invested for decades to preserve rural character, agricultural tourism, and scenic assets.

[02:13:36] Beyond visual and cultural harm, there are unresolved health and environmental questions associated with very high transmission lines. Reviews of extremely low-frequency magnetic fields show a statistical association with childhood leukemia and other significant diseases.

[02:13:55] Construction of a brand-new corridor, including deep excavation, heavy equipment, vegetation clearing, and long-term herbicide use, poses risks to soils, streams, and groundwater. Western Loudon relies on fractured rock aquifer already understudied by the Virginia DEQ for potential stress.

[02:14:16] This project adds uncertainty at a time when we need more data about our water resources. The Valley North project is incompatible with the goals of the Levittsville Comprehensive Plan and with the county's longstanding conservation investments. Please stand with Levittsville and our neighboring jurisdictions in insisting that grid reliability cannot come at the expense of our community's health, heritage, and water.

[02:14:41] I respectfully urge you to adopt this resolution. Thank you. Thank you, sir. Thank you. I think it's Sarah Chin, followed by Charles Hanson, followed by Tom Donahue. Good evening, ma'am. Good evening. My name's Sarah Chin, and I've lived in Loudoun County for over 20 years.

[02:14:58] I've watched it go from green pastures with livestock to feeling like livestock, as our homes and health have been sold out to feed corporate greed. We've built more than enough data centers in this

county. Loudoun is infamous for them. We must have a full stop, and this moratorium is the beginning.

[02:15:14] In a prior board meeting, you cited that data centers only use 10% of the daily potable water in western Loudoun, and data centers only take up 3,700 acres of land. But are these stats things to be proud of? What are you trying to say here, that data centers have more resources to take?

[02:15:30] Also, you claim that these data centers are planned development, But then why are we rushing to build substations and power lines because we're running out of electricity? Which is it? Did the county plan or not? I'm tired of being gaslit for being told it's NIMBY, not in my backyard, to protest data centers or substations or power lines because they're ugly. But they're not just ugly, are they? Data centers take up our resources. Water, land, roads, clean air. Just look at the Sterling data center running on diesel. And I'm sure your tires take a beating every time you drive through data center alley. Those roads are pretty beat up from the constant construction. Your residents deserve safe, secure, and beautiful neighborhoods. Don't

[02:16:10] tell us looks aren't important. They are. We choose to live here and we deserve a beautiful county where we don't have to fear future development. This board has continuously told us there's nothing you can do. Well, maybe it's time for a new board who can figure out a way. Other counties have moratoriums and bans. Why don't you? Let me remind you, data centers don't vote. People do.

[02:16:32] The last time I checked, data centers can pay to fill this room, but it is illegal to pay for our votes. So please, do your jobs. Shut them down or we vote you out. Thank you. So I apologize because before we started the meeting, I did not say that during public comment, we don't cheer or jeer because if I allow cheering, we have to allow jeering. If you allow jeering, you can get out of control you can jazz hands or something else and I should have said that before we started and I

[02:17:08] forgot to so that's my bad but yep thank you so much. Hello Mr. Hanson you're going to be followed by Tom Donahue. Thank you good evening my name is Charles Hanson my family and I live in the Catoctin district I'm an LCPS high school math teacher and I co-chair the coalition opposing the Valley North transmission line project. I want to especially thank Chair Randall and Supervisor Kirshner for sponsoring this BMI. The Valley North Line would be among the largest in North America and the largest in Loudoun County. There is nothing reasonable about placing 765 kilovolt towers and lines near homes, farms,

[02:17:47] churches, schools, and cemeteries. Valley Link's proposed routes would cross or can come dangerously close to family backyards, historic farms, businesses, and and dozens of conservation easements, many of them held by this board.

[02:18:03] The state-designated Catoctin Creek Scenic River, one of only two state-designated scenic rivers in this county. Historic cemeteries, including the graves of 33 Loudon Revolutionary War patriots. Lovettsville Elementary and a senior community center are both less than a quarter mile away.

[02:18:23] And the Gold Star Veterans Memorial, barely 400 feet away. It does not have to be this way. ValleyLink could mitigate these impacts by using buried, high-voltage, direct current, or HVDC lines.

[02:18:39] Claims that undergrounding a 765-kilovolt project is impossible is gaslighting, pure and simple. Buried HVDC can deliver more power to Loudoun and provide greater reliability than overhead 765-kV lines.

[02:18:56] If we don't stop this project, and if data center construction remains unpaused, Loudoun will become a web of high-voltage transmission lines converging on data center alley. This is not the Loudoun many of us would choose to live in.

[02:19:11] I urge the board to support this BMI and insist that every viable underground alternative be fully considered. Thank you. Thank you, sir. Tom Donahue, followed by Joe May. Good evening. Good evening.

[02:19:27] Tom Donahue, Catocton District. Thank you, Supervisor Kirshner and Chair Randall, for sponsoring tonight's resolution against Valley North. Our community opposes any 765 kilovolt line anywhere in this county, or for that matter, in this region. We cannot push this line onto somebody else.

[02:19:43] If 765 lines are allowed to metastasize into this region, it will raise the standard of pain and sacrifice expected of all of our communities. We will all complain about the impact on our communities, But the language in the law to reasonably minimize adverse impact to the greatest extent, reasonably practicable, is just lawyer talk for don't care.

[02:20:03] We need the county as a champion and a center point in a united fight here in Loudoun and in partnership with neighboring counties. And we would also need your help to sponsor a public SEC hearing here in Loudoun. We will need sophisticated technical and legal expertise to validate and argue our case in terms of need and reliability.

[02:20:20] If we cannot stop this line, we must be prepared to put forward a more reliable alternative that reduces the impact on our communities to the greatest extent possible. Underground HVDC is a credible alternative with the SEC now that PGM has approved a major Dominion HVDC proposal along Virginia's power backbone.

[02:20:39] This is not just about Western Loudoun. In July, we saw how the large concentration of load in Loudoun is destabilizing the national grid when all that load shifts to backup any time there's a problem with the grid. As the load here in Loudoun continues to grow, the shocks to the grid will be more severe.

[02:20:57] We will then be told that more 765 lines are needed because this large, isolated 765 line on its own will be too large to fail. Those additional 765 lines will need to branch out of the proposed Rocky Point substation in all directions.

[02:21:13] We can do better with HVDC, but we need your help and leadership. Thank you. Thank you Mr. Donahue. Delegate May, you are next. You'll be followed by Mary Ann Mueller, followed by Vicki Hugh. Good evening Delegate May, it's good to see you.

[02:21:32] And good evening. I'm Joe May of the Leesburg District. And in 2000, the year 2000, the County Donating Administrator determined that data centers were classified as office use.

[02:21:47] That made them by right anywhere offices were allowed. There were no public hearings and no vote was made by the Board of Supervisors and this decision has stood for 25 years. Of the applications that did come to the Board, 32 of 39 were approved between 2022 and May of this year, 2026.

[02:22:16] I served 20 years in the House of Delegates. Nobody voted on it there either, and it accumulated the decisions, one administrative decision at a time. There was no voting done at the House of Delegates or legislature level.

[02:22:35] The standards being written now are the first real rules this county has had for these buildings. We ask that they be finished before you approve anything else under the rules that produce this. Please adopt the board member initiative on Valley North tonight.

[02:22:55] It costs the county nothing to do so, and then please direct staff to prepare the pause resolution. The bill for 25 years of not deciding is arriving now, and it arrives in the form of towers, substations, generators, and higher rates in every district.

[02:23:17] Projects like Valley Link have limited, have united Loudoun residents to come here tonight and say, do it right. Support them tonight. What has united Loudoun is a demand for a pause.

[02:23:35] Finish the rules before you approve more. Thank you for your time, and thanks for the opportunity to speak to you. Thank you. Thank you, Delegate May. Thank you. Marianne Mueller, you're going to be followed by Vicki Hugh. Ms. Marianne, are you here?

[02:23:53] Marianne Mueller, going once, going twice. Okay, Vicki Hu, you will be followed by Dorna Trainter, and you will be followed by Victor Block. Good evening, Ms. Hu, how are you? Good, thank you.

[02:24:09] I am Vicki Hu from Loudoun Valley Estate. I saw my neighbors, their home on the lane this county told us was a protecting open space. Last year, June, our lives were ruling by the phone call telling me the Dominion want to run a power line in my land, destroy the place, mean to be protected, and force us to live next to a dangerous EMF radiation that will kill us, slowly but surely.

[02:24:37] What all this taught me is that you cannot sit back and wait. You have to stand out and to be heard. Does it make any sense to sacrifice thousands of homes and destroy hundreds of miles of forest for the project like Golden to Mars and the Valley North?

[02:24:54] Just to create a few hundred temporary jobs and to feed multibillion-dollar companies even more money. We cannot sit back and let outside force keep destroying our lives on the people who already live here. 250 data centers that already carry 70% of Europe's data service is enough for Loudoun.

[02:25:14] And the residents who pay \$1.5 billion property tax should know what's best for our land. Enough is enough. Until data centers are willing to pay their own infrastructure and underground line, we must post any data center application and construction.

[02:25:34] Our residents build a community, and the community build a school and business. Not a data center, not a dominion. We pay our taxes and we don't get a billion dollars tax exemption from the county and the state.

[02:25:49] All we need, all we ask is to have a seat at the table and to be respected. Projects like Golden Thomas and Valley North have united residents to show up and say to finish the roof first. put residents ahead of corporate greed. Thank you. Thank you, ma'am. Dorna Tainter, you will be followed by Victor Block. Good evening, ma'am. Hi, I'm Dorna Tainter. I'm sorry. It's okay. From

[02:26:24] Waterford, I'm urging the board to adopt the resolution opposing the Valley North transmission line and to support a pause on data centers while new performance standards are set. And I need my paycheck from the CCP, too. Thank you for the forceful Valley North resolution.

[02:26:40] I'm completely opposed to the line, and I've seen this board work really hard on lines. If we don't address the root cause, I'll be watching that for years to come. A data center argument is low

property taxes and excellent services. They're the lowest property taxes in northern Virginia, average nationally, and that's needed.

[02:27:00] But when a new data center pops up right next door or a tower pops down in your backyard, those savings get canceled by property value loss and much more than money, as we'll hear you here tonight. The SEC and others are considering the issue of who pays for lines that are primarily needed for private corporations, but a big issue remains, eminent domain. Residents and small business owners still bear all of the fallout from eminent domain. Government power used to increase the profits of the richest corporations in history at a high cost to residents is not only unfair, but deeply concerning. We suffer real and permanent harm.

[02:27:40] The AI industry is in turmoil, and it's a risky bet. So yeah, we're upset over an industry that uses 1% of our land and is generating huge tax revenues. 25 years ago, we had a strong grid, but these data centers are not the same, and we're just starting to change our laws.

[02:27:58] That's eons when it comes to the internet. Technology has changed faster than our laws. unprecedented situations require bold solutions. Many areas have done that, but not us. Waiting for standards is temporary and will mitigate some of the fallout.

[02:28:15] Thoughtfully addressing these issues lets us longer enjoy the benefits of data centers. The actions of this board, time, will be affecting the next generation. The damage is permanent. - Thank you, ma'am. Thank you.

[02:28:31] Victor Block followed by William Taggart. Good evening. How are you? Good. Good to see you all. I'm Victor Block, president of Loudoun Valley Estates HOA. It'd be great if we could get a pause so we could maybe figure out a plan that a few of us have been talking about.

[02:28:49] Plus, we'd all love a break from meeting this way every few weeks. I bet Dominion would love it too. We don't have paid organizers and staff or bankrolls of the unions or the data centers represented here tonight. We just live here. Every day with no real plan compounds the problem.

[02:29:06] We're racking up a big bill, and that bill is becoming due. Dominion and the data centers know it, and they've leveraged it. Wait till next era happens. Jobs matter, we all get that, but so do jobs that last. Once a data center is built, the crews move on, and a handful of people run it.

[02:29:24] There is still a pipeline. Lada needs to diversify now, because one industry towns work until they don't. We have to be realistic. More data centers are coming. More power lines are coming. We have never said no. We've said do this better.

[02:29:41] But not everyone in a green shirt tonight lives in this county, but we do. We're the ones telling you that this is not what we want. This is sensible, this is good governance, and this is what your constituents are asking you to do.

[02:29:58] A pause. Let's get this right. Projects like Valley North have United Loudoun residents to push back and say, do it right. Support them tonight, hold that substation on the agenda too, and let's figure out a plan. What is the United Loudoun is a demand for a pause.

[02:30:16] Thank you. Thank you, Mr. Block. William Taggart, followed by Woody Turner. Good evening, Mr. Taggart. Thank you for having me here. I'm William Taggart. Most of these days, I'm known as Vicki's husband, for the better or for the worse.

[02:30:38] What you all have heard here is a repeat over and over and over again. We know that the Dominion needs a backbone, but so does this council. It's time that you get off your benches and start to look at the people that you serve.

[02:30:55] We're going through hell at the cost of our lives, our livelihoods, all for the corporate greed that's inspired you all to produce all these data centers in our neighborhoods. It's time to make a change and to live the lives that you should live.

[02:31:16] That's all I have to say. Thank you, sir. Woody Turner. Mr. Turner, you're going to be followed by, I'm sorry, give me one second, Stefan Basvik.

[02:31:32] Good evening, Mr. Turner. Good evening, Madam Chair and members of the board and Mr. Rogers and Mr. Hempstreet. My name is Woody Turner. I live and work in Leesburg and have done so for a number of years. I helped prepare the legal memorandum that the Turner Law Firm submitted to you all today.

[02:31:52] I think Brian will leave a copy with the clerk on his way up here or when he finishes. That opinion clearly confirms that the board has full legal authority to enact a limited deferral of actions for special exceptions for data centers and substations.

[02:32:10] I support your taking that action. I also support the action you're going to take on Valley North. Time is limited, so I will yield the rest of my time to others so that they may speak. Thank you. Thank you, Mr. Turner.

[02:32:27] Stefan Vazvik, followed by Brian Turner. Good evening, sir. Good evening. I split the Turners. I'm Stefan Vazvik, Vice President of London Valley Estates, HOA and Sterling.

[02:32:44] As we heard, the Golden to Mars 500 KV line is routed through our community. And it's not decided yet. It's not decided, and we're already living with what this has done. Neighbors who never want to leave has left and lost to do so.

[02:33:03] Others are weighing it but cannot move and stay in Loudoun. The conflict inside our neighborhoods is its own cost. Following this, another data center in Sterling, fed by high-voltage lines running through Ashburn, broad run along Route 7, originating at a massive substation, sitting among many others on what used to be one of the best trails around.

[02:33:33] And now it's going to be fed by an enormous 765 kilovolt line coming from the west across farmlands that never was supposed to be touched. What have we done? Where are we going?

[02:33:52] The people who draw these lines do not live here. But we and this board are the only one in the chain that does. Project Light, the Valley North, has United Loudoun residents to push back and say, do it right.

[02:34:09] Support them tonight. What a United Loudoun is demanding for a pause. Finish the rules before we approve more. Thank you very much. Thank you, sir. Brian Turner, followed by Teresa, I think it's Cazori, if I said that right.

[02:34:27] Good evening, sir. Good evening, Chair Randall, members of the board. I'm Brian Turner. I'm the attorney with the Turner Law Firm, and I'm asking you to place a pause on legislative data center and substation applications. As you are aware, I sent the board a legal memorandum today on behalf of the larger community of residents and organizations who have reached out to us about this matter.

[02:34:48] To be clear, I'm not proposing a full-blown moratorium. What we propose is a temporary hold on taking final action on legislative applications, zonings and special exceptions that are narrowly tied to the standards this board is already writing in phase two. Board action on zoning amendments and special exceptions are a core legislative function under Virginia law. Filing an application creates no vested rights and no entitlement to a final action beyond the one-year time limit which could and perhaps should result in the denial of

[02:35:22] an application if not voluntarily agreed to extend by the one-year deadline. Our proposal plainly does not touch rights already vested and offers significant protection against any challenges raised by litigant-prone applicants. We know from experience that approving more data centers will result in more projects like ValleyLink and the proliferation of more infrastructure that negatively impacts our communities. A limited pause will not stop every additional substation or data center, but it will send a clearer signal that the Board of Supervisors has finally realigned its policy away from protecting the governmental interest in data center growth

[02:36:00] to protecting the public interest in the health, safety, and welfare of its citizens. We support the BMI and ValleyLink, and we support a pause on legislative data center and substation applications. Thank you. Thank you, Mr. Turner. I forgot to ask who's doing the remote line today. Is it Andy? Is it Andy? Andy, can you hear me? Yes, I can. Loud and clear.

[02:36:24] Is Alfred Guzzori on the phone? Yes, he is. He is next. I'm sorry. No, I'm sorry. I'm sorry. You were next. That's my dad. That's your dad. Okay, you were next and then your dad. We're ready when you are, ma'am.

[02:36:41] Okay. Hi, my name is Teresa Giorzi. I live in the Catoctin District. I've lived there in northwestern Loudoun County for 47 years. I run the Stop Morrill, Virginia, Stop Valley Link, Virginia websites, and I'm part of that transmission opposition group.

[02:36:56] I want to remind you that there are two high-voltage alternating current overhead lines being proposed to cut through northwestern Loudoun. There's the 500 kV Marl-Gordob's Goose Creek on 185-foot poles, plus the even larger Valley Link 765 kV line.

[02:37:17] In the resolution, I noticed that the staff recommendations opposed to greenfield rows in the transmission siting parlance. Greenfield applies to an area that has no existing infrastructure. Brownfield is used to describe properties with existing rows. This implies routes except those co-located by the existing row are being opposed.

[02:37:39] There are homes along that route that would have two 500-kV lines on one side and a 765-kV on the other. Similarly, there are homes in Frederick County like that. These lines must be opposed in their entirety anywhere inside of the state of Virginia.

[02:37:55] This needs to change. On page 5 and 6 under the wherefore there be resolved, number 4 says that on the conservation or diversion of land held in open space easements by the board for an overhead 765 kv line outside existing corridors.

[02:38:16] I wanted to remind you that River's Edge open space easements, which the county holds, are in the existing corridor. This leaves open the conversion diversion of those open space easements. We would like you to remove that and honor those easements as well. Under fiscal impact, it says none, but I would

like to let you know that a firm with the capability to propose an underground HVDC alternative that is acceptable to the Virginia State Corporation Commission is not going to be cheap.

[02:38:47] Ma'am, I'm sorry. Your time is up. Thank you. Thank you very much. This is your mom and dad on the phone next, ma'am? This is your dad and mom? Because I have Alfred and Irene. Yes. Okay, wonderful. Giorzi. Giorzi.

[02:39:03] Yep, that's it. Thank you. Thank you, ma'am. Mr. Alfred Giorzi, and then you will be followed by Ms. Irene and Giorzi. Madam Chair and members of the board, as you know, as my daughter has made crystal clear, the entire Giorzi families vehemently oppose the Valley Link transmission line anywhere in the county, including all those routes and the maps attached to the resolution.

[02:39:35] I commend the board for stepping forward. I will not repeat many of the great points made by the prior speakers in order to be briefed. I do have, however, one issue which is somewhat perplexing to me.

[02:39:51] The county's high-voltage transmission corridor is located in northwest Loudoun County. Valley Link is proposing its lines to be located in northwest Loudoun County.

[02:40:08] Does the Planning Commission's transmission corridor trump the resolution? I hope not. So I suggest the language be added to the resolution to the effect that notwithstanding the provisions in the county plan related to high voltage transmission corridors, the board opposes the project and it cannot be located in the northwest transition corridor.

[02:40:38] Thank you for the opportunity to speak. Thank you, sir. Ms. Irene Giorzi. Yes. My name is Irene Diorzi, and I reside in northwestern Loudoun County.

[02:40:57] The board was elected to represent the entire county, not just its favorite constituents. This resolution states that you oppose a new transmission line right-of-way through Loudoun County.

[02:41:17] In addition, you oppose a 765 outside the existing corridor. Your staff opposes a 765 only if it invades the Greenfield. The board designated Northwestern Loudoun as the transmission corridor in its comprehensive plan.

[02:41:40] You deliberately convoluted language. You are giving approval and free reign to any company to locate any and all lines, even a 765 in Loudoun County, provided they locate your approved transmission corridor through northwestern Loudoun.

[02:42:00] I assume you are aware that the past 765 proposal entailed a one-mile corridor within which to cite its line. I doubt if Valley Link would be satisfied with anything less. You are elected to represent all of Loudoun, not your favorite constituents.

[02:42:19] No 65 lines anywhere in Loudoun. And place all high-voltage lines on the ground with HVDC current. Use your highways to bury the lines. Thank you.

[02:42:36] Thank you, ma'am. Thank you. The next speaker is Agneziga. It's A-G-N-I-E-S-Z-K-I, Ranelis.

[02:42:52] And I'm sorry if I mispronounce your name. You will be followed by Matthew Elkin. I apologize. Okay. My name is Agnieszka Ranelis. My husband and I have worked very hard for many years so we can move to western Loudoun County, but has breathtaking nature views.

[02:43:10] Late 2024, our dream came true, and we bought a home in Lovettsville. Together with our kids, who are two, four, and six-year-old, we love living here. Lovettsville is a lovely place, full of nature, farms, horses, goats, deer, wineries, breweries, tree farms, and more.

[02:43:32] On top of this, Lovettsville sunsets are one of the best ones. Proposed power lines would totally destroy Lovettsville and its charm. My family is extremely upset, including my very young kids, and opposed to power lines.

[02:43:50] Additionally, this would directly affect our 19 home HOA community, Waterfield Hamlet, where there is a plan to have lines. Trees and possibly even some houses would be gone. We are not opposed to the advancements that are needed so our country can continue to develop.

[02:44:10] However, we are opposed to doing this at our cost and lack of better solution to preserve this beautiful countryside town. underground lines could be a win-win solution. Many data centers were approved without clear plans for adequate power infrastructure.

[02:44:31] My family and I urge the Board of Supervisors to pass the proposed resolution opposing Valley Link North and ensure Western Loudoun County and Lovettsville current residents and future generations are protected and not harmed.

[02:44:50] Thank you. Thank you, ma'am. Matthew Elkin. You'll be followed by Brandon Mistry. Good evening, sir. Thank you. My name is Matthew Elkin. I live in Lovettsville. This board holds easements on my property and that of my neighbors and my community. I want to bring a little bit of history. Over 100 years ago, serious people like the people in this room talked about serious projects like the C&O Canal and the W and OD trail. At the time, those projects seemed like a good idea in a particular

[02:45:24] historical technological moment. Just like some people might think dragging an extension cord through Loudoun County to power data centers sounds like a good idea. At least some people who have proposed it and will be paid lots of money to continue to propose it. But the fact is technology changes. We already heard about technology for how power lines can be more efficient, can do things underground. Google says that data center consumption per compute, compute is becoming more efficient. Data centers will be changing. Data centers ask for a lot of

[02:46:00] power because they know they won't get it all. Dominion asks for a lot of power because they know they won't get it all. And PJM doesn't really know what to do, so they just grant lots of proposals thinking some of them will be proposed. This project is not needed.

[02:46:16] Data centers will innovate, they will have batteries that take power when demand is low, and can give them power when the grid, when they can't be tapped into the grid. But your authority doesn't affect that need. Unfortunately, the law has put the need question at PJM and FERC and in other complicated areas.

[02:46:38] What you can do is enforce easements. You can be practical about what the law does give you within Virginia legislature to make sure that the lines are not disruptive and just put lots of barriers in front of this project so that 50 years from now people don't look back at this project and they see it as a dead corridor that the best use is going to be a park that in its construction disrupted lots of people.

[02:47:06] Thank you. Thank you. Thank you, sir. um um brandon mystery hello my name is brandon mystery and i'm a data scientist by trade with a dual masters from uva's darton business school the board's

vision for Loudoun is to be prosperous inclusive equitable and sustainable community where residents and visitors feel free to live work learn and play that vision is only possible with consistent and sustainable tax revenues. Dorn emphasizes that sustainable and safe investments are those with a diverse

[02:47:39] portfolio. If ValleyLink is approved, Loudoun's tax revenue portfolio becomes riskier and more unbalanced than it already is. Since nearly 40% of the county's tax revenue currently comes from data centers alone, we could lose this revenue because of unpredictable tax incentives from locations outside of Loudoun and or changing technology. My analysis shows that approval of ValleyLink causes a sharp decrease for the remaining 60% due to declining property values

[02:48:12] and eroding business margins. 882 Loudoun properties are either affected by ValleyLink or within 1,000 feet of the proposed line. Together, these properties have an assessed value of \$224 million with an estimated \$60 million reduction in property value. Farms would lose acreage for essential shade structures, livestock shelters, watering infrastructure, which limiting the carrying capacity of the pasture, resulting in eroding margins and therefore reduced revenues.

[02:48:48] Additionally, I've identified 25 Loudoun County breweries, wineries, and vineyards that command up to 50% higher margins because of unobstructed scenic views. The Valley Link project eliminates that competitive advantage, resulting in an estimated 40% to 60% reduction in margins.

[02:49:06] Investing in Valley Link causes massive losses to Loudoun County's broader economic tax base. This conflicts with the board's responsibility to protect the county's long-term sustainable fiscal health and prosperity. Thank you, sir.

[02:49:24] thank you. If anyone, if you do not, I'm sorry, if you do not finish all of your comments, you can feel free to either email them to us, or if you have them written, you can give it to the clerk, and she will pass it out to everybody. The next person is Celeste Laskowski, followed by Robert Badger. Good evening, ma'am. Hi, my name is Celeste Laskowski, and I live on Taylorstown

[02:49:58] Road in Lovettsville, which is between Lovettsville and Luckett's. I moved from Ashburn to get away from the data centers eight years ago, and I'm here because we're all here to protect our investment in our homes. It's time now to put a stop to giving away our hard work for data centers that are not self-sustaining. The power transmission line servicing them will destroy everything we have worked so hard for. We're not here to stop well-thought-out progress. What we have and what

[02:50:37] are coming are not well thought out. What we have are tax benefits at the cost of homes, way of life, and natural resources. We can and should change course, meaning you guys. We cannot have data centers in neighborhoods, and we cannot have towering transmission lines. Transmission lines should be buried and the land restored. Not one single family should be impacted. You all

[02:51:10] represent the residents of Loudoun County, not data centers. You approved too many data centers without realizing the impact they would have on us. Now we are telling you to fix the impact on us, not in neighborhoods, and no to above-ground transmission lines.

[02:51:37] Reverse course now before it's too late. Thank you. Thank you, ma'am. Thank you. Robert Badger, followed by Ty Lee Ulmer. Good evening, sir. Good evening, Chair Randall, Loudoun County Supervisors. My name is Bob Badger.

[02:51:53] I'm a professional engineer in Virginia and familiar with the purpose and benefits of effective site plan reviews. We're here tonight to ask the board to temporarily pause data center and substation applications to allow the county sufficient time to develop and adopt reasonable data center development standards that must also include appropriate site-specific due diligence measures to be followed.

[02:52:14] The irreparable damage that's already been done in the county residents as a result of unrestricted data center development cannot continue. The developers and contractors who profit from construction of data centers should not be overly concerned with their request for a temporary pause. Their time will come, they will do what they need to do to get paid, and their lives will go on afterward as if nothing ever happened.

[02:52:33] But the residents who live near these data centers will be permanently impacted and will have to live with the consequences forever. For example, a proposed data center near our home was approved without a meaningful site plan merely because it was consistent with the county's favorable zoning designation for data centers.

[02:52:49] This grandfathered data center will be less than 200 feet from our house. That's roughly the distance from your chair to the lobby. The visual impact from this data center will be significant. The site plan shows a two-story building, but it will actually be 60 feet tall. the equivalent of a six-story building.

[02:53:05] The constant noise impacts will be even more impactful to our quality of life, and they will be 24-7, 365. But the county's current noise ordinances do not address the noise levels that are typically produced by data center generators and cooling systems, so they must be updated. Therefore, we are requesting that the board put the interest of its constituents ahead of the data center developers and take appropriate time necessary to develop meaningful data center standards that include provisions for proffers when necessary that will address the site-specific impacts associated with each project.

[02:53:39] Thank you. Thank you, sir. Ty Lee, I think I'm saying that right, Umar, followed by Therese Waters. I'm sorry, Waters. Good evening, ma'am. Good evening. While I support the minimal effort this board has recommended with this resolution for Valley North transmission line, you have failed your constituents with all the other imposing transmission lines that continue to threaten our communities by failing to take an aggressive, stance against the broader network of high-voltage expansion projects. You're allowing our landscape to be permanently altered and your constituents to be burdened. Your concerns over the massive 185

[02:54:15] monopoles being proposed with the Marl Gore Dobbs Goose Creek Wreck and Rebuild only seem to side with certain towns, so you sacrificed Lovitzville instead of backing an HDVC ground option. You just met behind closed doors and pushed it over to the existing right-of-way, and then on top of that designated us a transmission corridor. So you can continue to push more on us. Your resolution does nothing to protect the conservation easements or prime soils within the current right-of-ways. This resolution does nothing but burden existing homeowners in all homes adjacent to these transmission line areas. Seems there's no need to participate in discussions about other

[02:54:51] transmission lines because their poles are already occupying a right-of-way. Apparently, once the poles are there, the burden of the surrounding constituents magically no longer matter. When and where does it matter? Where is the battle line being drawn in Loudon? What towns or parts of Loudon are privy to your support in fighting high transmission lines? Is your support based on voltage, tower design, tower size, or just location? Your constituents want to know.

[02:55:14] This board's support should be to insist on HVDC underground. Loudon's already a target for terrorism with the amount of data centers, which all have extensive security, but who's protecting the transmission lines. At least buried lines would not be such a target. This board should allocate monies like Clark County has set aside already \$800,000 to support undergrounding HVDC.

[02:55:38] Albeit late, is this board even trying with this resolution as it is written? And why only for this line? Thank you. Thank you. Thank you. Just give me one second. I'm just taking notes. Okay, thank you.

[02:56:05] Therese Waters, and you'll be followed by Stacey Westman. Good evening, ma'am. Good evening. My name is Therese Waters. I live in the Catoctin District up in the Lovett'sville area. I want to propose that a tax be imposed on data centers and their corporate users that would fund an independent oversight committee or board or whatever you want to call it.

[02:56:32] It would be independent of government, independent of these corporations, and it would develop and research the impacts of these data centers on our environment and on the community. It would be then empowered to create regulations that could be considered by the government and our communities. It would create regulations that would have enforcement power, which most of these suggestions don't really have. And I just think it's needed. We need a body that

[02:57:07] is focused on this very large, very complicated issue that is not tied directly to what are, you know, everybody else on this board and everywhere else has a lot else to do. And we need people really focused on this. It's very crucial, even to our safety. Thank you. Thank you. Thank you. I'm sorry. Thank you. Ms. Westman, you're going to be followed by Madison Taggart.

[02:57:36] Good evening. Good evening. I'm Stacey Westman, Catoctin District, with the National Land and Community Protection Alliance. I strongly support Item 14M with one recommendation that makes it stronger based on what Loudon has learned from other transmission cases.

[02:57:55] We've gotten very good at fighting where transmission lines should go, but that's after accepting the PJM version of transmission need. Their definition isn't accurate. It isn't entirely certain. They have phantom load. They have ghost load. They don't know.

[02:58:12] And we're going forward and assuming that, yes, that is what we have to work with. We don't. I went through the PJM records that ValleyLink directed me to because I sent them a very long list of comments and with asks for specific data and reports, et cetera. And they gave me a lot of response back. They said, my property values will not decline. In writing. Now, I'm not going to use the expletive that goes with that, but it ain't true. Already I have impact. So with that, it made

[02:58:48] me start looking at past precedent cases, everything, because me and my AI and nerd army can do that. And what I found is that when you assume that the need is legitimate, you've already lost with the SCC. And we don't have to. We can get specialists who can look at the load and say no. And that gets into learning the lessons that came from Lansdowne and Ashburn. You guys assumed that that was already the case. Nobody even argued it in Lansdowne. And, well, we saw what happened.

[02:59:21] So we can show real reliabilities from PJM's side. It's true. But that's not for residents necessarily. If you do that but for and take out data centers and demand that they discount that and separate it from our residential grid versus their data center load, it changes the ballgame.

[02:59:40] I've laid down the foundation in my comments. Ms. Westman, I'm sorry, your time is up, but I'm listening really closely. You said you support it, but with one thing added. And tell me. It's the adding the engineering, the engineering and the subject matter expertise to look at the

[02:59:57] load ah okay thank you thank you sorry madison taggart you will be followed by lee chin good evening good evening so as you know my name is madison taggart from the sterling district in

[03:00:32] lantern county and as you the board likely knows well by now the golden to mars project in our county is one of many transmission line projects related to data centers that has ruined lives like my families because of these board's decisions. However, two weeks ago, the board took up the issue of the Golden Substation in my district. Residents just like me asked you not to approve Dominion's special exceptions. On the record, Dominion brought you, so you deferred the decision to December 1st. You held Dominion to the county standards and asked for a better plan, and that should be the standard of your decisions. Tonight, you are being asked to keep approving more

[03:01:11] substations and more data centers without considering standards at all. There are dozens of substations planned across this county, and what gets accepted at one is going to become the baseline for the next. Adopt the board member initiative on Valley North tonight and direct your staff to prepare to pause resolution. A moratorium is needed before this train goes off the rails and the county is distorted beyond recognition. Do for the county what you did for Sterling two weeks ago. The buildings are approved in one district, the substations land in another, the Lions Cross a third, and the bill is put onto all of us. Projects like Valley North and Golden

[03:01:51] to Mars have united all out in residents to come here and say, finish the rules first. Support your residents tonight, finish the regulations, and hold Dominion and the data centers accountable to both standards before any more data centers or power infrastructure goes through. Thank you for your time. Thank you. Thank you very much. Lee Chen, followed by Don Slayman. Lee Chen? Yes. Hi, how are you doing? Ready when you are, sir. Thank you. My name is Lee Chen. I'm in Northern

[03:02:28] Valley State. I'm a professor of computer science. Dear chair and members of board, Loudoun County has already made the single largest contributions to the nation's data center industry. And our community has reached its absolute limit with approximately 233 data centers building, currently built or under construction.

[03:02:58] Compared to another big second big county, Arizona, they are, they only have 125, okay. So, and as leader elected to protect the public interest, I urge the board to deny any further applications for new data centers.

[03:03:25] Jordan has already delivered far more than its fair share. We already did our best. We cannot do more. We reject all new overhead high-voltage lines in our near residential area because Golden to Mars is nearby the elementary school and the high school.

[03:03:54] Okay, I have 30 seconds. I can't finish that. History will remember the choice this board makes today. One day, future generations will look back and wonder how the unique landscape and nature beauty of our county will allow to be replaced by those many industry data centers.

[03:04:22] How will you feel when that day comes? If this long-term legacy does not move your train. Mr. Chan. Thank you. Thank you. Thank you, sir. I'm sorry.

[03:04:37] I think it was Mr. Slayman. Mr. Slayman, you are going to be followed by Dominica Kodati. Good evening, sir. Good evening, Madam Chair and members of the board. Leggett Farm Road, Little River District. I understand that legal distinction under Virginia's Dillon Rule, Loudon lacks the authority to enact a moratorium.

[03:04:57] Instead, the proposal is up to a one-year pause on matters requiring legislative approval while the county develops standards for water sound and other impacts. The immediate problem is not a new data center seeking a special use permit. Loudon has not approved one through legislative process in more than a year.

[03:05:14] The problem is substations. Every substation requires a special use permit and board approval. Substations are therefore the bottleneck between an approved data center and the actual construction. Cloud HQ shows exactly what this means. C11 is being completed using power from an overly burdened substation.

[03:05:32] Three additional data centers are approved. They made all the mitigating standards you all wanted. But they cannot proceed until a new substation is approved and built. If the county pauses the process for that substation, it pauses those data centers. A right to build on paper means little if the county blocks the infrastructure needed to energize the building.

[03:05:50] May open you to lawsuits. The consequences are immediate for working people. We have 1,018 neighbors, residents in this county who are members of Local 26. More than half are under the age of 34. Many are apprentices who entered this trade based on the pipeline of work this county helped create.

[03:06:10] It also threatens the union prefab shops. We have more than 30 of them that grew around Loudoun's data center industry. Prefabrication depends on scale, repetition, and predictable flow of projects. This volume supports investment in facilities, equipment, training, and advanced manufacturing and keeps the work here.

[03:06:26] And we export that all over the country because economies of scale. Interrupting the pipelines at substations and those economies of scale begin to unravel. These shops cannot simply be switched off for a year and restart with the same skilled workforce capacity. We support reasonable protections addressing soundboard and other community impacts.

[03:06:43] Develop those policies, do it without using substations, a backdoor pause on projects already approved by the board. I thank you very much. Appreciate it. Thank you. Thank you, Mr. Slayman. Dominica Kadot, I think that is, if I said that right, if I did not. And that's a remote speaker. And she'll be followed by Ashley Wameeling.

[03:07:07] Yes, good evening. My name is Dominika Kadot. Good evening. I'm a Broadlands resident in the Broadran District, District of Supervisor Sylvia Glass. I'm calling in regards to Cyrus One, a massive data center at Broadlands Boulevard and Belmont Ridge Road that was approved to be built by right under outdated zoning regulation.

[03:07:33] Without any community input, residents were kept in the dark. So families live here, children go to schools here, and this is our home. And I believe strongly that the Board of Supervisors should protect the communities because you were elected to represent us and not to make it easier for massive data centers to move into residential neighborhoods.

[03:07:56] Residents should not have to sacrifice the quality of life, live with the consequences like knowledge generators, massive power infrastructure demands, massive water demands, the change in the character of our community. So my message is simple.

[03:08:14] Please pause, plan, and protect our community. Please plan ahead. I mean, we need rules that protect residents while allowing responsible data center development. And we need to stop further encroachment of data centers into established residential communities.

[03:08:34] So, I ask the board to stop the Cyrus 1 project in Broadlands and to prevent projects like that from being built. Data centers do not belong in residential neighborhoods. Thank you for your time. Thank you, ma'am. Ashley Wormeling?

[03:08:50] Wormeling. Okay. Good evening. My name is Ashley Wormeling. I'm a resident of the Catoctin District and co-chair of the Coalition to Block Valley Link North. I want to thank Chair Randall and Supervisor Kirshner for sponsoring tonight's BMI of opposing Valley North. Never could I have imagined we'd reach a point where the communities are battling power companies. Of course we need power. The issue isn't to demonize power companies.

[03:09:17] It's a question of the process used to impose a solution without adequate public input, especially when the public is so severely impacted. Installing transmission towers taller than the Statue of Liberty, with 140-foot-wide cross arms at the top, 200-foot-wide easements down below, cutting through our farmlands, our conservation easements, and this septic drain field in my backyard?

[03:09:41] That's not in the public interest. I hear the argument, well, what about grid reliability? We need this power. But do we? Valley North wouldn't come online until 2031. Projections about need were done a few years ago, at a time when data center Alley was expanding at a rapid pace.

[03:09:58] Things are different now. Major data center projects in the area have been canceled. We're here tonight talking about moratoriums and pauses. We are slowing things down as we should. Will we actually need this 765 kilovolt transmission line by 2031?

[03:10:14] The power company certainly isn't going to tell us because they stand to profit off this project. The proposed BMI allocates resources for the county to answer these questions. We are calling on you to utilize experts, to see if the need is actually there, and if so, if less invasive alternatives are viable.

[03:10:32] By passing this BMI, you are setting an important precedent for future transmission lines across the county. This isn't the first line, and we all know it won't be the last. We, the people, can't fight this on our own. We are counting on you. Please, don't let us down.

[03:10:50] Thank you, ma'am. Thank you. Leslie Jones, followed by Brian Carson. Leslie Jones, Leslie Jones. Going once, going twice.

[03:11:07] Brian Carson, and you will be followed by Christian Georgilis. Good evening. Good evening. Hello, my name is Brian Carson. I live in Lovettsville and have worked in Leesburg the past five years.

[03:11:23] As a local, I'm deeply concerned by the proposed destruction of our town's beauty and charm by the introduction of massive transmission lines through Western Loudoun. As you know, these lines are intended to be placed just past town and through our rural community, effectively destroying the lands and homes of our community members have built and affecting the entire community as a whole.

[03:11:41] I strongly support the Agenda Item 14M to approve the resolution to oppose the Valley North transmission line. I suggest that what Stacey mentioned earlier be submitted and looked into in further detail as well. These transmission lines are a symptom of a much larger issue, which is currently plaguing our entire county.

[03:12:00] As the energy is being consumed at a much faster rate than before in history, we need to proceed cautiously to ensure we do not grow too quickly and in doing so cause unintended, exceptionally harmful collateral damage. The damage caused by marring Western Loudon with these monstrous lines would take generations to undo. We need you as board members of this county to help protect the people that live here against corporate pressures that will continue to press for the cheapest, fastest ways to get what they want.

[03:12:24] As we know, data centers are the main draw for this power. It is necessary to slow down growth, as proposed in item 14L, to allow us to react and plan for the situation we are already in. There is so much that you can do to protect this county, and now is the time to take action.

[03:12:40] The fight against Valley may seem small to you, but to many of us here, it is our lives. We need you to stand up for us. Thank you for your time. Thank you, sir. And it's not small to us, but thank you. I appreciate that. Christian, I think it's Georgilis.

[03:13:00] You're close. Christian Georgilis. Georgilis, I'm sorry. It's fine. And you're going to be followed by Clement Lupton. Ready when you are, ma'am. Thank you. Good evening, Chairman Randall. Board of Supervisors, as I just said, my name is Kristen Georgelis. I'm a resident. I live in the Meadowbrook Farms property right here in Leesburg.

[03:13:18] I'm also a business owner. I have a business right on King Street downtown. I'm here. I wish I had a lot of the fancy details that everybody has, but I'm here as a resident. And just to say simply, tonight's vote should be simple. Pause the news data center. I could probably speak for way more than the minute and 30 seconds that I have about how much I don't feel the data centers have been benefiting me and my future, my children.

[03:13:40] as they grow up. But today, I'm just asking, you know, the data centers keep going up around us. They need to stop. Everyone here today, well, majority of everybody here today is against them. The way the process is working right now is not working. It needs, you know, with one application going at a time, we need the rules. We need them to be finished. It needs to be done right. My message is simple. Projects like Valley North have united Loudon residents to come together, to show up together, to say, do it right.

[03:14:11] This is your time, and I'm pleading every one of you to listen to all your constituents, all your residents, most of your business owners around here. Do it right. Support them tonight. What has united Loudoun tonight is a demand for a pause on the data centers.

[03:14:27] So finish these rules before you approve any more data centers. Thank you. Thank you. Clement Lupton, followed by Clayton Medford. Good evening, sir. Good evening. Good evening, Chair Randall and members of the board. I'm Clement Lupton, Government Relations Manager for the Loudoun County Chamber of Commerce.

[03:14:47] I'm here to express the chamber's opposition to the proposed pause on data center and substation applications. The chamber has always supported responsible data center development and land

use policies that protect our communities and natural resources. We recognize residents' legitimate concerns, noise, energy demand, and the pace of growth.

[03:15:07] Those concerns deserve a serious response, but a pause is not that response. It freezes the county's activity without resolving any of these underlying questions. The county attorney has been clear that a moratorium is not permitted under Virginia law and that a pause cannot lawfully reach projects already under review.

[03:15:24] So what a pause mostly delivers is not protection, but a signal to businesses weighing an investment in Loudoun, not just in this industry, that the rules here can freeze without warning. We've heard the concern that the county has grown too reliant on data center revenue. The chamber agrees, and we believe that economic diversification should be the county's focus, not on an attempt to arrest the development of one industry.

[03:15:47] And the revenue at stake is not abstract. Data centers help fund the schools, services, and tax relief that residents count on. The better path is already underway. With phase two of the data center standards initiative, the board has the tools to raise standards through that process. A pause adds no protection that phase two can't deliver.

[03:16:05] We respectfully urge the board to reject the pause and let the phase 2 process do its work. Thank you. Thank you, Mr. Lupton. Clayton Medford, and you're going to be followed by John Adams. Thank you, Madam Chair and members of the board. My name is Clayton Medford.

[03:16:20] I'm here on behalf of the members of the Northern Virginia Chamber of Commerce who represent a broad cross-section of our regional economy. I urge you to reject the proposed moratorium today. To be clear, Loudoun County can and should continue your work to improve land use standards, protect residential neighborhoods, require meaningful mitigation, and plan responsibly.

[03:16:38] But a blanket pause would send the wrong message at the wrong time, not only to data centers but to every employer considering a future in Loudoun County and in Northern Virginia. The message to business leaders is especially important right now. Northern Virginia is already experiencing the economic stress from the federal workforce reductions and contracting changes and the broader effects of the Trump administration's Doge-driven restructuring.

[03:16:58] UVA's Weldon Cooper Center found that since the beginning of 2025, projected all the way to the end of this year, Virginia will lose over 75,000 jobs. Professional services, a sector closely tied to federal contracting, and one of Virginia's largest private sector employers lost 9,500 jobs in the first half of this year alone.

[03:17:18] In this environment, facing economic pressures from Washington, we believe no locality in our region should join with the federal government to weaken our regional economy by choosing to impose another barrier to investment and to opportunity. That direct impact on the moratorium is clear. The 2024 JLARC report found that Virginia's data center industry supports approximately 74,000 jobs annually and \$5.5 billion in labor income.

[03:17:40] These are not abstract numbers. Data center construction is a major source of high-wage, career-building work for the skilled trades. These are high-demand jobs being created right now at a time where you're shedding job opportunities in other sectors. In short, a moratorium does not solve any of the economic challenges our region is facing.

[03:17:57] It would not restore federal jobs or contracts. It would not make Northern Virginia more competitive. It would instead put our economic reputation at risk at exactly the moment that we all should be working together to restore confidence among business leaders and proactively demonstrate that this is a place where businesses can thrive and create jobs.

[03:18:14] Please don't take our prosperity for granted. Thank you. Mr. Medford, before you walk away, so we know that a moratorium is not legal. We don't have that in our power. Are you actually saying would all those comments be transferred to a pause versus the moratorium?

[03:18:30] Because the moratorium is not legal, and you've said that many times, and so I'm just trying to understand. Not being a lawyer, I can't comment on the legality of it. My point is that it sends a message. Okay. All right. Thank you. Thank you. John Adams, followed by Dennis Bors.

[03:18:46] Good evening, Mr. Adams. Good evening, Madam Chair and members of the board. I'm John Adams, along with my wife, Mary Lee. We have lived on our small farm in Lucketts for 52 years. More than all the threats we've ever faced, tornadoes, lightning strikes, cattle out on Route 15, the proposed Valley North transmission line project poses by far the greatest threat to our homestead and quality of life.

[03:19:14] In our neighborhood alone, it will not only degrade the value of many properties, including several historical homes and sites. One would be Chestnut Hill, which is one of the earliest homes in Loudoun County, dating back to revolutionary times. Another would be the old Kinsley Hill property, which has now been acquired by the Northern Virginia Regional Park Authority, and which includes a 20-acre parcel which protects a very historical Native American site.

[03:19:42] For those of us who live in the Karst or Limestone Overlay District, which parallels Route 15 north of Leesburg, This mammoth transmission line would pose an existential threat to our wells and septic fields. The footings for the 180-foot steel lattice towers alone will have to be blasted or drilled into the limestone conglomerate to a depth of at least 40 feet.

[03:20:09] This will undoubtedly create a significant risk of fracturing the bedrock and disrupt the groundwater movement throughout the limestone overlay district, potentially jeopardizing the sustainability of private wells in the entire area. The current ordinance prohibits any disturbance of soil within 50 feet of a rock outcropping, so it would seem impossible for the proposed 200-foot-wide permanently cleared right-of-way to not disturb soil within 50 feet of current rock outcroppings and sinkholes appearing in the proposed map study segments.

[03:20:45] So like many others here tonight, I want to encourage this board to unanimously support your resolution opposing this mammoth eyesore intrusion into our county. It represents an utter disdain and insult to the quality of life for all citizens of our county.

[03:21:01] Mr. Adams, your time is up. All right. Thank you. Thank you, sir. Dennis Boers, followed by Evelyn Mara. Good evening. Madam Chair, members of the board, my name is Dennis Boers, and my family lives in farms on Sugar Maple Lane in Lovitzville in the Catoctin District.

[03:21:20] On item 14L, yesterday the Virginia Department of Environmental Quality fined Amazon \$2.4 million for violating emission standards for backup generators. Being fined afterwards is not guardrails. It shows the absence of guardrails. Phase 2 is still developing standards for siding, noise generators, emissions, decommissioning and substations.

[03:21:41] Adopt a draft motion associated with Alternative 2 and direct staff to prepare a resolution, pausing legislative applications while Phase 2 is being completed. A pause leaves existing data centres and tax income untouched and another 35.7 million square feet is already approved but unbuilt.

[03:22:00] the 70 times the land we farm for our IBU, Local 26 and Loudoun Chamber friends to enjoy. On item 14M, Valley North emerged from PayGM's 2024 expansion window, whose major west-to-east need is attributed by PayGM primarily to anticipate a data center load growth.

[03:22:20] The line would use 175 to 200-foot structures and a permanently clear 200-foot right-of-way near homes, farms, historic places and conserved landscapes, and cutting through the heart of rural economies around Lovettsville, Taylorstown, and Catoctin Creek.

[03:22:35] Adopt item 14M and fund those commitments. Oppose the project and any new overhead transmission line right-of-way through Loudoun. Defend board-held open space easements and authorize evaluation of underground HVDC and actual power load pictures.

[03:22:51] Fund that work with independent engineering, environmental and property analysis, and legal representation. Do please not shift the harm elsewhere. Thank you. Thank you, sir. Thank you. Evelyn Mara, and you will be followed by David Pala.

[03:23:10] Good evening, ma'am. Good evening, Chair Randall and board members. Thank you for the opportunity to comment. I use my middle name, which is Gay Mara, and I'm a Lovettsville resident. I think maybe half of us are here tonight.

[03:23:28] I'm speaking in favor of both the resolution pausing data centers and the resolution opposing the Valley North 765 kilovolt transmission line, which is proposed to go across the western corner of this county, including the Levittsville area.

[03:23:50] We and our neighbors chose to live in western Loudoun for the peace and natural beauty of this land in the foothills of the Blue Ridge Mountains. And we and many of our neighbors gave conservation easements to Loudoun County to protect that land in its natural state.

[03:24:09] The existing data centers are already stressing our water supply and polluting it with forever chemicals. and the proposed high-voltage lines would immediately wreak destruction on our beautiful countryside. The longer-term issues are even worse.

[03:24:27] The availability of such a huge power supply would be a magnet, drawing more data centers to our area, further stressing our resources. Moreover, those companies are competing fiercely for profits and market share.

[03:24:44] Some of them will inevitably fail, And when they declare bankruptcy, they will walk away from their huge, hulking facilities, leaving behind acres of concrete and asphalt and toxic chemicals. It will be on the taxpayers to clean all that up.

[03:25:03] So let's choke off those awful possibilities now. Thank you for listening. Thank you so much, ma'am. David Paula, and then on the phone is Lauren Lillistolen.

[03:25:19] Good evening. Good evening. Chair Randall, Loudon Board of Supervisors, thanks for having us all here today. A couple weeks ago, I was here talking about another data center initiative taken up by y'all, which affects my local IBEW Local 26.

[03:25:35] I said I thought that we had about 500 members and families here. Well, it turns out that would have been true six years ago. We've almost doubled in size since that point, and we have 1,018 members and their families living here in Loudoun County. 53% of those are apprentices, 34% mechanics, and 13% are maintenance and support staff who stay around behind.

[03:25:59] Every time we finish a data center project, we leave about 30 folks behind to maintain and to do maintenance on them. Also, about half of those are under 34 years of old, so these are young people getting into the trade. I know that you saw the people in the highlighter yellow shirts earlier today.

[03:26:16] Those were our brothers and sisters who came. Unfortunately, we picked a night when there was a big other controversial issue on the topics with the power lines. So our folks were unable to sign up to speak today who were Loudon members. But we did have quite a few in attendance.

[03:26:32] And if you're still here and an IBW member, could you stand up for me? Thank you. I know a lot of them had to leave. I know you saw them all here earlier. And one of those folks is actually our business manager, Chris Cash, over here on the end. He represents 15,000 electricians in the DMV, not just those 1,000 here.

[03:26:49] Rule of order. What is this? He's presenting to you, not to the person. Sir, you are out of order. We do allow this. We've always allowed this. I'm not doing anything. Please stop his time and give him 10 seconds back. I'm not doing anything. People stand up when they're in the same color shirts all the time.

[03:27:06] They're not talking. They're not disrupting. They're just standing. This has been allowed every time that people come into the room. This is normal procedure for this board. You, sir, are out of order and I'm finished with this conversation. Please start this time and you may finish.

[03:27:21] - Thank you so much, Chair Randall. I'd just like to finish by saying these are important careers. We wanna protect these jobs here in Loudoun County. I understand the pause that you're considering for 12 months, especially for legislative applications for data center projects, but for the substations, which I'll always come up to you all.

[03:27:42] We're talking about grid reliability, preventing blackouts for residents. That seems like something that maybe shouldn't be included in this as you're looking at data center applications themselves. Please keep in mind, you know, the upcoming projects that are coming through the pipeline but also those grid reliability substations, thank you.

[03:28:01] - Thank you, sir. I think we're going to the phone. It's Lauren Lilliestolen, followed by J.W. Glass. Good evening, members of the board. I'm speaking tonight to ask that you vote to pause the approval of data center development until a comprehensive, long-term plan that prioritizes residents has been created and published to the public.

[03:28:28] For too long, Loudoun County has been making piecemeal decisions about data centers and their required power infrastructure. As a result of acting without a well-thought-out plan, Many residents are currently suffering, and more will follow. Now that the board is well aware of the consequences of allowing runaway data center development, it is just good governance to take a pause, generate a plan, and refuse to resume approvals until the new rules are firmly in place.

[03:28:54] Board members keep telling Loudoun residents that they don't have control over certain aspects surrounding the issue of data centers and the electrical infrastructure they necessitate, but you do

have control over this. Please take action that supports the quality of life for which Loudoun residents came.

[03:29:11] Please vote to take a pause and finish your plan before approving any more data centers. Several speakers tonight have mentioned concerns regarding job loss, but what about resident loss? I already warn every friend I have that's looking to move to Loudoun to go elsewhere, because no neighborhood here feels safe from data center or power infrastructure anymore.

[03:29:32] Thank you. Thank you, ma'am. We technically have 10 minutes left, but I'm going to make sure that everyone who signed up, the first 45 speakers who signed up, will get to speak.

[03:29:49] We will not get to the waiting list, but I will make sure that the first 45 do get to speak this evening. So you're going to go a little bit past the next 10 minutes. Mr. Glass, you are next, and you'll be followed by Chris Alloway. Thank you. Good evening, Chair Randall, members of the board.

[03:30:05] My name is J.W. Glass. I'm an environmental attorney from Hillsborough, speaking in my own capacity tonight to support the resolution against Valley North, but also to support a pause on data center development. I've said this to essentially anyone who can listen now, but the Valley North proposal is going to permanently scar the landscape of rural out.

[03:30:24] It's going to dewater wetlands. It's going to destroy habitat for endangered bats. It's going to lead to increased use of pesticides within the right-of-way to maintain that right-of-way. But as Loudoun reckons with data center development, every action we take is under a microscope.

[03:30:42] So we should be talking about MARL. We should be talking about Golden to Mars. What we do here is going to be a lesson for the localities in the path of Valley South, states like Texas, Nebraska, and even Wisconsin that are all dealing with power lines specifically for data centers. And let me just be very clear, these power lines are for data centers.

[03:31:00] You don't have to take my word for it. I'll read a quote from a Valley Link spokesperson who said, data centers are the lead, and the bulk of those are in data center alley. So in 2025, I came to the board to support or oppose grandfathering data centers in Loudoun County.

[03:31:17] In 2026, the situation's a bit worse. Last month, 30 former EPA officials came out with a report showing rollbacks to environmental laws that are driving data center pollution. Now, I'm not going to rattle off all 30. I don't have time, but the ones that are relevant to Loudoun here are limits of public participation for Clean Air Act permitting, reclassifying what a minor source is for Clean Air Act permitting, expediting Clean Water Act protections for wetlands and streams, expediting new chemical reviews that are going to be specifically used for data centers.

[03:31:49] Many of these are new PFASs. So that, coupled with a near-absent enforcement scheme, it's a recipe for disaster. So I am very pleased that the board took action here and is pushing forward the Valley North proposal. I thank you for that, but I also hope we'll support a pause here tonight.

[03:32:05] Thank you very much. Thank you, Mr. Glass. Good evening, Mr. Alloway. How are you? You will be followed by Michael Juergens. Good evening. Good evening, Chair Randall. Thank you for doing this, and thank you for allowing the public to speak. My name is Chris Alloway.

[03:32:21] I'm in the Leesburg District. I've been a resident of Leesburg for about 13 years since I got married at St. John's. In 2013, we're raising our kids here in Loudoun County, and I just want to speak

about my family's experience. I've heard that, you know, once a data center is completed, that there's no jobs or the jobs are temporary.

[03:32:40] Yet, year after year, families like my own see that we get excited whenever we see a new crane going up or whenever we see a parking lot full to the street with Virginia tags of pickup trucks and workers and some of the men and women here who are working and taking that money back, actually having a good middle-class income.

[03:33:02] So I'm here to speak for families that are benefiting from the industry, the growth of the industry. And somehow these buildings that are supposed to create no jobs ending up being so important for so many families right here.

[03:33:17] And the tax revenue is not inconsequential. It's enviable to a lot of counties and states around this country. I think a lot of counties and states would really like to find a niche that they're good at and that they succeed at. I think that that's the case. I do understand the concerns about how they fit into our community.

[03:33:34] Growth is good for their economy, but reckless and purposeless growth benefits neither the county residents nor the industry. That's exactly why I'm here to say that we should not impose a pause on building data centers. Don't stop. Instead, raise the bar. Hold these owners to account. Tell them that we want them to invest in our young people, in our trades, in our schools, in our JATC training center.

[03:33:56] Tell them that we want them to pay their own way for power so that new investments in capacity don't lead to higher rates for our residents. And tell them, most importantly, that we want to say in noise pollution and light pollution and how these buildings look. The fastest and most effective way to take our voice away would be to pass a pause.

[03:34:13] Thank you. Thank you, sir. Thank you. Oh, darn it. I'm sorry. I think we're going to the phone now. Yes. And it's Michelle Jergens on the phone, followed by Greg Perio. Good evening, chair members of the board and county staff. I am speaking tonight on behalf of the Community Coalition Against Bridgefield in support of the temporary moratorium on new data center applications. This is not an argument against economic development or innovation. Bowden County has already secured its place as a global leader in the data center development.

[03:34:51] That first is not in question. The question is whether the pace of continued expansion remains aligned with our infrastructure capacity, long-term planning goals, and the expectations of residents who call Loudoun County home.

[03:35:08] Periods of exceptional growth require moments of thoughtful evaluation. A temporary moratorium would provide the county an opportunity to assess cumulative impacts, complete the next phase of regulatory improvements, and ensure that future decisions are guided by sound analysis rather than development and economic amount alone. Residents have raised legitimate concerns regarding noise, visual impacts, expanding transmission infrastructure, increasing energy demands, and the cumulative effects of data center

[03:35:45] growth on the character and quality of life of our communities. These concerns are not opposition to progress, but a desire for growth that is balanced, sustainable, and consistent with the values of people who live here. Importantly, a temporary moratorium is a strategic pause, a pause that allows the board to determine whether existing regulations are adequate for industry evolving at an unprecedented

scale, and to ensure that infrastructure planning, land use policy, and community interests remain aligned. I respectfully ask that you support

[03:36:19] this temporary moratorium. Thank you. Thank you, ma'am. Good evening. It's good to see you. And you'll be followed by Patricia Logie. Yes. Hello, everybody. I'm Greg Pirio. I'm the director, a director on the board for the Trailside HOA in Sterling. And I'm here to support the call for a pause so that proper guard whales can be put in. And I also want to see a pause on substation

[03:36:54] approvals, and I support the stoppage of the transmission lines that people have been talking about this evening. Living 150 miles away from, 150 meters away from Vantage 2 has been devastating to our community.

[03:37:15] Just down the street, there's one family that has four children, young children, all have got respiratory illnesses since that went up because there is a gas turbine generator that runs 24-7 and then the backup diesel ones.

[03:37:32] I've had to go, well, if you want to honor the children who died of cancer, try to protect the children in our neighborhood from the emissions of that data center. I have had to go to the hospital twice because of severe dryness of my eyes.

[03:37:53] Neighbors have had the same thing. I had to leave my home once because the backup generators were working on a day that was already polluted, and I could feel it in my chest and my throat, and I had to go to my daughter's house and stay there until they stopped running them. And I could go on and on, but you get the picture. Our health, it's important to us. And also they're encroaching on our commercial space and our entrepreneurs, local entrepreneurs are losing opportunity to have the restaurants, barbershops, et cetera. Thank you, sir. Patricia Logie, followed by Michael Clancy.

[03:38:33] Is Ms. Logie here? Patricia Logie, L-O-G-U-E, going once, going twice. Michael Clancy, you're going to be followed by Kathleen Schwab. Good evening, sir.

[03:38:48] Good evening, Madam Chair. Good evening to the board members. I'm Mike Clancy from Leesburg, and I'm here to speak on your proposed resolution concerning the transmission lines. Yes, this board must oppose those lines and take action, but you must address the true root cause. Transmission lines are a symptom of an energy crisis in Virginia, and the root cause of that energy crisis is the so-called Virginia Clean Economy Act passed by the General Assembly in 2020.

[03:39:13] That law closed reliable energy plants, severely restricts the building of new generation plants here in Virginia, and mandates a conversion to solar and wind power. And that solar and wind power will not generate the power to run our economy or even keep the lights on in your neighborhood.

[03:39:29] During the summer's heat dome, wind and solar provided less than 8% of the power needed during the peak time. The Clean Economy Act is why Dominion is importing power from coal plants in West Virginia and Pennsylvania. It's why there's a proposal to build miles of massive high-voltage transmission lines that will grossly scar our communities and rural landscape, as you've heard tonight.

[03:39:53] So your request for legislative action in paragraph 10 of your resolution must demand the Virginia General Assembly repeal or substantially reform the Clean Economy Act. That would allow for energy generation in Virginia where it's needed, on-site power generation using new advanced

technologies, reduce the need for these long transmission lines, lower the price of energy for all consumers, and protect ratepayers from the cost of data center energy.

[03:40:23] The General Assembly created this energy nightmare in Virginia, and now they must fix it. It's not possible to protect our land and our communities, our neighborhoods, without addressing the true villain here, the Clean Economy Act. Thank you for your time. Thank you, Mr. Clancy.

[03:40:40] Kathleen Schwab will be followed by our last speaker, Julia Holcomb. Good evening. Good evening. My name is Kathleen Stakem-Schwab, and I live in Kincaid Forest in the Leesburg District, and I'm a realtor. I came here before when the Aspen substation was proposed next door to our neighborhood, and we asked for simple concessions from Dominion to not disturb the quality of life for our community.

[03:41:01] For example, please don't use our neighborhood roads as a construction traffic cut-through. Since then, we've had to deal with major construction traffic for each additional project, including the county government building, the data center being built on Crosstrail. I've seen firsthand what this project-by-project approach does to communities, and it's exhausting. But tonight, this has become even more personal.

[03:41:19] Just yesterday, one of my clients received this memorandum from her builder, Stanley Martin. She is a single mom who has put \$35,000 as a down payment down on new construction in Cascades. This memorandum stated that her home would be delayed because Dominion is experiencing significant challenges obtaining critical materials needed to provide electric service and they cannot confirm when that service will be available or when her home will be delivered.

[03:41:43] As of now, the best case scenario is next April, but it was originally scheduled for a December or January delivery. I'm not suggesting that data centers caused this particular delay, but I am asking why. Why would we approve even more massive demands on our electrical infrastructure, when we cannot give residents confidence that the infrastructure supporting the growth already underway is sufficient?

[03:42:02] We talk about the investment the businesses have made into our community, as if somehow that's more important than the investment our residents have made into our community. That single mom, who has put \$35,000 that will stay with the builder while she waits for Dominion to figure it out, she probably doesn't appreciate it. And the message to her is very clear: her pockets just aren't deep enough.

[03:42:22] and business owners are watching their electric bills rise, communities are fighting substations, transmission lines, and residents are repeatedly coming to this podium asking you to slow down. Stop making residents fight these projects one at a time. Adopt the board member initiative on Valley North tonight and direct staff to prepare the pause resolution. Before Ladin approves, more demand. Prove that we can responsibly support what we've already approved, finish the rules, and vote for the pause. Thank you. Thank you very much. I meant to say John Holcomb before. John Holcomb, H-O-L-C-O-M-B.

[03:42:52] Is John Holcomb here? Yes. Okay, you're on the line. We're ready for you, sir. All right. I have tried to volunteer for the county for the past year to teach seniors about smartphones. The heads of your senior center all agree with this. To quote PC Magazine, this five-minute change will save lives.

[03:43:11] Now, for example, if a family member got into a car accident, got pinned, how would they get help? What if your family member had a medical emergency but could not speak? How would they get

help? Have the terms of the contract been compared to any of the county? No. I've been asked to teach at Fauquier County. No contract.

[03:43:28] I've been asked to do work at Fairfax County. No contract. This class is going to either save lives or it could cause someone to die. The terms of the contract require the volunteer remain in effect forever. The forever is rarely using a professional legal document.

[03:43:46] Have any of you ever personally signed a document with the word forever? would you recommend your family members do it would you recommend your family members sign a contract when all the terms are not in the contract but you have to sign it anyway the future contracts will be the future terms will come to you later so this is about it for me i've been teaching it around here for the county i've been teaching in other areas for a while now i'm lost it why i can't bother here my time for free okay thank you sir thank you okay as i said

[03:44:23] But we're not going to take a break until we do these next two items. So we're going to do the board member initiative for the Valley North Transmission Line Proposal. That's a board member initiative from Mr. Kirschner and myself.

[03:44:39] It is technically a BMI. The way a BMI works is this. One of the people who are sponsoring the BMI has about two minutes to talk to our colleagues about what the BMI is and why. And then a motion is made, and then we'll discuss the BMI.

[03:44:54] Mr. Kirshner, before you do that two minutes, might I suggest, as a person who's joined this BMI with you, that we go on and add to the requested action to add an engineer and subject matter expert to look at the load on the transmission line as was suggested.

[03:45:23] Is that something we can do? I think so, Madam Chair. I would make one other suggestion as well that we direct our staff to request to the SEC that when they go to their hearing process, they hold one of those hearings in Loudoun County at a minimum. So when you make this motion, Mr. Kirshner, we'll talk two minutes, make the motion.

[03:45:44] We can assume at this point that those two things are added to the end of the requested items, engineering subject matter expert and SEC holds a hearing in Loudoun County. Mr. Kirshner, would you like to kind of explain this first before you make the motion?

[03:46:02] And I can go ahead and explain it. First of all, I want to thank everyone for coming out who spoke on this. This is obviously a... It's probably the most significant issue I have dealt with in the Catoclin district since I've been on this board, and I think very justifiably a lot of people are upset about it, as was I.

[03:46:20] This kind of came about as a result of a lot of work that my staff and myself have done really digging into the issue. Tom Donahue has helped us a ton. I just want to give him some kudos. He has provided his expertise. We had a meeting recently with Valley North and their executives, and I just felt like they didn't really have any of the answers that we wanted, and a lot of the things that the folks have shared.

[03:46:44] But basically, for those of you who are not familiar, my fellow supervisors, but you've obviously read the item, this basically is a proposal to bring grid reliability all the way from Putnam County, West Virginia, to Frederick County, Maryland.

[03:47:03] Of that, there are 260 miles total, 225 miles of that is in West Virginia, 30 miles is in Virginia, 5 miles is in Maryland. And of that, there's about 10 to 12 miles that are proposed to come through western Loudoun County.

[03:47:19] There are several different segments through this process. Obviously, we have power lines that are coming into Loudoun County. These are transmission lines, and they are proposed. This would be the first time in Loudoun County's history, as I understand it, that there would be 765 lines coming on lattices that are 175 feet in permanent height and approximately 200 feet wide.

[03:47:44] So as have been mentioned by a lot of folks here, this is going to have tremendous, tremendous impact all across this whole corridor, but obviously across western Loudoun County. Sorry, they weren't running your timer when you were introducing the item.

[03:48:02] That's fine. Put me down to two. I'm going to put you down to two, and I'm going to have you go on and make the motion, and then you can finish talking after the motion. Okay. You want me to make the motion now? You can make the motion now. That's what I thought we were going to do, but you told me to explain it. I'm just doing what I'm told. All right.

[03:48:18] I move the Board of Supervisors approve the resolution posting to Valley North 765 KV transmission line provided as attachment one to the September 15, 2026 Board of Supervisors business meeting action item. Second. Thank you, Madam Chair. Now you can have discussion on the motion.

[03:48:34] Second, with those other two caveats that we have already talked about and said. So those two things, they are now added to the other suggestions. Discussion on the motion, Mr. Kirshner. Yeah, so obviously we, as has mentioned by many, and there are 100,000 reasons to oppose this.

[03:48:53] Obviously, the visual impacts to our communities, the scars to the earth, the natural resources that could be impacted or destroyed. I mean, we're talking about going through neighborhoods, conservation easements, stake parks, generational farms, vineyards, horse farms, and quite frankly, the list goes on, as has been very clearly indicated here.

[03:49:19] The resolution ultimately will do a lot of things. I'm not going to go through all the fine points of the resolution, but essentially the idea is to basically defend all of Loudoun's County open space easements, do some engineering studies, basically have our county staff and our county attorney participate in the SEC process.

[03:49:41] And as many of you folks know, we don't ultimately have power over this decision-making of power lines. We have influence. Obviously, continue to reach out to us, but also reach out to your state legislatures. Participate in this process. It's incredibly important if we are going to be successful at this.

[03:50:00] I'll have a closing, right, Madam Chair? We'll have a closing. All right. We will also designate staff the responsibility of monitoring PGM interconnection, Federal Agency Regulation Commission, State Corporation Commission, and Dominion Energy Loudoun Stakeholder Meeting.

[03:50:17] One of the key aspects of this resolution, which I think is really, really important, which I discovered as I dug into this, these are obviously transmission lines. And we know that transmission lines, these particular type of transmission line, it's really impossible to bury them. However, because these are transmission lines that are going over long distances, they can be converted to HVDC, and it can be transmission over long, long distances.

[03:50:44] We have seen this done in Canada. We've seen it done under the Hudson. We've seen it done all over Europe. And what really convinced me that this is a doable option is Dominion's recent proposal to come in 180 miles into Loudoun County in the south, underground HVDC.

[03:51:01] So I have had multiple meetings, my staff and I, with Valley Link. We have, they have told us it is impossible. I know it's not. And when I confronted them, for example, with how do you guys feel, literally, about sending power lines of this magnitude through the Napa Valley of the East, there was literally silence on the phone.

[03:51:31] We can do better. This is a hard thing to do, but we can absolutely do better, and we will do better. and I think with the help of this board, our staff, our proposals, your outreach to the SEC are pushing back against this. We can come to a better resolution for a better Western Loudoun. Thank you, Madam Chair.

[03:51:50] Thank you. You will have a closing. Ms. Brooksman? Thank you. I may have – I have a question, and it may be something for our county attorney or county administrator, but did we do a similar resolution for the Golden to Mars power line?

[03:52:07] are you asking that to a county attorney through the chair yes ma'am mr rogers yes there was a resolution on it this one's very different than that resolution but it was a resolution in opposition to it it was okay thank you um and um okay that that answers actually two of my questions um i just this looks really familiar to me um but i don't know that we need number nine in this because it directs the county administrator to designate staff to monitor pgm interconnected

[03:52:42] interconnection ferk sec dominion energies so number nine has already been accomplished because i made that motion at our july 22nd business meeting and the board endorsed that and so i think that's already in in progress so i would just offer friendly that number nine get deleted from the resolution i'm i'm actually i i wouldn't accept that because in fact i'm going to talk about that a little bit when i make my comments so i don't i wouldn't accept that as a friendly mr kirsten well mr kirsten are you hearing okay it's already it doesn't matter it's already

[03:53:20] it doesn't matter it's it's it's it's her time we're we're reiterating something that we've already accomplished um you can go on but uh okay listen i i'm going to support this i hope that um everyone on this dais is also very very concerned about power lines going through the rest of the county um and uh because we do have many many areas in the county where the power lines are affecting people's lives um so i will um support this as i did um the other resolution

[03:53:55] thank you uh miss umstead uh thank you madam chair um i feel like the the only thing we're accomplishing is and and it's worth accomplishing but trying to demonstrate to the people here in the room and back in their homes that we are extremely sympathetic to their situation But, frankly, I don't think this is going to do one bit of good.

[03:54:29] You know, and I think we need to be very honest with the public that the power does not lie with this board. And we can pass as many resolutions as folks would request.

[03:54:45] But in the end, the decisions are being made elsewhere. And so I will vote for it. But I hope the public does not think this is going to solve the problem because these decisions are not going to be made by this board.

[03:55:03] Thank you. Thank you, Mr. Crony. Thank you, Chair Randall. I am strongly supporting this resolution. I think it will have a huge negative impact on the rural character of western Loudoun County.

[03:55:22] and I've been a big proponent of protecting Western Loudoun County, but I also want to take into account other greenfield lines like this line, Golden to Mars. Our communities are just as impacted in Sterling and Ashburn, and the root cause of all of this are the data centers.

[03:55:45] I want to make that crystal clear. I hope this board supports the pause, and I hope they support an end to the grandfathering, because the root cause of all of this are the data centers, pure and simple. It is having a huge impact on our communities, and we need to take a pause.

[03:56:06] We need to take a look at our regulations. We need to take a look at our electrical infrastructure plan and the weaknesses in our plan. I know we don't have the jurisdiction, the SEC makes the decisions on the power lines, but we have to be involved.

[03:56:24] We have to have a seat at the table, and I think residents need to have a seat at the table because this does impact your quality of life. So I am pleased to support this resolution tonight, but I do think we need to consider the data centers, the over-proliferation of data centers in Loudoun County as the reason we're dealing with these power lines, with these greenfield power lines.

[03:56:52] It is appalling, and I'm very strongly opposed. I would like to see them underground as HVDC lines, of course. I wanted to see that with Golden to Mars, but we didn't get there, unfortunately, and I'm very disappointed with that. We pushed hard, but we didn't get there.

[03:57:11] I'm going to push again. I don't support Valley Link North, and I will continue to vote against data center applications. We have too many, so I look forward to doing what we can do to put a pause and to end grandfathering and to put in new standards and to get that noise regulations as soon as possible.

[03:57:39] I just heard that that might be coming online sooner than the Phase II standards so that we can help people. People are suffering with the noise, and I hear you. I hear you. So thank you for bringing this resolution, but I do hope that my colleagues will address the data center issue, too.

[03:57:59] Thank you. Thank you. Mr. Turner. Thank you, Madam Chair. Can I ask a question of Supervisor Kirshner? Supervisor Kirchner, on the phone call with Valley Link North, what was their exact quote? Did they say it can't be done to burying a high-voltage DC line?

[03:58:19] That was not the language. What was the language? Well, I don't know if it was not being able to bury it was said on the line or by one of the representatives to me, but that we've been told multiple times that it cannot be done.

[03:58:34] When we addressed the HVDC, they literally were silent on that aspect. Okay. I've been studying this stuff for a couple of years now for various reasons. I have pictures at home on my computer, multiple pictures on my computer at home, of a two gigawatt high voltage DC line buried in a five-foot trench, which can be covered over with dirt and planted with bushes.

[03:58:59] It's all over Europe. It's all over the West and the United States. It is decades-old technology, and I don't want to hear from any corporation, it can't be done. That's a lie. If a corporation says it can't be done burying high voltage DC lines, they are lying. The translation is we don't want to do it because we've never done it.

[03:59:22] We don't want to do it because it's new and scares us. We don't want to do it because it's going to cost more money. It can be done. It's a 260 mile line that is precisely what you build buried high voltage DC lines for.

[03:59:39] You need a converter station on one end and a converter station on the other, and you build a five-foot trench and you bury the line. It can be done. High voltage AC, completely different story. There's only one case in the country, Chino Hills, California. It's almost impossible.

[03:59:54] It's so impractical. But high voltage DC, this project is tailor-made for high voltage DC line, and we really have no authority and no leverage here. because we're the board, but by golly, talk to your federal representatives, talk to your state representatives, and get somebody to lean on the state corporation commission, and let's get the state corporation told this is bull. This is bull. For them to say they can't do an underground HVDC line, that is outrageous and wrong, and you the SEC should do something

[04:00:29] about it. Sorry, but I'm kind of motivated. Thank you. So a couple things. I'm going to respectfully disagree with my colleague from the Leesburg District, and to some degree my colleague from the Ashburn District, to say it's one thing to say we don't have a vote. It's a different thing to say we don't have any leverage. Those are two different statements. I do believe we have leverage because the constituents that all of them, or who are my constituents, are also the constituents of literally every state delegate and state senator in the General Assembly. They are the constituents of Mark Warner, they are constituents of Tim Kaine, they are constituents

[04:01:08] of Suha Subramaniam. And so when you are talking to us, they're paying attention, and they hear, and I make phone calls to all of them and talk to them about what we've heard, and I will send to them the recordings of this meeting itself so that they can watch it.

[04:01:29] So having decision is one thing, having leverage is something else, and I do think we have leverage. Listen, I remember in my first term talking at length and trying to get some restrictions around and some regulations around data centers during my first term and not being able to get anywhere with it.

[04:01:49] And I'm going to be really honest. I dropped the ball in my second term. My second term was all COVID all the time. So I stopped talking about the data standard restrictions in my second term that I talked about in my first term. I wish I had not. There are regrets, and I will not sit up here and say there are none.

[04:02:11] And I also realize how much this impacts people's pockets. I think it was Kathleen, who I've known for a long time, that said, you know, when they talk about how much money, you know, Dominion is spending or PGM is spending. Well, the percentage of money they're spending is probably lower than the percentage of money you spent on your homes. And so you have to remember, I have to remember that too. I also, there's two more things really quickly.

[04:02:38] There is a Virginia Code section 56-46.1 that says they require the transmission lines to reasonably minimize adverse impacts on residents. There is no way that they can look at this and say when you're going through farms, when you're going through the Gold Star Family Memorial in Lovitzville, you cannot reasonably say that you're reasonably minimizing impacts on homes.

[04:03:07] You are not. And so will this be everything? No. Is it something? Yes. And so So we're going to do our best, and my word to you is I will make all the phone calls to all those other elected officials and people who have not just leveraged power, but decision-making power.

[04:03:31] I do hear you. We do stand with you, and that is why I was happy to co-sponsor this resolution. Mr. Kirshner, would you like a closing? I would. Thank you, Madam Chair. Just a couple thoughts. We've been told that we can't bury the lines, that it can't be done.

[04:03:48] But now we know that transition lines, if converted to HVTC, can be done. We've been told it's too hard. But since when is being too hard ever stopped us here in Loudoun County or, quite frankly, in America?

[04:04:05] America has never become, never became great because it decided hard things were too hard. We connected a continent by railroad. We built the interstate highway system. we dammed enormous rivers, we electrified a nation, we built tunnels beneath our greatest cities, we built subways under the greatest cities in the nation, and we put man on the moon. I think we can bury these lines. The technology exists. Every generation has faced infrastructure challenges that seemed too large, too expensive, or too complicated. And America found a way to do them.

[04:04:41] We're going to find that way here in Loudoun County. We're going to find the way for this Valley North link. And we have a way. We are setting precedent that will change how we move power in this country. This is a precedent-setting proposal that we are putting forth on this board.

[04:04:59] I just hope the SEC, Valley Link, and the powers that be are listening. Loudoun County is being asked to accommodate infrastructure necessary to support one of the most significant... I already read that, sorry. If an overhead transmission line would permanently alter communities and landscapes, that generation of Loudoun residents have worked to preserve, then we should seriously examine the harder engineering solutions. And that engineering solution has been presented.

[04:05:26] I mentioned earlier when I met with the Valley North folks and I said, how do you feel about running lines through the Napa Valley of the East? There was silence. Even they know this is the wrong decision. It's expensive, potentially, but we can figure out how to pay for it. It presents legitimate engineering challenges, but it can be done. The question should be, what's the best way to build if the community that we live in for the next 50 or 100 years wants it? Sometimes leadership means choosing to do the hard things. That's what we are calling on Valley North, PJM, and the SEC,

[04:06:06] and our state and federal legislators to do. And basically what this resolution brings to bear is everything we have in the county toolbox to turn the tide, bury the lines. They have done it under the Hudson. They've done it all over Europe, and Dominion is also proposing it on a 180 mile plus stretch coming up to Southern Loudoun. They can do it on Valley Link, and I appreciate my fellow supervisors' support for this resolution. All right, the motion was made by Supervisor Kirshner. I seconded the motion. All in favor say aye. Aye. Any opposed? That motion will pass

[04:06:40] 9-2-0. All right, we're going to... Yeah, thank you. Okay, even when it feels good, we still can't clap. It's still going to be -- I mean, I actually am a very consistent chair and they're just rules of the room, so thank you, but jazz hands, please. Thank you. Thank you. Okay, so the next item is the response to board member -- response to board motion to cease

[04:07:17] processing data center applications. All right, so just to be clear how this works, this came, it was a BMI. And as we saw earlier, when there's a BMI starts, the supervisors explain the BMI and then they make a motion. But once the BMI passes and it goes to staff, the way a BMI works is that staff now will give

an update because it's no longer, it's not now a BMI of a supervisor or two or three, it's an item of the board.

[04:07:51] And so Mr. Rogers, being our attorney, will now give an update on what he would, the legal, and Mr. Glendo, thank you, Mr. Glendo, of the legal responsibilities or the legal ramifications the legal results that he found. Supervisors, without objection, I'm going to ask without objection that Mr. Rogers be allowed to give his legal opinion publicly so that everyone can hear it. We have a memorandum that we get, but it's an attorney-client memorandum.

[04:08:31] And so I'm going to say without objection that Mr. Rogers be able to give his legal opinion publicly so everybody can hear that. Point of order, Madam Chair. It was not a BMI. It was a motion at the July 22nd meeting that I made.

[04:08:47] And also, I have a motion up here to release the attorney-client privilege. If I might make that, it might make it easier for Mr. Well, do you want to release the attorney-client privilege or the attorney-client memorandum? The memorandum. Okay, then that's a different motion. That's the motion.

[04:09:02] Okay. So it might make the conversation easier. Okay. Well, yeah, you can go in and make that motion. Okay. Thank you. I move that the Board of Supervisors waive attorney-client privilege for the confidential legal memorandum prepared by the county attorney concerning 14.L response to board motion to cease processing data center applications on the September 15th, 2026 board business meeting agenda. I further move that the Board of Supervisors authorize the county attorney to release the memorandum publicly and offer a verbal explanation of its contents to both the board and the public during the September 15th, 2026 meeting.

[04:09:41] Second. You wanted to have a discussion on that? I guess, yeah, I'd like a short opening, if that's okay. As we witnessed tonight, this is an issue of high public interest and public concern, and in that regard, I think it behooves us as a board to be fully transparent when we are considering a pause of data center applications.

[04:10:06] Also, when I initially made the motion to have the appropriate staff research this issue and provide an analysis, I did not ask for a confidential memo. I asked that the board direct a board item be brought to this meeting.

[04:10:22] I was initially surprised that it came through on Thursday with no attachment, and then we received this confidential memo on Saturday. As we approach this topic, the last thing we need to do is be accused of making deals behind closed doors with special interest groups or big corporations.

[04:10:40] I understand why it's an attorney-client. No shade, no criticisms. I understand exactly why it is an attorney-client-privileged memo. But, again, I think that the public has a right to know the advice that we are getting from our county attorney.

[04:10:56] Thank you, Madam Chair. So I support this, and I actually mentioned that I was going to do this, that at the last meeting, because what sometimes happens is we go into closed session, and we get advice, and then we come out, and there are times when things are put forward as if we never got advice from our attorney at all, and people act like this is new information, and we can't say anything because it was closed session that we learned it.

[04:11:24] And that frustrates me for people to know things already but walk out in the dais and act like they don't know it because it just frustrates me when that happens. And so I want this to be released and so that everything that we know, you know, and there will not be kind of any game playing as if we don't know already what our attorney has said should be allowed, shouldn't be allowed, what the consequences are.

[04:11:54] and those types of things, and so both the discussion and the memorandum out in public and released for everyone to see, so we're all working and singing from the same sheet of paper and working off the same information, so that's why, yes, all right, you good, all right, all in the paper say aye. Aye. Any opposed? That motion will pass 9-0, Mr. Rogers.

[04:12:25] Thank you, Madam Chair, members of the board. I will make that memo public, and then I will provide just an introduction to what's stated in the memo, and then take any questions that you may have. A moratorium is not allowed in the Commonwealth of Virginia.

[04:12:42] There's a Virginia Supreme Court case directly on point out of Fairfax County, where the court strikes down a moratorium. I'm sorry, if I said memorandum, moratoriums are not illegal in Virginia. There's also an attorney general opinion that's on point of moratoriums.

[04:13:00] Moratoriums apply to both administrative and to legislative applications. Now, the code also provides timelines for consideration of each. Timelines for administrative applications are pretty short and require staff comment to go back within a certain period of time of 16, 90, or 120 days, depending on the application.

[04:13:23] With regard to legislative applications. Mr. Rogers, when you say, just for the public, when you say administrative applications, can you explain what that is? Because I'm not sure everyone always knows. You probably do, but just in case. An administrative application is in the nature of a subdivision or a site plan where the engineering of those plans need to be approved by the staff.

[04:13:47] And the staff gets to review those plans, makes the comments. And then over a period of time, it develops an approvable plan that is administratively approved by the staff and does not come to the Board of Supervisors. Legislative applications such as special exceptions, rezonings, ZRTDs, those are things that do go to the Board of Supervisors.

[04:14:12] And that the Board of Supervisors has one year in which to make a decision. In the Zoning Ordinance, we've specified that one year starts, not from when it comes to the board, but from when it first goes to the Planning Commission, so that starts the clock.

[04:14:28] And so the board can pause, for good reason, the consideration of legislative applications. In the memo, I referenced the Data Center Comprehensive Plan Amendment and Zoning Ordinance Amendment for the Phase II standards.

[04:14:45] It's not just for data centers, it also applies to substations, so that would be a sufficient reason for the board to put a pause on legislative applications. Now, I don't make a recommendation for that, and the reason for it is that the board can also decide each one of these cases on a case-by-case basis.

[04:15:04] You could approve the rezoning case, you could deny it, you could defer it, and as long as the case is deferred or paused, if the resolution we come back with passes, then the board can apply those data center and substation standards at the time it considers the legislative applications.

[04:15:26] So I'm giving you a basis for you would like to pause the applications. That would be a good reason to do so. Okay. Thank you. So the way this works now is this. I always go to the packet motion first, and as this was Ms. Bricksman, was it Mr. Croney, too, or just Ms. Bricksman?

[04:15:48] Okay. I would go to Ms. Bricksman for the packet motion. That's how I do that. If no one wants to make the motion in the package, they don't have to, but at that point, I go to the motions on the item as they came in to me today, but we always start first with the packet with the packet motion and so um so let me just say this would anyone like to make

[04:16:13] the motion in the package miss brixman miss brixman yes sorry i my motion that i sent earlier today is basically the packet motion with the i further move but you're saying i can't make the motion i sent earlier today even though it kind of includes the packet motion i'm saying that the normal policy is I go to the packet motion first for any, for, it would be you that would make the packet motion for obvious and great reasons. And then if the packet motion is not

[04:16:50] made, I go to the, any motion that came in by, by literally by the clock that it came in. Okay. And so, uh, I'd have to go look and see what time, because I think I got like three motions in on this today it's been uh what time what time did hold on just a second just hold on you sent yours in at 1 13. miss brixman do you know what time you sent yours in probably three something and who else sent one in nobody i sent one at noon and then i sent one later yeah so you said you're reading the noon one right now no i heard that was the that was to release our

[04:17:30] privilege yeah okay well then i'll go ahead and make the packet motion then we can okay make the I move the Board of Supervisors direct staff to prepare a resolution to pause consideration of legislative applications for data centers and substations while the board is considering the phase two data center standards and locations CPAM and ZOAM.

[04:17:49] Motion is made and seconded by Mr. Croney. Discussion on the motion. Ms. Bricksman. Thank you. I know that we're going to have a number of friendlies. I'm going to have a friendly to my own motion. I don't know how I accomplished that. But listen, my colleague from Little River is absolutely correct, as are many of the speakers who came out tonight.

[04:18:11] It's been interesting to watch these two topics in one night because they are intertwined. They are directly related. The number of data centers that have been built and constructed in Loudoun County, the expansions that have been approved, the rezonings that have been approved, it all is directly related.

[04:18:33] to the power and energy infrastructure that has had to be constructed to support the data centers. So, you know, Loudoun County has more than 250 data centers, maybe dozens more in the pipeline, and our understanding of the grandfathered and bi-right pipeline continues to grow, and we are worried about projects like Digital Dulles and Cyrus One in the Broadlands area.

[04:19:01] I have been voting against these data centers since 2020, and it's well past time that we get our arms around this industry. For too long, data center development has moved faster than our land use policies and our ability to address the impacts. Loudoners have repeatedly raised questions about noise, air quality, water quality, all the new substations and power lines that are encroaching on our schools and our communities, our public spaces, our parks, and the data centers are doing that as well.

[04:19:31] we've lost open space, we are losing rapidly developable land that could support housing or help us diversify our economy. We are really at a crisis moment. And I know we've heard this number

thrown around that a very small percentage of our county land has data centers on it.

[04:19:49] But I asked staff earlier this week, can we do a calculation of the developable county land that has data centers? And what percentage of our developable land? Because we are trying to protect our rural policy area and our TPA. So it's really important to understand, as we let these data centers gobble up our developable land, the impacts of that is having on our ability to diversify our economy and build housing.

[04:20:13] We're in the middle of phase two, the data center standards and location project. We are actively considering how we can get our arms around these facilities. I think it is definitely time to take a breath, take a step back, make sure that we have all the regulations in place. This is what I advise supervisors across the state and folks in my position across the country.

[04:20:33] Make sure you have got your environmental and zoning regulations in place and even your commissioning regulations in place. We do have the legal ability to pause the consideration of certain legislative applications that have not come to the Planning Commission, and I would urge my colleagues to support this motion.

[04:20:52] Thank you. Ms. Umstead. Thank you, Madam Chair. I worry a little bit, maybe I worry a lot about where we're going as a board when we seem happy to ignore one area, one industry that provides good paying jobs.

[04:21:17] Data centers, and you've heard it from some of the speakers tonight, provide the kind of good paying middle class jobs that people need. If we keep saying no, and we've begun to say no to these, and we shut down this industry, we're going to lose the jobs that keep, as we heard tonight, 1,000 Loudoun families able to put food on their table.

[04:21:48] I just cannot get past that. we've seen presidential elections lost by candidates who said they were going to shut down the coal industry or they were going to shut down fracking in Pennsylvania. Our first priority should be to make sure before we even think about shutting down anything, where are we going to find the jobs to provide these folks whose jobs we're taking away?

[04:22:18] And so I cannot support even a pause on this. Thank you. Mr. Crony? Okay. Thank you very much. I will be supporting this. And I don't think we've been ignoring the industry. The industry has been building buy right for 25 years.

[04:22:40] We didn't put in place the March 2025 requirement for a special exception until 2025 years. So we have been saying yes, and this will not shut down the industry because there are administrative applications that will continue.

[04:22:58] This is about legislative applications. So I support putting a break on legislative data center applications while we complete phase two data center standards, CPAM and ZOAM. This is common sense. I think we need to pause and plan.

[04:23:16] Based on two legal opinions, and I want to thank the Turners for giving their second opinion. I really appreciate that. A strategic pause on legislative applications for data centers and substations is legally permitted, provided it is temporary and supported by legislative findings.

[04:23:36] Other localities have established a temporary pause on data center applications. And the General Assembly is considering a statewide moratorium. We're going to hear more about that when the

General Assembly convenes in 27. Protecting the health and public health, safety, and quality of life of residents, to me, is more important than protecting the profits of billion-dollar data center companies.

[04:24:04] There are some things that matter more than additional tax revenue, our land, our water, our roads, our quality of life, and our community character. It is clear to me that the cost of data center development outweigh the benefits in Loudoun County right now, with the encroachment of data centers into residential neighborhoods, near schools, and environmental and historic resources.

[04:24:27] We just talked about the two Greenfield power lines, Valley North and Golden to Mars. They're having a huge impact on our communities. They're near our schools. They're near homes. They're on our historic resources. The broad run is getting destroyed.

[04:24:43] I support a temporary pause to get this right, and I support reasonable, common-sense standards. I do think residents need to be put first. Thank you. I think Mr. Kirsten, I think you were next.

[04:25:01] I can go next. Can I, through the chair, ask counsel some questions? Yes. Mr. Rogers, can you briefly, this particular motion, I know we have a bunch of them up here, but based upon your analysis, does this meet the pause that you spoke about in your memorandum, or is this the aspect of a moratorium that you would say would probably be legal for us to do?

[04:25:22] It would meet the pause requirements, because under the legislative standards, you have a year in which to make the decision, and the board's making the decision to put a pause, because it's currently in the middle of a comprehensive plan amendment and zoning ordinance amendment.

[04:25:38] So you see this as legal, not necessarily advisable, is what I heard you say. Am I putting words in your mouth? And if I do, I apologize. I haven't mentioned viability, but I do think this is legal. Okay. Fair enough. Another question I have for staff or anybody else who may, have we looked at the impacts this will have not only on those who work in our unions, maybe leases that may be impacted, maybe reliability on the grid because of substations that won't be able to build?

[04:26:07] Have we even looked at that? Have we done any analysis of that? No, we've not yet. All right, so we're about ready to maybe vote on something that may have impacts to our residents that we have no clue what they may or may not do. Let me also understand this, and I don't know if this is...

[04:26:25] So right now, every new data center legislative application that comes to the board must be voted on by the board because it's a special exception, correct? You're asking Mr. Rogers? Yes, I'm sorry, Mr. Rogers. I apologize. Mr. Rogers? Yes, that's correct.

[04:26:41] So basically what we're saying here is staff can go through the process of accepting legislation, the planning commission can go through it, but we're just going to let these applications stack up behind us for 12 months and we could still deny them or request proffers if we were considering accepting them.

[04:27:03] I mean, I don't think any application is going to pass on this board going forward anytime soon. So we're just, we're doing a, this, do you see this as doing a 12-month pause just on board action? So they're just going to kind of get up to the board and stop, and we're just going to sit there and do nothing when we could hear the application to deny it if we so wished.

[04:27:21] Madam Chair, if I may respond to that. Yes, please. It's an up to 12-month pause, and it's up to 12 months that the board has to consider a legislative application. How I see this is during that period of time, while you could act on each individual application and come to the same result.

[04:27:39] By putting the pause in place, you'll allow the data center and substation, zoning ordinance amendment, and then the CPAM to go forward, and you'll have those standards. Yes, it will create a backlog of cases, and they will back up, yes.

[04:27:57] So it doesn't change any of the current, and this is again through the chair, it doesn't change any of the current by right that are being built or in the pipeline. It would just be new applications, legislative applications. Yes, new legislative applications. You could still apply for them, but they would be paused in the process.

[04:28:15] Thank you. Ms. Glass. Thank you, Madam Chair. I will support this motion to take a pause on legislative data center applications while we complete Phase 2 of the data center standard amendments. I hope this will allow both the county and the industry to review where and how these facilities are being built to make sure they are compatible, especially where they have unfortunately popped up near residential communities.

[04:28:44] And I want to thank staff for your work. I look forward to voting on the final resolution. Thank you. Thank you. I think Mr. Sanger were next. Thank you, Madam Chair. I have a question for staff. If the pause today is from September 15, 2026 to September 15, 2027, well, let me rephrase that, If we do the pause, will that just be that one year, the dates that they gave you, or would it be until the Phase 2 is complete?

[04:29:18] Mr. Sainz, who are you asking that through, through the chair? Through the chair to staff, whoever. But who, who, who you? I see Mr. Lindo or Mr. Rogers, whoever. Okay. So I think we can work out the specific details on the resolution. I think our initial conversations would be that anything that has to meet with that 12-month deadline prior to when we expect Phase 2 to be complete would be handled one way, and anything that's after Phase 2 is expected to be complete would kind of just be put in line to move forward with the board at that point.

[04:29:51] So there are currently nine applications that we see in process that have been to the Planning Commission public hearing already. So with that being the trigger of the 12 months, some will have to be handled a little bit different than others. And do we have a date for phase two or?

[04:30:07] We're targeting by next July. Okay. And then, all right, so correct me if I'm wrong again, through the chair to either Mr. Galindo or Mr. Rogers. If it's Mr. Galindo, it's fine, just, yeah. Okay. Nor are Mr. Rogers, I guess, but, you know.

[04:30:25] So help us focus, understand. So if it's anything that's currently doing, going through the process through staff and they haven't reached the planning commission, those would be essentially paused so they would again we could finalize this with the resolution but at a minimum they would work their way through the planning commission and then we will lay out the resolution how the board how we would propose the board handle it based on tonight's motion but the planning commission would still hear those applications and staff would still be processing those applications prior to that point okay so if anything like if planning commission

[04:31:02] has a meeting next week or the week after october november they'll still hear all those things December. And then once they're done with the planning commission, then the one year clock would start for them. That actually starts whenever the planning commission holds its public hearing. Okay. And then after 12 months then we could possibly hypothetically get 5, 6, 10, or whatever the number is lined up to

be in front of us, say in 2027 at some point. Yes. And then we just have to, again, be reviewing all those and going through those one by one. Yes. Okay. And then for anything that is, again, going through the Planning Commission right now, T-Dub for September,

[04:31:41] October, November, December, would they have to go back and make any changes or updates once Phase 2 is completed? So for anything that is still in process after Phase 2 is enacted, yes, they would have to comply and it's subject to any grandfathering, but generally they would have to comply with those new regulations.

[04:32:02] Depending on, we'd have to look at it on a case-by-case basis, depending on what changes as a result of the ZOAM in particular, minor changes could be handled without needing to go back to the Planning Commission. In some cases, if there's changes large enough, some of those applications may have to get remanded back to the Planning Commission to be heard over again. But that's going to purely be case-by-case, depending on the specifics of each site. Thank you. Supervisors, I need you to pull your microphones a little closer so that everyone can hear you. You're not being as clear. So if you can do that, that'd be great. Thank you. Mr. Leterno? Okay. Mr. Rogers, you confused me a little bit because you said a bunch of things that are not in the motion that

[04:32:39] was made but are in the substitute motion which is currently not on the table for Mr. Rogers. Specifically you said that you thought that if the board paused consideration for 12 months that would be permissible but the motion on the table does not make any mention of a 12-month pause. It's an indefinite pause. It just says prepare a resolution to pause consideration of legislative applications with no dates and no time period.

[04:33:04] So how is that not a moratorium that is... I think there would be an alternate motion that would be made. I do too, but Mr. Rogers currently has advised that this motion on the table is permissible, and that genuinely confuses me. Madam Chair, may I?

[04:33:20] Yes, please. The motion that we had put in the package was a general motion of what would come out in the resolution, and the resolution would state just that. this motion that is the substitute motion that I understand that may be introduced is much more specific. It includes provisions for exceptions to it. It includes provisions for how it would be applied. And that is more detailed than what was in the packet. Okay. Thank you. So therefore, I'm not supportive of this motion as it was made. I want to have a discussion about the

[04:33:56] the substitute motion that supervisor turner has okay which would accomplish okay something similar but i think provides language that's much clearer and hopefully more permissible okay mr turner if you don't mind since you're going to make a substitute motion i'm going to speak on this motion and then go to you for a substitute motion is that okay so in general in general for me statements that are okay i can and i do i can care about more than one thing at one time

[04:34:29] And so with all respect to my colleague, Ms. Umstadt, I absolutely care about these jobs, these over 1,000 jobs in Loudoun County. I do. I mean, these are jobs that will literally lift people out of the, into middle class, will pay people's mortgages, will send their kids to school.

[04:34:51] These are important jobs, and I care about these jobs very much. To what Mr. Crony said, I can also care about the environment. I don't have to choose one or the other. And I am surprised sometimes when people just literally ignore the other side completely and don't even speak to the other side. We have

over a thousand good paying jobs in Loudoun County from just one union alone. I think we have somewhere between 12 and 15,000 jobs in the data center industry.

[04:35:23] I won't ignore that. I can't ignore that. At the same time, I have been voting against data sentence before it was popular and cool to do so. I voted against True North. I voted against many, many data sentence when no one else was even talking about it and tried to put some of these regulations that we're talking about now in place years ago and got no support for that.

[04:35:46] Luckily, or not luckily, the jobs that we see right now will continue. We can do this pause and jobs will still continue because this doesn't impact administrative applications and there's already jobs in the pipeline.

[04:36:05] So we can pause this and jobs are still there. It does not have to be one or the other. We care about jobs or we care about the environment. We can walk and chew gum at the same time up here, and I think that's really important to say.

[04:36:22] Mr. Sains was getting to something at the end, and I want to kind of work back around to Mr. Kirshner's question, why do this when these are already special exceptions? Because if we do a data center standards phase two, when these come back to us because of the pause, we can make those, the ones that come back to us, now follow the new regulations for the data standards phase two. That's why you put the pause in place, not just to do it and to look good, but because we can put regulations in place in the pause time that is required for those data

[04:37:00] centers to pass and to comply to post-pause and still, while in the pause, have those good jobs still being worked. More than one thing can be true at one time. My only question is, before I go to Mr. Turner, if it's a ZCPA, Mr. Rogers, how does that impact what we're doing up here? ZRTD. I'm sorry, ZRTD. ZRTD. How does that impact it? It is impacted because it's a legislative decision. What I would say is it's a unique legislative action that Loudoun County

[04:37:37] has because we have a transportation improvement district in Route 28. So it's a conversion from an old ordinance to a new one. Fairfax County, which also has the Route 28 district, does not use the ZRTD process. I will also tell you that the Route 28 transportation improvement district is expiring and the last payment is due on December 5th. So this would be a very short term for the ZRTDs. Okay, thank you. Mr. Turner, I think you have a substitute motion.

[04:38:11] Thank you, Madam Chair. I propose the following substitute motion. Hold on a second. A substitute motion can be made, and then the Chair will determine whether the substitute motion is in direct conflict with the original motion, and if I determine that, I wouldn't allow the substitute motion, and if I determine it's not, I could allow a substitute motion. So that's what we're doing right now. Sorry about that.

[04:38:32] I move that the Board of Supervisors direct staff to prepare a resolution to pause the Board of Supervisors' consideration of legislative applications for data centers and substations for a period not to exceed 12 months from the date on which the application was first submitted to the Planning Commission.

[04:38:48] The purpose of such pause will be for the Board to apply Phase 2 of the data center standards and locations ZOEM and CPAM to the application. At any time during such pause, the Board of Supervisors may take up any application for consideration if the application involves a grid reliability substation or if the statutory period is about to expire.

[04:39:10] The resolution shall be effective September 15, 2026, and the pause shall not cause an application to become inactive. Second. I will second that. Would you like to do an opening? Yes, please. First, thanks to Mr. Rogers when I first saw the base motion yesterday and read it.

[04:39:26] I talked to him, and I wanted to add language that was going to make what I thought this was more legally defensible. A couple of things about this. This allows the board to look at all pending legislative applications and apply the new CPAM and ZOAM performance standards to those pending applications, which I think benefits the community considerably.

[04:39:55] It makes some exceptions. The first thing to point out is that there was concern about a traffic jam at the end of the year. I don't believe there will be a traffic jam because every one of these pending applications will get introduced to the Planning Commission at a different time.

[04:40:12] We will freeze the staggered effect of those applications for a year, and then when they come out of that year, they will come out in a staggered form by when they were introduced to the Planning Commission. So I don't think there will be a traffic jam. I really think it's important for us, since we are going to the trouble to do the CPAM and the ZOMA, I think it's important for us to be able to apply those newer standards.

[04:40:37] Remember, those newer standards are going to have to be approved by the board. This isn't going to just be when we release the CPAM and ZOMA, and if I'm wrong, please staff correct me. It's going to be after they're released, presented to the Planning Commission, then presented to the board, going through public hearings, and there are going to be things in here that I'm going to want to see. This is Mike Turner talking. I'm going to want to see 500 feet as a standard from a nearest residence. I'm going to want to see 45 decibels max noise at the sending property line. I'm going to want to see a complete elimination of infrasound, low tonal hum.

[04:41:10] I'm going to want to see the 500 foot setback. Those are the discussions we're going to have in this phase two discussion. And so I think it's important that the new data center, that pending legislative applications for data centers, use this more precise language to be able to assess the new CPAM and ZOAM.

[04:41:28] This substitute motion incorporates everything in the base motion. It just does it with a bit more specificity. One thing I'd like to point out, a ZRTD is a zoning Route 28 tax district. These individual landowners have been paying extra taxes for 30 years in order to have the right to be able to consider it under an older zoning ordinance.

[04:41:48] I don't believe it would be fair after they have paid those taxes to suddenly make the ZRTD ineffective because of this pause. I would entertain an amendment, not a friendly, an amendment, because I don't want a friendly to kill the base motion if it's disagreed with. I would entertain an amendment to include as an exception in this motion the ZRTD applications.

[04:42:09] No, no, no. With respect, Mr. Turner, a friendly would not kill the base motion. an amendment will kill the base motion, so you might want to entertain a friendly. May I respond, Madam Chair? As far as from what I am hearing...

[04:42:25] May I address the county attorney? Sure. My understanding is a friendly immediately incorporates it as part of the motion. And therefore, if someone objects to the ZRT clause and doesn't want to vote for that, they will kill the whole motion. If they introduce it as an amendment to the motion, we

will separately debate the amendment for the ZRTD, that will pass or fail, and then we'll go back to this subject.

[04:42:49] So you're worried about, because now it's just, I'm doing a point of clarification. You're worried about someone saying no to the full motion because of friendly amendment? Correct. Oh, okay. That will happen. Okay, well, okay. That's interesting. Madam Chair, if I can respond, what Vice Chair Turner said is absolutely correct.

[04:43:10] And what you said was correct as well. It's friendly, it's added to the motion. But for those reasons, you might want to make it as an amendment. If his affiliates add to the motion, he's worried that somebody would vote against it because of the friendly. Is that right? That's right. Okay, all right, gotcha. So that's my substitute motion, and I'm amenable.

[04:43:27] Mr. Letourneau. Okay, the thing I wanted to dive into a little bit is the term grid reliability substation is not, to my knowledge, a legal term. I'm worried a little bit about asking staff to interpret what a grid reliability substation is.

[04:43:46] Now, I know they've presented this topic, Dominion uses this term, but it's not in the comprehensive plan. It's not in the zoning ordinance. I can envision a scenario in which a lot of substation coming forward will be there will be an argument that there will be grid reliability substations.

[04:44:04] So I don't I'm curious how we would do that. I'm also wondering if it's smart for us to treat substations exactly the same as we are data centers, because I don't know what I don't know about what's out there and what's pending and what the implications of pausing it would be.

[04:44:23] I'm pretty confident we can pause data center applications for a year and the world isn't going to end, you know, but I have no idea exactly what the implication is, even for those who someone may determine is not a grid reliability substation. So I guess I have a bit of a legal question about that term, and then I will put out there for a suggestion that I think it might be cleaner to adopt this as it relates to data centers, and then come up with some sort of alternative for how we want to handle substations. I also take the point that we are working on substations in phase two, and I do want to see new standards there as well adopted,

[04:45:02] But I also don't want to get ourselves in trouble with some of the substations that might be pending, which I genuinely don't know what they are. Mr. Rogers? Yeah, it's not a legal definition, but the State Corporation Commission distinguishes between a direct service substation and a grid reliability substation that's part of a high-voltage transmission line project.

[04:45:25] So when the State Corporation Commission is approving, I'll just say Mars to Golden, It's those two substations that are part of the process that they're approving to say that that's the reliability. I don't have any comment on the other question.

[04:45:42] So it's a state corporation commission definition that we could fall back on? It's the term they use. I don't know if there's a definition they use, but we can definitely use what the same thing the state corporation commission is. This is a motion to ask staff to direct something, so this is not the action tonight to actually adopt it.

[04:46:01] But I think we probably would just want to drill down on that. We would issue a little bit, and then I guess I will still suggest perhaps we treat substations a little bit differently than data centers. Well,

then before we go on, are you asking to divide a motion? Yeah.

[04:46:19] Are you? I mean. Are you, though? But are you? I mean, because it's a valid Robert's Rules of Order question, and if somebody asks to divide a motion, it's automatic. But are you? That is true. Just a second.

[04:46:34] I don't know that I'm asking to divide the motion as much as just whether the substation language is exactly right. That's what I'm really... And I'm not hearing a request to divide the motion? No, not at the... Okay. All right. Is it to this issue, or can I go to Ms. Bricksman?

[04:46:52] We're good? Okay. Ms. Bricksman? Thank you. So, yes, I will push back also against the notion that if you want to pause more data center construction in the county, that you're anti-worker.

[04:47:08] I mean, listen, I've supported collective bargaining. I signed the letter to the governor supporting collective bargaining statewide. We can build other things in the county, and I will support diversifying our economy. And I agree with the chair that we do have a number of jobs still to come, even with what's in the pipeline.

[04:47:27] This motion is fairly close to my alternative motion. I'll offer one friendly. I'm actually going to offer two friendlies. My first one is the second part of the motion that I put on the table. I further move that the board direct staff to identify which applications will reach the 12-month deadline and request that the applicant voluntarily delay their application if that happens until the CPAM and ZOAM are complete.

[04:47:55] I won't accept that as a friendly. It's a little too complicated to figure out. We can debate it if you want to make it as an amendment, but I won't accept it as a friendly. So a friendly is offered. Mr. Turner, who made the motion, said no to the friendly, which means it can't be accepted.

[04:48:13] It can be offered as an amendment to the motion, but not a substitute motion. So it would still be the base motion plus the amendment that Ms. Brickson just described. I'm going to read it just for the – first of all, stop her time and give her 15 seconds back, please.

[04:48:32] I'm going to read it just for the purpose, because I think you – I can't hear everybody up here. Are you guys hearing people just fine? Yeah. Because I'm not hearing everybody. Okay. I further moved the board of direct staff to identify which applications will reach the 12-month deadline and request that the applicant voluntarily delay their application until the ZOM and CPAM are complete.

[04:48:57] So, since the friendly was not accepted, would you like to make an amendment to the motion? I guess, I don't know how I can make an amendment. Can you start a time, please? How can I make an amendment to a motion if it's not a friendly? Move to amend.

[04:49:13] I move to amend? Mm-hmm. Exactly. Okay, I move to amend the motion. You have to say the amendment. I further move that the Board of Supervisors direct staff to identify which applications will reach the 12-month deadline and request that the applicant voluntarily delay the application until the Phase 2 CPAM-ZoAM are complete.

[04:49:35] So now this is one motion of which we can divide the motion, but it's still, well, I'm serious. I mean, but it's still just one motion that we're talking about because it wasn't a substitute motion. Okay, Madam Chair, point of clarification, though. I have another friendly, and, like, my time is going to run out, so.

[04:49:51] You want to make it right now? Go on and make it. Go on and make your other friendly. Okay, so my second friendly would be to strike the language that says, at any time during such pause, the Board of Supervisors may take up any application for consideration of the application, if the application involves a grid reliability substation or if the statutory period is about to expire.

[04:50:15] So, I move that we strike, I would like to strike that language. I won't accept that as a friendly. So, again, that, and I believe, Ms. Bricksman, with respect, I believe that's literally contradictory to the motion, and so I wouldn't accept that as a friendly just on, just based on, I think you just contradicted the main motion.

[04:50:35] Okay. So... Then I would request we split the motion and vote on that separately. Okay, then I'll split the motion. Okay, so supervisors, right now, it's still one motion, so we are just discussing either the part of the motion, I mean, the first part of the motion, but it's still the same motion. So, Ms. Gricksman, you still got time on the clock. Well, you know, I'm encouraged by this whole conversation and encouraged that the Board of Supervisors is listening to the community demands. They've been begging us to put a pause on this for a long time now, and I'm glad that

[04:51:09] we're doing it. Thank you. Sorry. Can I have some water? Thank you. I would love some water. Thank you very much. So if you want to, the motion was divided. She made an amendment. But it wasn't accepted. So she didn't do anything with that. She made an amendment. Nobody seconded it yet. Oh, she made it. Okay. I'm sorry. I'm sorry. Was that a straight up amendment or a friendly that wasn't accepted? I thought that was a friendly. First a friendly, which

[04:51:46] was not accepted, then she made an amendment, so we need to, but there's not a second. Okay, whoa, whoa, whoa. Hold it. I'm sorry. No, stop, stop, stop. I'm sorry. I apologize, because lots of stuff's going on up here. The first thing you said, you tried it as a friendly, it wasn't accepted, it was an amendment. The second one you tried as a friendly, wasn't accepted, and you dropped that, correct? No, I asked to split the money.

[04:52:08] She has two missions. I asked to split it. Based on your first or second friendly? I'm sorry, Madam Chair. I don't want to yell at you. I don't want to yell across the days. The first friendly, so I'm putting my microphone on.

[04:52:26] The first friendly was the second I further move on my alternate. That was rejected, so I made an amendment. And then the second one, you didn't make an amendment to it. You just said the first one first anyway. Okay, so we're going to, yeah, we're going to do that. We're going to dispose, we're going to go right now to your amendment, your I further move.

[04:52:47] Somebody can second that. Mr. Crony seconds it. We'll discuss that right now. Your second one, you did not make an amendment on that. No, I did not. Okay. That was rejected, friendly, and I asked to split. And you left it go. Okay. May I take just a moment to talk about why I'm doing this. I further move since we had so many.

[04:53:07] Sure, you can. Yes, you can. Thank you. It won't be three minutes. It will be one. No, no. Just one minute, please. Thank you. So the I further move, the intent of this is to, as we go through the process, we may have applications that hit that 12-month mark after they're at Planning Commission. And what it's asking to do is to have staff track those applications.

[04:53:27] It's to ask staff to track those applications. Does everyone understand this amendment I'm making? I hope so. To track those applications and then ask the applicant to voluntarily defer if we haven't finished the CPAMS OAM Phase 2.

[04:53:48] In other words, that can get us past the 12 months with the applicant voluntarily saying they'll wait. Yeah, I gotcha. I gotcha. You good? Because you've got 11 seconds. Thank you. I'm done. Thank you.

[04:54:04] Okay. Mr. Kirshner? So I have a point of clarification. If we're pausing all of this, why would we ask them after, why would we then ask them to defer further if they're paused?

[04:54:21] I don't understand the motion. It doesn't make any sense to me. If we're pausing applications going forward, why would we then ask them to defer until we're done the ZOEM? Do you want me to answer? Yes.

[04:54:36] Yes, you can answer, because that's my question, too. Thank you. So the idea is if we haven't completed the Phase II CPAMZOAM, there may be applications that hit the 12-month. Oh, that's assuming we haven't finished the Phase II. Right, assuming we haven't finished the Phase II and they hit the 12 months, they can voluntarily defer.

[04:54:58] Okay, we got you. When do we think it's going to take 12 months to do this? July 2027. July 2027, because we'll be done with our term by then. That's when they're going to bring it back to us. I know. So that's less than nine months. Yeah, but it could take us three months to adopt it.

[04:55:15] Another four months for us to adopt it. Okay. All right. So, okay. Mr. Sains on the amends. Thank you, Madam Chair. It's a question to Ms. Brisbane or staff. Okay. So your hypothetical is for them to voluntarily delay their application and staff asks them.

[04:55:36] Then they say, no, I'm not going to volunteer to defer. Then the board would have to take it up. I can already see people are not going to defer, but okay. All right, thank you. Mr. Crony? Yeah, I'm happy to support this.

[04:55:52] This is just basically making sure that we have the opportunity after 12 months. It may take more than 12 months because the timeline is ticking on September 15th, correct, for the resolution. So we're going, can I ask a question?

[04:56:08] You may. Yes. Thank you. So it's to September 15th of 27, correct? The board pause will be in the resolution itself, and it could be up to one year. And I think that the basis for it is so that you have the data center substation, CPAM and ZOAM completed.

[04:56:28] I believe what Mick Brooksman is starting to do here is there are cases that will have already been to the Planning Commission and that clock will have started to run. And so that this provision, and the same with Vice Chair Turner's motion, would allow the board to take them up or get deferrals from the applicant.

[04:56:47] So I think that's what it's intended to deal with. Excellent. Thank you. So, Mr. Turner, would you like to speak on just the amendment? Yes. Thank you, Madam Chair. I won't support the amendment, but here's why. I think the first sentence is impossible to determine. We're telling staff to identify which applications will reach the 12-month deadline.

[04:57:07] How do we do that? Every application is going to have a different starting point from when they arrive at the Planning Commission. So we have no way of knowing now. Staff has no way of knowing.

There are applications that haven't been sent to the Planning Commission yet may not come to the Planning Commission for three more months. So how can they make up a list of ones that are going to run out the one-year time clock?

[04:57:24] They don't know. Every application is going to be different. That's the first thing. And then request the applicant voluntarily delay their application until the ZOEMC PAM are complete. Okay. That doesn't do anything, they can just say no. They can just say no.

[04:57:40] I mean, it doesn't really do anything. So I don't know that there's a lot of substance added to this. Would you like to ask Mr. Galindo how they would follow the applications? I think the language is too imprecise. Okay. All right. All right. So we'll take a vote in just a second.

[04:57:57] Mr. Galindo, how would you all follow this? So we did a very quick inventory this morning. There are currently nine applications that we caught in the brief window. we look at this, that are data centers or substations that have already been to the Planning Commission public hearing. So whatever that date is, we would go 12 months out from that.

[04:58:18] There are three more that we anticipate going to hearing starting this month through November. And so they will have basically as things get to hearing with the commission moving forward, we will document that and start the 12-month window there to be aware of it so that the board has things put in front of them within the window that they have to act.

[04:58:37] Okay. You done, Mr. Turner? Oh, yeah. Okay. So I will vote for this because I don't think it hurts anything. I think you can go to an applicant and ask them to voluntarily delay the application, and they can say no, and then there's no difference, that nothing changes.

[04:58:57] I don't think legally it has any harm. I doubt that most applicants will do this, but truthfully, in some ways, I am a bit worried that in all these discussions we're having, we should have discussions with the industry because I have learned having discussions with the industry actually does yield something.

[04:59:30] And I have gotten things out of the industry that I needed or wanted because I didn't decide that they were all my enemies and that they would never work with me. And so sometimes having discussions with the industry and working with them is helpful. They can say no, they can say yes, but it keeps the conversations open.

[04:59:51] And so that's a good thing. I don't know that it's, I don't know, I think it's a push. It's not necessarily, that's a term for gambling, I shouldn't use that term. I think it's like, it doesn't harm anything, so why not leave the door open to keep talking to the industry? That's what I think, so I'm happy to support it. All right. Just on the amendment alone, and then we'll go back to the motion that Mr. Turner made, that I seconded, because on the amendment, Mr. Brickson made it, Mr. Croney seconded it. On the amendment alone, All the people can say aye.

[05:00:29] Aye. Opposed? No. Okay, that motion will pass, 7-2. Now let's go back, because Mr. Brickspin's second friendly was not accepted, and she dropped it. She let that go. So now we're still on the first motion, or the base motion, and I honestly don't believe who talked on it already.

[05:00:50] Point of order, Madam Chair, I asked to split, since my second friendly wasn't accepted. You asked to split that, too? Did she? Yeah. I asked to split because I want to vote no on that language for exceptions. Okay, hold on.

[05:01:06] So I don't know where we're pausing. I don't know where we're spilling. It's from any time during such. Okay, so we're going, so then, let me see if I can read this, let me see if I can read what we're doing now.

[05:01:22] Because you're asking for another amendment. Are you asking to split the motion? Just to split the motion. I just want to vote separately. on the second to last sentence. I'm okay with the start date. That's wonderful. That's wonderful. We're just splitting the motion, which is way easier than an amendment.

[05:01:38] So we're splitting the motion at any time all the way down to become effective? Right. Okay. No, we're down to expire. At any time during such pause, the board supervisors may take up the application for consideration if the application involves a great reliability substation or if the statutory period is about to expire.

[05:02:03] You're taking it to theirs. that correct? All right. So we, I think everyone discussed the first part of that motion. Has everyone, anyone misdiscussing the first part of the motion? So Madam Chair, point of clarification.

[05:02:18] Yeah, I know. Listen, I'm telling you, every Robert's Rules of Order class I have ever taken in my life, I've taken a lot, are all being used right now, I will tell you. Okay, point of clarification. So when you say the first part of the motion, you mean up to the words at any time?

[05:02:37] I'm saying up to the words at any time and then picking up at the resolution should be effective. Right. Okay. I have not spoken on that. And I don't think Mr. Sainz has either spoken on that. You have not spoken on that? He had his light on. Okay. Okay. I'm going to believe you. And this is, at this point, it's, it's, it's on the honor system. So. I'm glad you think I'm honorable.

[05:02:57] Okay. Well then we're going to go to Mrs. Sainz because, okay, Mr. Mr. Kirshner, would you like to speak on the part of the motion up to, to the application and afterwards? No, I'm going to go to you. All right. The resolution. Okay. So that's the, that's what you're speaking on now. Turner's portion that's been absent the part that's been cut out by. Exactly. Okay. So I just want to make some general comments here. First of all, I want to preface all of this with, I do believe we have our share of data centers in Loudoun County since we are the data center capital of the world. I don't think it's going to be a huge problem pausing data centers as a

[05:03:32] whole. I do think it's going to be a significant problem on our substations. I appreciate supervisors' motion that will ultimately include liability that is really, really important to our grid as a whole and to our residents. I'm just going to remind folks where we've come from where we are. In 2007, 81% of our tax base was made up by our residents. That's, as everyone knows, and has been preached over and over, that has changed drastically. That is for one reason and one reason only, and that is our data center industry. Now, that said, you can sometimes have

[05:04:09] too much of a good thing. I think we're definitely reaching enlarge that point. Obviously, if we had to do it over again, and we were able to plan, and we could say, hey, you put data centers here, or whatnot. Unfortunately, a lot of what has happened is they've sprung up in these various communities. Too close to homes, or in some places got put in the wrong place because we had an interpretation of our zoning ordinance that said, hey, any place you can build office parks, you can also build data centers. Last

couple of years, we've tried to pull that in, just so people fully understand. We've put a bunch of conditions on that. We've made it all new data centers as

[05:04:48] special exception. And then we have phase two going into the data center. I also want to point out to everybody listening and to my board, if you go back to when the pandemic began in 2020, the jobs in the surrounding counties, we have had growth of no more than 1% in Fairfax and the surrounding counties and negative job growth in Montgomery County and all the surrounding.

[05:05:10] Guess what we've had in Loudoun County since 2020? We've had 17.4% growth because of one industry alone. So with that said, I think oftentimes the data center industry gets vilified in large part, sometimes because for understandable reasons, which we're all trying to get a handle on. But what I'm really concerned about in this motion and why I am not ready to vote for it, I'm not even sure if I'm ready to vote against it, is we, as I ask staff, we don't know the full ramifications of this to our workers. I mean, we've had not only dozens still in the audience

[05:05:46] here, but hundreds of them were outside, and scores of them came inside. We don't know long-term how pausing this for 12 months, contracts that are coming in, anticipation, how that's going to impact their families, their food, their tables, etc. And so to kind of come in and just vote for this when we've done no analysis of it is very concerning to me. Now, I know this resolution's coming back to us, so I'm going to probably, I'm not going to vote yes or no on this, I'm just going to pass, and I'm ultimately going to try to figure this out before this rescission comes back to figure out where I am on it.

[05:06:20] Thank you, Madam Chair. I think the word is abstain. Yes, sir. Okay. Mr. of Sains. Thank you, Madam Chair. I'm going to kind of pick up from where Mr. Letourne left off, so we already found out that we don't have grid reliability substation in our documentation, so to speak, so I'm assistant staff or Mr. Rogers, Madam Chair, if you'd allow.

[05:06:46] Yes. So hypothetically, a data center application, or I mean, excuse me, substation application, whoever's bringing it forward, this applicant can literally just write in, oh, this is grid reliability substation, and then we're going to have to possibly accept that? Is that a question to Mr. Rogers?

[05:07:02] Mr. Rogers or Mr. Glenda, however they, whoever can answer. Mr. Rogers? Mr. Supervisor Sains, we would identify in the resolution what a reliability substation as to a direct service substation would be. So they'd have to meet that criteria in the resolution.

[05:07:20] Okay. And how would you determine, like right now, I don't know if you can even answer this, but how would you determine that? Using the State Corporation Commission's application of how they look at a reliability substation as part of a high-voltage transmission corridor and how that's being used.

[05:07:40] You can't have the high-voltage transmission lines without having substations along the way. So the substation would be part of the transmission of power to a grid, as opposed to a direct service, another term that they use, which is a substation that takes the power from the grid and brings it to the customer.

[05:07:59] All right. And who would be filing that paperwork, or how would you be getting that from the SEC? That's coming from, say, Dominion or Novec in their filings, correct? We would define in the resolution that the board approves which ones the board could take up, and which ones would be the direct service substations.

[05:08:20] All right, I might, I still have some heartburn on that question, so I might support the motion just to further it so you guys can do your homework and come back and see what you're... Well, you remember, this has been split out now, so you're asking questions about the part that has been actually split out. Yeah, but I'm... You are. I know, but that's, I'm going to speak on that part.

[05:08:37] Okay, that's what you want, okay. Yeah, that's the part I want to speak on. Okay, okay. Like I said, I have some reservations on that. Okay. So I might, ultimately, when we come to vote, might vote yes for it, so at least, staff can go do their homework and research and come back and see what it looks like. And then in regards to, about 37 seconds left, in regards to Mr. Turner mentioning earlier, he hasn't made an actual motion about ZRTDs, but if you do, I'll just say that plainly now, I will not support that. My district has been heavily affected by ZRTDs for many years, and we are looking forward to when we can sunset the ZRTDs, and we're looking forward to December

[05:09:12] 2026 coming around. We've been working very hard to end ZRTDs, so if you were to bring that motion, I would not be supporting anything that carves out language for ZRTDs. Thank you. Mr. Turner, before I, before, well, Mr., well, no, actually, it's me, and then I'll go back to you for closing.

[05:09:32] All right. So, Mr. Kirshner, with respect, this is a fairly small number of data centers we're talking about right now, because truthfully, we haven't voted for a ledge item in a data center in quite a while um in quite a while and i will i will put my support of unions and union workers up against anybody in the commonwealth of virginia hard stop period any day of the week

[05:10:03] this is only ledge items which means all the um as for as for right now until we get something answer back in on the 6th, all the items that were, that are administrative items are still going forward. Not to mention there's other things that they're working on right now that's not even involved in that. If I believed for one second this would take anyone's job away, I would not support it. I just, I wouldn't. Let me say this again. We do not have to talk in stark extreme

[05:10:40] terms all the time. We can say we support jobs and we support the economy. We hear the workers and we hear the citizens. It does not have to be one or the other. And we can also say there's a lot of things that have been out of our control. In fact, going back 25 years, a lot of things that we just inherited. But there's also some things that we probably should have done earlier and different. I don't think it's anything wrong with saying both those things. Again, in my second term, I felt like I walked through that whole term, you know, getting

[05:11:19] numbers of who died from COVID. And had I been kind of more not doing that all the time, we should have done the special exceptions earlier. And I don't think there's anything wrong with saying that I don't think that there's any shame in saying there's a you know there's most of this was by right applications that were put in place in in 26 years ago literally but the piece that wasn't we could have addressed earlier and and I accept that I hear that and I accept that I hear the concerns about the economy and your and and power bills because I pay the same power bills

[05:11:59] I hear the concerns about house values. I hear those concerns. I should say, just for the record, Loudoun does not have any AI training data centers. We don't have AI training data centers in Loudoun County. We only have cloud data centers in Loudoun County, and that's good.

[05:12:17] And with 233 data centers, I don't think anyone can say that we don't have our fair share of data centers. But we still don't have to talk in stark extremes all the time. We can put this pause in place and

still respect the workers and want them to keep working at the same time.

[05:12:36] On this part, Mr. Turner, would you like to have a closing? Yes, very briefly, and I'm fine. I've said all I need to say on the main part.

[05:12:52] Okay. So, just to be clear, I'm going to read what we're voting on right now. I move the Board of Supervisors, direct staff to prepare a resolution to pause BOS considerations on legislative applications for data centers and substations for a period not to exceed 12 months from the date on which the application was first submitted to the Planning Commission.

[05:13:13] The purpose of such pause would be for the Board to apply Phase 2 of the data center standards and locations, OM and CPAM, to the application. The resolution shall be effective September 15, 2026, and the pause should not cause an application to become inactive.

[05:13:33] That motion was made by Supervisor Turner. I seconded that motion. Madam Chair, I'm sorry. Do we need a date for the resolution to come back to the board? Point of order. That's not a point of order. That's a point of information. Sorry, point of clarification. Point of information. Thank you.

[05:13:49] Mr. Rogers? It staff anticipates bringing it back by October 6th, but we're happy to do that. October 6th? Whoa. Listen, I'm going to say the second meeting in October because October 6th is getting really full. All right. I've seen that, and we're going to be here tonight until 2 a.m.

[05:14:06] I'm not trying to do that two meetings in a row. So I'll say the second meeting in October. Thank you. We'll take that as the direction of the board. That's the direction. That is the direction. All right. Mr. Turner made that motion. I second that motion. I'm happy to say aye. Aye. Opposed? Nay. That motion will pass 7-1-1 with Ms. Umstead voting against it, and Mr. Kirshner abstaining.

[05:14:30] Mr. Sains is helping me. It's not that. All right. What Ms. Bricksman has wanted to separate out is at any time during such pause, the Board of Supervisors may take up an application for consideration to the application if the application involves a grid reliability substation or if the statutory period is about to expire. So that was made by Ms. Bricksman. Is that by Mr. Proney? No,

[05:15:04] no, that was just a separate. So no one needs to. It wasn't a, it was just separated motions. Okay, on that part of the motion, just that part, all in favor, please say aye.

[05:15:26] Are we going to discuss it? Okay, yes, we can discuss it. We can discuss it. Sure, we can discuss it. Ms. Bricks, would you like to discuss that part of the motion?

[05:15:42] Thank you, Madam Chair. Listen. One minute. One minute. It's one minute. One minute. One minute. I think that this is not needed for a couple reasons. The statutory period is going to expire. We let it expire, and then we have to bring back the, it'll come to the board.

[05:16:00] So I say that we don't need to have any sort of arbitrary judgment as to when it's appropriate to bring the land use case to the board. And also, I understand that Mr. Rogers says that we will define what grid reliability is in the resolution.

[05:16:20] However, I am not confident that Dominion has been genuine. Is that a word? I feel as if they've been disingenuous when they are claiming things are for reliability. And that when, in fact, we see letters and we see in this substation we're talking about tonight, they are saying it's for the increased demand and the growth in the economy of Loudoun County.

[05:16:43] It's not a reliability substation. So I just, I don't trust that. And so I'm not going to vote for this part of the motion. Thank you. Okay. Mr. Rogers, did you say it was Dominion or SCC? It's the State Corporation Commission. Okay, thank you.

[05:16:59] In particular, I am thinking about the golden substation that has been deferred and deferred, and that is part of the network grid that Dominion says is needed to rely on. I was just only asking because Ms. Vixman said Dominion, but it's actually SCC.

[05:17:15] Yes. Okay, that's what I want to make sure. Just want to make sure we're saying the right thing. Mr. Kirshner? Yes. So, Madam Chair, I've got one minute. To vote no on this is just grossly irresponsible for us not to consider an application that truly, truly has a grid reliability. Just to say, well, I don't trust Dominion. I know that we all have, you know, engineering, electrical engineering degrees up here, and we all know best. But when Dominion and their experts come in and say, hey, this one is needed, they'll tell us. I mean, we've had a number of them. I think we got one coming up tonight that is not a grid reliability substation. We are disserving our

[05:17:50] residents and our citizens by saying, oh, there's a reliability issue. We could have brownouts. We could have blackouts. We could have flickering. We could have all kinds of issues that occur. We could have data centers go down and generators go up, which is everything we talk about that we don't want. And to vote no or to even suggest that grid reliability is not critical to the infrastructure that we have in this area is irresponsible. So I just, that's all I'm going to say one more time it's not dominion it's scc but but but but it's scc who decides who says what

[05:18:23] that is okay all right but we just need to say the right things guys mr letourneau yeah i just i have a question on this language since we've paused on it and i guess the question is for mr rogers we're making the resolution effective september 15th which is today but we don't have a resolution. We've asked staff to draft a resolution. So, I just want to confirm that we can essentially backdate the effectiveness, effective date of the resolution.

[05:18:55] We would be backdating it. I'm not sure what the purpose of that is. You'd have to speak with Vice Chair Turner. In any event... I can guess the purpose, but I want to make sure it's legal. No, you're stating it today as the intention of the board, so that's fine.

[05:19:12] But the time period of this pause starts from today. I think that's what you want. Okay. I'm just checking. Thank you. All right. Mr. Turner.

[05:19:29] Thank you, Madam Chair. If this does not pass, then we are putting the golden substation on a one-year pause. And I think that would be very, very bad. I'm not happy about pausing it until December when there's not going to be any substantive changes to it.

[05:19:49] But to pause Golden Substation, which was identified as a critical reliability node in the fall of 2022, to now put it on a one-year delay really risks grid reliability and is extremely irresponsible.

[05:20:05] That's why I think this needs to be in there. As far as defining what grid reliability is, I like the county attorney's explanation that we'll define that in the resolution. I think you can do that. We have an application tonight that is clearly a distribution substation specifically intended to power next door data centers.

[05:20:24] We know what a distribution substation looks like and we know what a reliability substation. But I think this sentence is absolutely critical because we really risk putting Golden on a one year pause would be, in my judgment, close to disasters for this county. Thank you. So when I hear the word reliability, I obviously you don't want anyone's lights to go out and sit in the dark. That obviously. But I think we also have to think, or I absolutely think that there are people who are on medical equipment in their home and they may or may not have a backup generator. Their lights go out, their electricity

[05:20:59] goes out. It could be really, really dangerous. Even for a couple of hours, you know, there are people who just, if the food in their freezer all defrost, they may not have enough money to go buy food again right away. I think that we can be reasonable. We do know what grid reliability is. We do. There was a vote, I don't know, about a month ago, and it was a direct substation just to power a data center. That was actually, that original vote was an 8-1

[05:21:37] vote. I was the only one that voted against that substation because it was just to power a data center. If it was a grid reliability substation, that would not be a vote I took. And so it's going to be identified. SCC will talk about it. We can ask the questions. But we do know what the loop looks like that's a grid reliability loop. And we get, I mean, the amount of emails I get of somebody's lights flicker right now, I'm not kidding. We had a situation in Lansdowne a lot long ago. A lady, or a man, I don't know who it was, ran into a transmission box. And so we lost

[05:22:16] power in Lansdowne. And everyone was like, oh my. And I was like, guys, they'll be back on in three hours. And so grid reliability could literally be life or death. And grid reliability is not grid reliability in Loudoun County. It's grid reliability up and down the East Coast. And so we're not just talking about what could happen in our county. We're talking about what could happen all the way up and down the East Coast as far as people keeping their lights on literally and all the things that come with their lights on. I do not believe it's that hard to figure out what

[05:22:54] grid reliability is. And we can and we will question the SEC, like prove it, prove there's grid reliability to us. Mr. Rogers says that he can put it, he will define it. And so to some degree, we have to rely on that. So I'm not going to chance anything that can interrupt people's lights. They've never ran. You're right about that. Okay, that's fair. That's fair. That's fair.

[05:23:27] Up and down the East Coast, my time is up. That was not a motion, that was just a split, so there's no closing on that. This is just where we are. So we will now vote on at any time during such pause, the Board of Supervisors may take up an application for consideration if the application involves a group reliability substation of the statutory period is about to expire.

[05:23:56] That's what we're voting on. And I think, guys, help me out. This is a backwards vote. So if you vote yes, then you're voting for it. And if, yeah. And that's not backwards. It's not backwards. I'm sorry. It's pretty straightforward. My bad. My bad. Okay. All in favor, please say aye.

[05:24:14] Aye. Opposed. That motion will be 7-1-1, with Ms. Bricksman voting no, and Mr. Sains abstaining. We've been the dais since 4 o'clock.

[05:24:31] Thank you for sitting in here with us while we did all— Thank you all for coming out and for all the comments, for everybody coming out and for all the comments. We are now going to read into, like, five closed sessions. So we're going to be off this dais now probably for the next hour and a half, because we're going to do a dinner break and read into five closed sessions all at one time.

[05:24:53] We'll wait until you guys clear the room, and then we'll do the read in the substations. And thank you very much. We're doing, well, because we're not doing them all.

[05:26:30] If everybody doesn't mind clearing the room, we do have to read in the closed session. If you want to stay, stay. But we do have to read in the closed session. Thanks so much. We're going to read into five closed sessions. But, okay, supervisors, we are reading into closed sessions 15A, 15F, 15C, 15D, and 15E.

[05:26:58] Those are the closed sessions we're reading into right now, okay? And we're going, we just might as well take them in order, to be honest. We'll take them in this order, 15A, F, C, D, E. That's the order in which we will take them. Mr. Turner, will you please read us into closed sessions?

[05:27:16] Closed session 15A, I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to Sections 2.23711A19 of the Code of Virginia to discuss plans and policy to protect public safety as it relates to threats and vulnerabilities. 15C, I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.23711A3 of the Code of Virginia to consider acquisition of a parcel of property for public use in the Sterling Election District.

[05:27:45] 15D, I move that the Board of Supervisors recesses public meeting and enter into closed session pursuant to Sections 2.23711A3 of the Code of Virginia to consider acquisition of a parcel of property for public use in the Ashburn and Broad Run election districts. 15E, I move that the Board of Supervisors recesses public meeting and enter into closed session pursuant to Sections 2.23711A3 of the Code of Virginia to consider the acquisition of a parcel of property for public use in the Catoctin Election District.

[05:28:14] 15F, I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to sections 2. 23711A8 and A29 of the Code of Virginia to the Code of Virginia to consult with legal counsel pertaining to the negotiation of a collective bargaining agreement where public funds are being expended and where negotiations and open session would adversely affect the bargaining position of the county.

[05:28:38] Motion is made by Mr. Turner, seconded by, I'll second it. Any discussion on the motion? All in favor, please say aye. Aye. Any opposed? That motion will pass unanimously.

[06:43:32] Okay, we are back, and we have some motions out of closed session. I'm going to first ask Mr. Turner to read us out of closed session. I move that closed sessions be adjourned, that the Board of Supervisors reconvene its public meeting.

[06:43:48] That the minutes of the public meeting should reflect that no formal action was taken in the closed session. I further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting. Second. Discussion on the motion? All in favor say aye.

[06:44:03] Aye. Opposed? That motion would pass 9-0. Would everyone please affirm Ms. Bricksman? Affirm. And I affirm as well. Thank you very much. We have four motions coming out of closed session.

[06:44:18] I will make the first motion. It is a county-wide motion. I move the Board of Supervisors direct and authorize the county administrator and staff to accept Service Employees International Union's Virginia 512 request to enter into mid-term bargaining for the purposes of negotiating over assigning a dedicated employee to conduct union business.

[06:44:44] Motion to main. Second by Supervisor Sayings. I think that this was something that is needed for SEIU. It's something that may have just been, wires may have been crossed during negotiations. And so it's more of kind of correcting miscommunication is what this basically is.

[06:45:06] Anybody else? All in favor say aye. Aye. Opposed? No. No? Aye. That motion will pass. No. That motion will pass. Thank you.

[06:45:22] The next motion will come from Mr. Sains. Thank you, Madam Chair. You're welcome. I move that the Board of Supervisors direct staff to prepare a resolution to initiate condemnation and quick take proceedings as required pursuant to Virginia Code 15.2-1903B for the purpose of approving the proposed public use and acquisition of property located in the Sterling Election District for construction of an intersection improvements at Sterling Boulevard and Glen Drive.

[06:45:51] I further move that the Board of Supervisors direct staff to advertise the resolution for the October 14, 2026 public hearing. Second. Discussion on the motion? Yeah, be very super brief. This is a motion directing staff to go ahead and do the combination quick take.

[06:46:06] This is about getting land to help with putting some crosswalks on Sterling Boulevard, Glen Drive, and adding into our sidewalk and trails program that we have identified for this area. So it's definitely needed in riding also a stoplight. So we're good use for safety.

[06:46:22] Thank you. And walkability. Wonderful. Anybody else? All in favor, please say aye. Aye. Any opposed? That motion will pass 9-0. The next motion is in the Ashburn and Broad Run District. Mr. Turner. I move the Board of Supervisors and direct staff to prepare a resolution to initiate condemnation and quick-take proceedings as required pursuant to Virginia Code 15.2-1903B for the purpose of approving the proposed public use and acquisition of property located in the Ashburn and Broad-run election districts for construction of intersection improvements at Waxpool Road and Ashburn Road, Ryan Corner Place.

[06:46:56] I further move the Board of Supervisors and direct staff to advertise the resolution for the October 14, 2026 public hearing. Second. Seconded by Ms. Glass. Discussion on the motion? None. Anybody else? Seeing none, I'll be able to say aye.

[06:47:12] Aye. Any opposed? That motion will pass 9-0. And finally, Mr. Kirshner. Thank you, Madam Chair. I've got to find the motion. Here we go. I move the Board of Supervisors and direct staff to prepare a resolution to initiate combination and quick-take proceedings as required pursuant to Virginia Code 15.2-190-B for the purpose of approving the proposed public use and acquisition of property located in the Catoctin Election District for construction of Route 15, Spinks Ferry Road, New Valley Church Road, Roundabout.

[06:47:43] I further move the Board of Supervisors and direct staff to advertise the resolution for the October 14, 2026 public hearing. Motion made. Second by Ms. Amstead. Discussion on the motion. Mr. Kirshner? No, just this is an important aspect of the 15 corridor and hopefully get it done. Thank you, Madam Chair.

[06:47:59] Thank you. Mr. Turner? I'm sorry. Oh, okay. All in favor, please say aye. Aye. Any opposed? That motion will pass 9-0 as well. Let's go to board comments and disclosures. Everyone, please. Let's go to Mr. Crony.

[06:48:16] Thank you, Chair Randall. So my disclosures on September 8th, I met with Kathleen Leonard and other representatives of Dominion regarding the panel wiring shop outdoor storage application.

[06:48:36] Okay, my comments. So residents have been asking for accurate information about the number of data centers in Loudoun County, how many are operating, how many are under construction, how many are approved and how many are in the pipeline. And at a recent Brambleton Town Hall, one resident specifically requested a public data center dashboard, and I'm pleased to report that the county is developing one that will provide more user-friendly and transparent information, including the number of data center buildings, square footage, and buildings by campus,

[06:49:11] and which projects are legislative versus by right. This will provide one reliable set of numbers that the board and public can use. And it will eliminate inconsistent messaging and numbers.

[06:49:28] I know I've said a few numbers and others have said different numbers. And allow the public to better understand the scale of data center development in Loudoun. I think it's really needed for transparency and also just clear information.

[06:49:46] And it will be available hopefully in October, and I look forward to, you know, getting this out in my newsletter so that residents can refer to this and so we can all be working off the same data set.

[06:50:03] So, I just wanted to let everybody know that that's coming, and I want to thank all the departments who are partners in this effort to make this happen and to create an online data center dashboard.

[06:50:19] Thank you. Ms. Umstead. Thank you, Madam Chair. I have one disclosure, a phone conversation with Morgan Hadlock on the, I believe, Thayer Road substation issue.

[06:50:43] Do you want board comments at this time? Yes. Okay. Just wanted to thank Chief Williams of Loudoun County Fire and Rescue for working with the folks at Segra Field to organize the stair climbing event at the stadium.

[06:51:09] I thought it was one of the most moving 9-11 events it's ever been my privilege to attend. I want to congratulate the chair and supervisors to Crony and Glass for completing quite a few steps.

[06:51:32] And I think Supervisor Turner was there as well. And I want to commend Tim Hemstreet, Shireen D'Arazio, and Joe Crow both for doing all 110 flights of stairs, which was unbelievable.

[06:51:51] And I want to thank everybody who, when they saw that there were maybe 100 face cards for the victims of the 9-11 terror attacks still lying on the table, everybody just started grabbing them so that no victim would be left behind.

[06:52:15] So it was a very moving ceremony. Thank you. Thank you, Ms. Brooksman. Where is my voice? Thank you. I don't have any disclosures. I wanted to share that yesterday, actually, Microsoft was fined by the Department of Environmental Quality of Virginia for violating emission standards for backup generators.

[06:52:42] They were fined \$2.4 million. They are required to purchase and give to the state 45 air quality sensors and one mobile van with air quality sensors on them.

[06:52:58] This is the largest fine of this type in U.S. history. And I'm really encouraged by this. This is a critical case exemplifying how we can hold big corporations accountable for harming our communities.

I'm encouraged to see DEQ's action, and I'm hopeful that we can continue to work on protecting our communities from encroaching data centers, air and noise pollution, and the electrical infrastructure they require that is encroaching on our schools and our communities and our recreational spaces.

[06:53:31] We've had some interest from the community about the Riptide Square fire and the demolition of that property. I checked in with staff. There was a petition from the neighborhood, and I checked in with staff. And it's going to be about a 10-day process now to scope out the work, do a task order, and pull the permits.

[06:53:53] and we are hopeful that that property can finally be demolished and cleaned up by the anniversary of last October's tragic fire that took a life. It was a case that just was also resolved with a guilty verdict recently in our courts.

[06:54:11] So I thank staff for helping, and I thank my colleagues for supporting the ordinance to clean up that property. I wasn't sure I would say this anytime soon, but I want to commend the Supreme Court of the United States for their ruling yesterday on the executive order where our president was attempting to rig the elections this year.

[06:54:37] And I am hopeful that they may actually be interested in preserving our democratic system of voting. Be reminded that October 23rd is the last day to register for early voting, and early voting actually starts in the midterms this Friday.

[06:54:55] I'm hosting a town hall on September 24th at GW Innovation Hall on the proposal for about 800 square feet of data center at that property. The town hall will be from 6 to 730 on September 24th.

[06:55:13] And please check my Facebook page and my newsletter, and GW is requiring folks be registered. According to the Gun Violence Archive, we've had 334 mass shootings this year, 614 deaths were aged 12 to 17, 161 were aged under 11, and we lost 9,200 lives to gun violence this year.

[06:55:35] Thank you. Mr. Letourneau. Oh, I meant to say that Microsoft was in the lead. Mr. Letourneau. No disclosures. The data center. Mr. Leturne. Okay, no comment. Mr. Kirshner. Yes, Madam Chair.

[06:55:50] Just briefly, a couple of disclosures. September 8th, my staff and I met with the applicant for Clear Spring Village, and on September 14th, my staff and I met with the applicant for Tech Park Dulles substation. I had some comments. I'll just make them very brief. We have a number of events coming up in Catoctin, if you're interested.

[06:56:07] The Bluemont Fair is coming up on Saturday and Sunday. Levisville will celebrate Oktoberfest, as we heard from the mayor today, on, I have September 26th. I think he said October. I'm not sure who's right, but my, I believe it's September.

[06:56:23] And then on September 27th, Percival will hold its Hail to the Trail event. And that's the news from Catoctin. Thank you, Madam Chair. Thank you very much, Ms. Golas. Thank you, Madam Chair. On Tuesday, September 1st, my staff met with representatives from Equinix to discuss Equinix.

[06:56:41] Ashburn North Data Center application on September 15th. My staff met with representatives from DLA Piper to discuss the Tech Park Adela substation application. During the Disability Services Board meeting on the 8th of September, the program manager for the Department of Family Services Information and Referral Line provided information about the county's Care Net Non-Emergency Transportation Program.

[06:57:09] This program provides transportation for non-emergency medical and dental appointments for those that qualify anywhere in Loudoun. So if you want to find out more information, go to [loudoun.gov slash 1699](http://loudoun.gov/slash/1699). During the Family Services Advisory Board meeting on the 10th of September, a presentation about the county's companion program was provided.

[06:57:34] County's companion program is for income qualifying adults age 60 and over and adults between the age of 18 and 59 with developmental disabilities who need assistance around the home. Participants are provided between 2 to 30 hours per week to assist with activities of daily living such as like housekeeping and running errands.

[06:58:01] If you want to find out more information, you can go to [loudon.gov slash 995](http://loudon.gov/slash/995). Thank you, Madam Chair. Thank you. Mr. Sainz. Thank you, Madam Chair. I'll start with mandatory disclosures. On September 8th, my staff and I met with Walsh Kaluchi and their applicant learner regarding Dulles Town Center proffer amendment legislation on Thursday, September 10th.

[06:58:28] My staff and I, with a few county folks, met with Dominion to talk about a few substations and lines regarding Dominion. And then on Monday, September 14th, my staff and I met with representatives from Cooley and Digital Realty and Bloom Energy regarding the Dulles, digital Dulles application.

[06:58:58] And as was noted earlier, DEQ, after some conversations with Microsoft, handed out a fine. And that is precisely another example of why I brought my BMI forward a few weeks last month, or excuse me, in July, where I did the BMI for backup generators to have us assess and figure out a way to limit how long the backup generators are allowed to run during emergency purposes.

[06:59:28] This is a clear example of them running, I believe it was for six or seven days without their power. So we'll see what staff comes up with, and we'll definitely reach out to our General Assembly and federal counterparts and see what we can do regarding these backup generators.

[06:59:46] But this is, again, a great example of why I brought that BMI forward, because this cannot continue to happen where they just run whenever because it's, quote, unquote, in emergency purposes. You know, last week, Friday, was the 25th anniversary of a very tragic day that changed our nation.

[07:00:13] Like many of you, I vividly remember where I was when this horrific event happened. Definitely wanted to recognize those 3,000, nearly 3,000 lives that were lost that day and their family members and their loved ones that were affected from that day and what happened.

[07:00:36] As we know, there was two Loudoun residents that lost their lives and, again, changed their family for the rest of their lives, Christopher Newton and Dong Chiu-Li, who are memorized, memorialized here in Loudoun with the naming of Newton-Lee Elementary School.

[07:00:54] So my thoughts and prayers are with their families, loved ones, again, that were affected. And I also want to, you know, highlight those 40 individuals that were on Flight 93 that chose openly to do something.

[07:01:19] And I guess you could say they fought and fought bravely and served their country with their actions. And also just want to recognize the flooding that happened in Nepal. My prayers are with those families. We have some Loudon residents that have been missing.

[07:01:36] My thoughts and prayers go out with their family and loved ones. And if anybody needs help or has any information, please make sure you reach out to Congressman Supermonion's team office for

support or information. Thank you. Thank you. Thank you, everybody. Yeah.

[07:01:52] Mr. Turner? I'll say it on the mic. I have no disclosures, no comments. Thank you. Mr. Crony, just because I believe in giving credit where credit is due, that dashboard you're talking about, which I think is going to be fantastic, was Mr. Sainz's idea.

[07:02:09] He was the one that asked for it, and I think it should be said that that's where that came from. The only thing I want to say is what I said at the beginning of the meeting, and I'll say it very quickly. Saturday is the opening of the Crisis Receiving Center. One in five people in their lifetimes might have a mental health crisis.

[07:02:29] Right now, people have mental health crisis. They often end up either in jail or handcuffed to a gurney in a hospital with a law enforcement officer having, by law, to sit with them until a bed becomes available.

[07:02:45] That just makes the mental health crisis much, much worse. People with mental health conditions do not belong in jail. Mental health is health. The crisis receiving center is, if you think of it, almost like an emergency room for a physical problem.

[07:03:01] If someone's having a mental health crisis, they can go there, they can be diagnosed, and then what will happen next can be determined. If they have to stay longer than 24 hours, there will be 10 beds available for a short stay. And if they have to go to a treatment center where there's a longer stay, or if there can be a plan made for them to return home safely, that may happen too.

[07:03:29] We will have people from other, I have invited people from other surrounding counties to come because when people have a mental health crisis, they do not stop at the border of your county. I will say that there are so many reasons we should have this crisis receiving center, but I do want to say the name, Marcus Davis Peters, the Marcus Alert was named for Marcus Davis Peters, who was having a mental health crisis.

[07:03:57] It was when the law enforcement at that time did not know what they were looking at. I won't go through the whole thing, but he ended up losing his life that night in the middle of a mental health crisis. a person in a mental health crisis should never end up losing their life.

[07:04:12] And so to Monica Spells, to Margaret Graham, thank you. To Mr. Hempstreet, thank you.

[07:04:29] To everyone who has worked on this, we've been working on this for quite some time. This is a very, very, very big deal. that we're going to cut the ribbon on the Crisis Receiving Center. So thank you to everybody. All right, colleagues, if you have an appointment, please put your light on.

[07:04:53] Ms. Glass. Thank you, Madam Chair. I nominate Ms. Kendra Bruce as a large representative on the Family Services Advisory Board. Thank you. All right, that's it for now. Okay, we're going to go on and finish the rest of our items.

[07:05:10] I think we have three left, guys. I think you guys said three, too. I think we have three left. 11K and 14J. Then close session. Oh, appointments. Okay, yeah, 11K. Would staff please come to the table? Mr. Razia, I really did try to get you out of here.

[07:05:31] I made every effort. Can I make a motion to begin? Well, I want to see if staff wants something they want to say first, but then, yeah, just give us a second, see if they have anything they want to add. If they don't, then, yeah, sure. Hi, how are you all?

[07:05:48] Good evening. Do you have anything you want to add that's new or that we don't know? Because otherwise we can go straight to the motion unless you have something you want to add. We just had a very brief opener to the item, if that's okay. Sure. Sure. So good evening, Chair Randall and board members. With me this evening to discuss item 11K is Shireen D'Orazio and Marie Caraballo from DTCI and Samira McCamill from the Division of Procurement.

[07:06:11] As a follow-up to last week's discussion of the Finance Committee, staff included in the item additional information on each segment to note whether any segment had any existing facilities on either side. As you will see under the background section, half of the segments do not have any existing sidewalks or trails. Further, staff has noted in the fiscal impact statement that if the board does approve this contract award and the associated CIP amendment, the remaining balance in the CIP contingency will be approximately \$82 million. Lastly, staff included a breakdown of the project costs provided by the contractor as part of attachment 9. That concludes the staff updates and we are available to address any questions.

[07:06:48] Well, that was very, very quick. Thanks so much. Mr. Sainz, would you like to go to a motion? Yeah, I think we can make a motion and speak within the motion. Sure. I move the recommendation of the Finance, Government, Operations, and Economic Development Committee that the Board of Supervisors authorize the purchasing agent to award the design bill contract Forge Sidewalk and Trails Program Consolidated Projects Group 1 Project to the Shirley Contracting Company, LLC, in the total amount of \$40,896,786.

[07:07:22] I further move that the recommendation of the Finance, Government, Operations, and Economic Development Committee that the Board of Supervisors authorize the amendment of the fiscal year 2027 Capital Improvement Program by directing staff to execute a budget adjustment to move \$19,119,260 from the CIP contingency account to the Sidewalk and Trails Program Consolidated Projects Group 1 Project in the Capital Projects Fund.

[07:07:50] Motion's made and seconded by Ms. Bricksman. Mr. Sains. Thank you, Madam Chair. Just overarching, this is a project that we've all been, well, it's starting, moving us forward again in our Sidewalk and Trails Program that we all have a lot of, I'll just say, projects in the pipeline.

[07:08:11] This is one of our first major groups that will be moving along with this motion. I know there were some conversations about how the amounts were calculated. I think there probably will still be some more conversations from my board colleagues to staff to get a better understanding of that because the lengths are, you know, we have .06, .53, .54, .63, .55, .07, 1.2 miles, our rear segment, and then 0.68 um and then there's the totals and the cost column which again colleagues rightfully

[07:08:50] so have some questions about how we got to the numbers with some of the the lengths um but i think overall this is a good project to continue to move forward and uh bring some sidewalks and trails to much needed areas within all of our districts so uh hopefully we can support this and like i said please engage have conversation with staff but let's continue to move this item forward. Thank you. Thank you. Um, Ms. Brixman. Thank you very much. Yeah, I'm, I'm really happy to support this. And I think the pilot, um, the pilot program is a really good idea so we can test some of our theories on, on these sorts of things. I will say that, um, you know, it's, it's difficult

[07:09:29] and it's expensive to try to convert a car centric community to a connected community that offers multimodal forms of transportation, and even encourages folks to use these multimodal forms of

transportation. And at least in my district, and I think in many of our districts where we have these projects in the pipeline, it's a huge safety concern. I mean, I drive through some of these areas, and a couple of them that are actually in this pilot, where I just fear people are taking their lives in their hands because they're walking on, you know, a shoulder or grass, and it's just

[07:10:08] there's no barrier between them and the traffic and they're pushing strollers and they're carrying their groceries and so um i i have been frustrated with how long some of these are taking but i understand with moving utilities and acquisition of property that you know it just takes a while so i'm i'm very excited to get this and i'm glad that we're moving money over to do it i think this is really critical for our entire community one question i did have and i think you answered it Did you say that there's \$82 million left in the CITP contingency fund?

[07:10:42] That is correct. Okay, okay, great. So we still have some padding if we have some projects kind of go off the rails. And I know that we have, I feel like we have little pockets in places where we can tap. So thank you very much, and thanks for all your work on this.

[07:10:57] I know that the STP program has been just a monster to manage, and so I really appreciate it. Thank you. Mr. Letourneau? Thank you, Madam Chair. So, I know that staff had a limited amount of time since the finance meeting to try to get us some more information.

[07:11:17] I really still don't have a very good understanding of what the actual drivers are of the costs on each of these. So, I'm really uncomfortable. This is \$57 million to build four miles of sidewalk, which is more than \$14 million a mile for sidewalk, which is, again, greater than the amount per lane mile in the road cif which is 8.6 the millstream project which is in my district is only 565 000 so there obviously must be major characteristics that are very different between these projects and some of them must be much more complicated but i really can't tell from what's

[07:11:56] here there is an explanation of what's kind of the existing condition so i don't know if there's anything you can tell me in two minutes that's going to make me feel better about this but But if you have any greater explanation why some of these are really expensive, I would welcome it.

[07:12:14] Yes, we'd be happy to provide additional information. But just quickly tonight, like you mentioned, some of the different segments do have other complications as utility relocations where the proposed sidewalk or easements are to be located.

[07:12:30] We also have some of the other, for example, the Davis Drive is one of the longest proposed segments, which has approximately 1.2 miles of proposed facilities. That one has the largest amount of money allocated to it for the construction of that, and it also has other, like, utility relocations.

[07:12:54] So a large portion of that corridor where it's proposed also has big utility relocations. So the largest I can say in a quick summary is because it does have a lot of utility relocation implications and risk that we're trying to mitigate for those segments.

[07:13:14] Some of the other segments, for example. So can I just, sorry, I only have 100 minutes. So I feel like we're paying a very big risk premium here. Is that a fair thing to say? I would say so for at least for the utilities and land. We don't really know, and so this kind of the pricing came in really high because of the unknown there.

[07:13:33] Yeah, so I, for me personally, I feel like I would really need to go through each one of these and do a cost-benefit analysis with all the data and what we expect for pedestrians and stuff to be able to decide whether I'm really willing to spend as much as some of these costs because it's easy for us to do this in a vacuum, but now it's impacting other things.

[07:13:52] We're moving contingency over. We still have \$82 million, but we're moving contingency over to fund it. Some of these I would probably do, some I may not, if I, you know, depending on that equation, and there just wasn't time in this particular process to be able to do that.

[07:14:08] Dr. Crony? Thank you. So I also am concerned about the price per mile, \$14 million per mile. I do have concerns about that.

[07:14:24] I noticed that you mentioned that the land acquisition costs were 27% of the budget. So is it land acquisition or utility relocations that are creating that high cost per mile? I would say that a portion is allocated to utility relocations, but as well as land acquisitions, there are approximately over 60 parcels in the combined eight projects that need to be acquired for the project as well.

[07:14:57] I thought we were trying, so this is going in the wrong direction. I remember when we were talking about \$9 million to \$10 million a mile. Now we're at \$14 million a mile. I thought we were going to look at putting some of these trails outside of the VDOT right-of-way where you would not have to do a utility relocation.

[07:15:20] I would have to look at each specific location. Some of these are within proposed easements. But even so, depending on the area that's available to do the actual project, there are a lot of utilities next to the existing corridors, so there are expected impacts to utilities.

[07:15:43] Yeah, I mean, I'd prefer getting it outside of the VDOT right-of-way and putting it, you know, where maybe we maintain it. Maybe it would be cheaper that way, you know, rather than having VDOT maintain it. Yeah, and we can look into those as options when we get into the design.

[07:15:59] I know we've done it on other projects where we veer the proposed improvements to try to avoid some of the utilities. Okay, and do we work with, I would think sometimes there's a big benefit to like an HOA or a community.

[07:16:15] I mean, are we still having to buy the right-of-way or do we work with those communities to see if they would donate the, you know, the easement for the land? We would still have to negotiate, if it's not in the right-of-way, a proposed shared public access easement, but I will defer to RPAM on that.

[07:16:38] I know when they get into conversations about land negotiations, they can definitely present that option. Okay, so yeah, we're kind of going in the wrong direction, because I remember I was kind of shocked when this was brought at the first time, and it was 9 to 10 million a mile.

[07:16:57] and now we're at 14. So yeah, I'm just surprised at the increase. So I'll just say that. Thank you. So this seems to have come back really quickly out of finance. But one of the things I ask in finance is the places we're talking about doing this, some of the streets in Loudoun County, on one side, there is no sidewalk or trail. And on the other side of the street, there is a sidewalk or trail, so it's just not on both sides. Did we find out for any of these, is there a

[07:17:30] sidewalk or trail on either side? Yes, and that was included in the updated staff report. Okay, can you? Sure. For the Ashburn Village Boulevard, sidewalk is just on the west side of Ashburn Village. For

Ashburn Road, there is a sidewalk on the west side. For Leesburg Pike, there are no facilities along this location. Smithswitch has a sidewalk and share use path on the west side of Smithswitch. Potomac View has no facilities at this location. Millstream has sidewalk on the

[07:18:07] north side of Millstream Drive. Davis Drive has no facility along Davis Drive. And then for Sterling Boulevard, no facilities. So I would be willing to, although \$14 million is a whole lot of money. I would be willing to have that discussion for the places that don't have any sidewalk on either side, but if they have a sidewalk and or trail on one side, I can't see doing \$14 million. I mean, I just can't see that amount, and I think that does make a difference based on that.

[07:18:43] Mr. Saines, would you be open to a friendly amendment that said that for the places that have, you did make this motion, right? Places that have a sidewalk and trail on one side that we go forward, and the ones that don't, we do not.

[07:19:03] They're not the ones driving the country. Okay. Well, I think I'm going to, this is, okay, that's cool. I think I'm going to have to abstain on this until I get more information. That is a lot of money per mile. I mean, it is a, Mr. Rossio, why do you think it is?

[07:19:23] Do you have any idea about this price tag? Can you give me an idea? Is it just this is what it costs? Can you guys please, Ms. McQuizman, can you please stop talking, please? Do you think this is just what it's costing right now, and if we wait, it would just cost more later? Or is there a reason right now that this price has escalated to \$14 million a mile?

[07:19:43] So the market has spoken, and this is what they've given us. We have negotiated through the contracting process. There's also burden risk we've put on them.

[07:19:59] They're doing the land acquisition negotiation for over 60 parcels, I think, 69 parcels. So that is a lot of labor that they are incurring. And this is design and construction that we're paying for. So this is what the market is telling us.

[07:20:16] Negotiations, design, and construction. It's all of it. Design, construction, and administration of real estate acquisition and relocating the utilities. So if staff were to take it and do individual design, bid, build projects, it would take a lot of internal staff labor and take us a lot longer to deliver.

[07:20:37] So, I mean, we're paying for delivery speed as well. Okay. That's a good answer. Thank you. That was really helpful. Mr. Saints? Thank you, Madam Chair. Thank you, colleagues, for the questions and those good back and forth.

[07:20:52] Like I said earlier, people are raising a lot of good questions and concerns, but, you know, these are some of our highest priorities that were identified that need sidewalk and trails and connectivity for folks, residents, to travel near and far in a safe manner to get to their jobs, to get to their homes and recreation.

[07:21:14] I think, again, we can continue to have conversations, try to find ways to mitigate the cost, maybe We continue to talk with staff to say, okay, if we let the contractor go and work and do these things that they do a very good job at, but then maybe what we do a good job at and we have resources, maybe we still maybe bring those back in house and do a hybrid approach possibly, I don't know.

[07:21:37] But we'll continue to converse, but I think we still need to move forward with these projects and we know we have a lot more that are in the pipeline to work on and get done. Supervisor Chachoni

made a good point about, you know, make sure if we can look at it, as you said, you acknowledge you will do.

[07:21:54] If we can build in the right-of-way, not build in the right-of-way. But some of these, correct me if I'm wrong, we have to build in the right-of-way, you know, get VDOT approval because some of these are right next to just, you know, to highway, to roads, literally. So we have to put them somewhere, and that's where we have to put them. So I will support, and hopefully everybody else supports it, and we will continue to have dialogue on this.

[07:22:13] but this is something that needs to get done and keep moving forward because we've been at this for quite some time with sidewalk and trails, so thank you. You've used all the sidewalk money. Okay, Mr. Sains made the motion.

[07:22:29] Ms. Brickson seconded the motion. All are available to say aye. Aye. Opposed? No. All right, that motion would pass. If you're a nay, will you raise your hand? That motion would pass 6-3. Good answer.

[07:22:47] Okay, and... I'll just point one thing out real quick. They made a mistake. They made a mistake? There's no sidewalk on one side of Ashburn Road. Okay, it doesn't matter. It passed. It doesn't matter. It passed. Okay. 14J, would you come on down, please?

[07:23:09] They don't need to come down. Yeah, it's not final there. Don't need to come. Oh, they don't need to come down. I meant your staff.

[07:23:24] No, no, you can't sit there. Just, you cannot. I know I didn't, I was talking about staff, come on down. I think you're just a magnificent human being and you cannot sit there. Thank you so much.

[07:23:42] Just staff, I meant, I was not clear enough, I apologize. Hello, how are you? We are on 14J. All right, Mr. Letourneau, would you like for, would you?

[07:24:04] - I have a motion, so. - You have a motion, do you guys, Do you have anything you want to add that's new that we don't know already? There are no updates. There are no updates. Okay, Mr. Attorney, would you like to go to a motion? Yes, please, Madam Chair. I move the Board of Supervisors to deny Legi 2025-0007 Tech Park at Dulles Substation, special exception 2025-0016, special exception 2025-0020, based on the following findings for denial.

[07:24:28] A, the existing use of fully developed auction facilities, consistent with the suburban industrial mineral extraction place type of the Loudoun County 2019 general plan. is in a reasonably economically viable use. B, the proposed utility substation use would require conditions to mitigate its impacts, but the existing use is consistent with surrounding development on a scale more compatible with the location and does not require conditions to mitigate impacts.

[07:24:51] And C, the electrical grid in Loudoun County is severely strained due to increase electrical demand and constraints on delivering sufficient power to the county. The proposed utility substation is a new direct connect substation as opposed to a reliability substation, which will exacerbate the problem by promoting development of new high-wattage users and causing off-site impacts of new high-voltage transmission lines within the county to support such new users.

[07:25:15] Second. Mr. Letourner, would you like to have an opening? Or was your motion an opening? No, I'll make a brief opening. I know Supervisor Turner has been working with the county attorney's office

on language that found its way here as item C.

[07:25:33] But I just do want to draw the distinction between the types of substations. We talked about this earlier. Certain substations, we learned tonight from the county attorney, are defined by the State Corporation Commission as reliability substations. There are others that are supporting a specific user.

[07:25:51] I believe that the board has an obligation to support those when we have approved an application that leads to the need for the substation. Because in that case, we have essentially created that need. But that is not the case in this particular instance.

[07:26:08] That is not the situation with this parcel. This parcel, which is leased, is currently an auction facility. It has been operating as a flex industrial facility, essentially, with that type of use. Right now, auto auction, but could be used for those non-data center uses, and it is viable in doing so.

[07:26:29] I do have concerns about the mix of business in Loudoun County. I have concerns when properties are being converted to things like substations that are existing non-data center uses because we are losing more and more of that space.

[07:26:45] And so that is why I have made this motion in this particular instance. Thank you. Thank you, Ms. Umstead. Thank you, Madam Chair. I have a question for staff. Is it your understanding that the data centers that could be served by this substation can go forward without it?

[07:27:14] I would defer to the applicant in that. I cannot hear you. I would defer to the applicant in regard to the power and end user. Okay. All right. Ms. Umstead, if you want the applicant to answer a question, I'm fine with that.

[07:27:30] Okay. Could I ask the applicant? Sure. I'm fine with that. Ms. Hamstead, there is a buy-right site plan for three data centers on this property that is getting relatively close to approval.

[07:27:47] They are reliant on the substation as proposed in the application before the board, which is immediately contiguous to a Dominion transmission line that is on the site. All right. Thank you. That was very helpful. Mr. Kirshner.

[07:28:05] Thank you, Madam Chair. So I just want staff to tell me if anything I say is wrong. This is recommended for approval by staff, correct? That's correct. This, were the planning commission voted on this unanimously, correct? That's correct. The proposed use is consistent with the comprehensive plan, correct?

[07:28:21] That's correct. And this, we previously approved the commission permit for this substation, correct? Correct. It's near transmission lines. It's in the airport 65 corridor, correct? It's the LDN 65 plus. Yes, plus.

[07:28:37] It looks like it's also near data centers according to the map that I saw in here and other substations. That's correct. And it's 800 feet from Old Ox Road, and there's no residential surrounding this, correct? Correct. There is approximately 918 feet from Old Ox Road, and the nearest residential is 0.7 miles away.

[07:29:00] Was there any public testimony at the Planning Commission? There was not. Or board hearings against it? There were no comments. After considering the location surrounding uses, existing infrastructure setbacks, and screening, Did staff identify any land use compatibility issues in your report?

[07:29:19] Staff did not have any outstanding issues with the proposal. I'm going to just say this up front. This is the ideal place for a substation. If you're going to put a substation in, you couldn't have a better place. And Mr. Laterno, with all due respect, I appreciate that.

[07:29:36] But basically, I understand the existing car auction house that Supervisor Laterno is trying to protect here, suggests is a better use. But this is also a tenant use, as I understand it. I think Mr. Rogers, Supervisor Armstead, myself, in our years in, you know, law school, understand, you know, kind of the shtick of property rights 101.

[07:30:01] Should we, as the board, quite frankly, be sitting here choosing a tenant's temporary leasehold interest over, obviously, something the landowner actually wants to do? I don't know if that's really our job as a board. I've looked at these... I've looked at these reasons for denial.

[07:30:18] I, quite frankly, find them fairly weak. The question is, are they really legally, are they debatable? I guess if we ended up getting sued, they might be.

[07:30:36] I would ask a question of our county attorney, if the chair would permit me. Sure. Mr. Rogers, are you have any concerns that we may be facing legal risk by denying an application, given what I've just laid out?

[07:30:52] In order for me to adequately answer that question, I would request the board go into a closed session so that we could fully discuss it. Okay, your point on that answers my question. I just think, guys, we're walking down a road.

[07:31:08] We're going to find ourselves embroiled in a lot of lawsuits, especially when you have an application at this level come forward. Quite frankly, these are very, very weak reasons for denial. We're making political decisions on this board. Thank you, Mr. Kirsten. Thank you, ma'am. Mr. Turner. Ma'am.

[07:31:24] Thank you, Madam Chair. I'm sorry, I didn't see you. I'm sorry. use it the new prescription thank you good to go oh my god they work see look at that i got another pair you can take those yeah they look good on you yep very good um all right so this is if you madam chair if you allow from staff to answer this is this application is a special exception, correct? Correct. It was a special exception. And special exceptions, the board has

[07:32:02] the pleasure to either vote yes or no on them because it's a special exception. That's correct. Correct? The applicant's choosing to come in front of the board for whatever reason and asking for permission to do whatever their use is. Is that kind of how a special exception works? By and large, yes, that's correct. Okay. And correct me if you're wrong, the board did not vote to allow what's being proposed um with the the three data center buildings on this site is that correct correct data centers in e-plan or site plan review are by right they do not have a

[07:32:39] legislative application associated with the data center use okay which is true they have the by right right to choose to do so but this application in front of us now for the substation is a special exception. Um, so I feel comfortable cause I did not approve for the, the, the, the use that needs a substation on the site. And as we have discussed, um, we need to maintain, I think, you know, diversify, continue to diversify our economy. We have a very good, uh, user that's been on this site for, uh, for some period of time and does very well from my understanding and actually

[07:33:18] He provides a lot of vehicles to not just car dealerships in Loudoun County, but also in Fairfax County, Prince George's County, and up and down in Maryland, Delaware, and further away as well. So anyway, I will support the motion that was made by Supervisor LeTurneau on this.

[07:33:36] Thank you. Mr. Turner. Thank you, Madam Chair. The representative from Dominion Energy sat here a few weeks ago and said specifically what I have been saying for a while now.

[07:33:52] Every additional data center that we add to Loudoun County, think of it as an additional overhead transmission line and additional substation. Now, does that apply in every individual case? No, it does not. But our grid right now is at absolute maximum capacity, and our overhead transmission line rights-of-way are at capacity.

[07:34:12] We cannot say no to an application for a data center because of power. We're not legally allowed to do that. But we can say no to an application that we know is going to result in more transmission lines and affect the quality of life and the property values of residences all over Loudoun County.

[07:34:32] This demand is fungible. You put more demand in the southwest corner of Loudoun County and you are going to create a grid requirement for more transmission lines in the northeast corner of Loudoun County. That's where we are right now. We as a board, I believe, have to start limiting demand. That's what we have control over because that's what's driving the increase in transmission lines in this county. We've got nine transmission lines currently under construction in Loudoun County and every one of those rights of way are full. We had a serious debate tonight about an

[07:35:05] unbelievable 765 overhead AC line in northwest Loudoun County right now. We have to start limiting demand. I have enormous respect for the applicant. I really do. He's one of the good guys but this board has got to start limiting demand and that's why I asked to add this paragraph C and you will probably hear these words again from me.

[07:35:29] This is an opportunity to limit demand, and I think I totally support the motion. Thank you. I will associate myself with Mr. Letourneau's comments when he says it's one thing if we actually voted for the data center.

[07:35:45] But when we didn't vote for the data center, it was a by-right data center that, and again, we haven't voted for the data center in a very long time. then I don't know on this chain set. I don't feel the same responsibility if I didn't vote for the data center.

[07:36:02] So I will associate myself with Mr. Letourneau's comments. I associate myself with Mr. Sainz and Mr. Turner's comments, and I will leave it at that and go back to Mr. Letourneau for a closing. Yeah, just a brief comment. So Mr. Kirshner made the statement that this is located near existing transmission lines.

[07:36:19] You know what else it's next to? The Mars substation. focal point of the Golden to Mars transmission line, which I think, even before Valley Link, is the transmission project that is ripping this county apart. So at some point, we lament the fact that we're losing other types of uses in the county and that folks constantly want to try to convert them to data centers because it's more lucrative, and I know it is. At some point, if we don't want that to happen, we have to look at the big picture and we have to look at the total

[07:36:54] picture. Now, this is specifically about the substation, and I recognize there's a different finding here that we haven't necessarily had before, but it is in line with what Dominion has said to us directly. And I, you know, yes, this is a leased use, but the fact that it has been a leased facility proves the economic viability of the existing use, and the fact that we don't have to approve a special exception for a substation on this parcel in order for it to be economically viable.

[07:37:25] And so I believe we've met our standard and therefore that's the motion. Thank you. - Thank you very much. The motion was made by Supervisor Materno and I seconded the motion. All in favor please say aye. - Aye.

[07:37:41] - Any opposed? - May. - That motion will pass seven to two with Miss-- - Three. - With three, who was three? - Glass. - Oh, three, seven to three with Miss Umstead, Glass, and Kirchner voting against the motion. 6-3.

[07:38:00] Alright, I think that's it, and so we're going to go back into closed session. Mr. Turner, will you read us back into closed session? Mr. Kirchner, this looks amazing. Thank you. Which one are we going into? We're going into 15B and 15G. Thank you.

[07:38:19] Yes, 15B and 15G. I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.23711A3 of the Code of Virginia to consider the acquisition of a parcel of property for public use in the Ashburn Election District, and I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.23711A7 of the Code of Virginia to consult with legal counsel regarding actual litigation involving a personnel matter where such consultation and open meeting would adversely affect the negotiation or litigating posture of the public body.

[07:38:55] Motion made and seconded. Discussion on the motion. All of the people who say aye. Aye. Any opposed? Everyone is going to closed session, correct? Okay. Thank you.

[09:00:34] Okay, we are back. We are back. Did you read us out, Mr. Turner? I move that the closed session be adjourned. The Board of Supervisors reconvene in this public meeting that the minutes of the public meeting should reflect that no formal action was taken in the closed session.

[09:00:55] Further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting. Questions made and seconded by Ms. Glass. Did you second that, Ms. Glass? I did. Ms. Bisprin, from discussion on the motion, all in favor say aye.

[09:01:11] Aye. Any opposed, that will pass 9-0. Would everyone please confirm? Affirm. I'm firm. Affirm. And I affirm as well. Thank you very much. I believe that's it. We are adjourned. All right. Just shy of 1 o'clock.



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